

The Navy (Pay And Allowances) Regulations, 1966

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Union of India - Act

The Navy (Pay And Allowances) Regulations, 1966

UNION OF INDIA

India

The Navy (Pay And Allowances) Regulations, 1966

Rule THE-NAVY-PAY-AND-ALLOWANCES-REGULATIONS-1966 of 1966

Published on 5 January 1966

Commenced on 5 January 1966

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The Navy (Pay And Allowances) Regulations, 1966

Published vide Notification Gazette of India, Extraordinary, 1966, Part 2, Section 4, page 1.

1811.

S.R.O. 1-E, dated the 5th January, 1966. - In exercise of the powers conferred by Section 184 of the Navy Act, 1957 (62 of 1957

), the Central Government hereby makes the following regulations, namely :-

Part I ? Preliminary

Chapter I

1.

Short title.

- These regulations may be called the Navy (Pay and Allowances) Regulations, 1966.

2.

Extent of application.

(1)

The rates of pay and allowances specified in these regulations shall be applicable to all Commissioned Officers, whether regular or short service, Commissioned Officers (Ex-Branch List). Subordinate Officers while under training in India, Commissioned Officers (Special duties list) and sailors, on the active list of the Indian Navy.

(2)

Officers of the Army Medical Corps or Army Dental Corps seconded to the Indian Navy shall, with respect to their pay and allowances be governed by the rules for the time being prescribed for the Army Medical Corps or, as the case may be for the Army Dental Corps, read with the rules given in Appendix 1.

(3)

These regulations shall not apply to-

(a)

Subordinate Officers (that is Cadets, Midshipmen and Acting Sub-Lieutenants) undergoing initial training in the United Kingdom.

Explanation

Subordinate Officers when undergoing initial training in Royal Navy ships, are issued with pay and allowances at Royal Navy rates. The issue of emoluments from Royal Navy Funds ceases on confirmation in the rank of Sub-Lieutenant when they shall be brought on to the rates of pay laid down in these regulations and shall be paid by the High Commissioner for India in the United Kingdom. Midshipmen of the Indian Navy undergoing training in the United Kingdom shall, while drafted for training in the Indian Naval ships, receive pay as specified in Appendix VII.

(b)

Officers of the Military Nursing Service attached to Indian Naval Hospital Ships or Sick Bays.

(c)

Defence Security Corps personnel attached to Indian Naval Establishments.

(d)

Officers on Contract-the pay and allowances of these officers shall be governed by the terms of the contracts.

(e)

Officers in Civil employ who do not draw Indian Navy rates of pay-the pay and allowances of these officers shall be governed by special orders issued by the Central Government on the subject.

3.

Definitions.

- In these regulations unless the context otherwise requires,

(a)

'Active List' means the list of officers of the Indian Navy other than those who are placed on the Retired List or Emergency List.

(b)

'General List' means the list of officers of the Indian Navy who are holding the rank of Acting Sub-Lieutenant or above, excluding officers on the Special Duties list.

(c)

'Officer' means a Commissioned Officer and includes an acting Sub-Lieutenant.

(d)

'Sailor' means a person in the Indian Naval service other than an officer.

(e)

'Special Duties List' means the list of officers in the Indian Navy who are promoted to the Commissioner rank from sailors for special duties only.

(f)

All other words and expressions used but not defined in these regulations and defined in the Navy Act, 1957, shall have the meanings respectively attributed to them by that Act.

Part II ? Officers Chapter II

Rates of Pay

4.

Admissibility.

(1)

For the categories of officers shown in column 1 of the table below, the rates of pay admissible shall be as set out in the appendices indicated in the corresponding entry of column 2 thereof

[Table]

[Substituted by S.R.O. 19(E), dated 23rd October, 1986]

Categories

of Officers

Appendix

1

2

(a)

General list Officers of all Branches (excluding Naval Aviation and Sub-marine Branches) upto Commander (Substantive Rank)

Appendix

11

(b)

General List Officers of Naval Aviation and Submarine Branches upto Commander (Substantive Rank)

Appendix

III.

(c)

Blank

Appendix

IV

(d)

General List Officers (Ex-Branch List) Substantive Rank

Appendix

V

(e)

Special Duties List Officers (including special duties list officers of Submarine Cadre

Appendix

VI

(f)

Midshipmen

Appendix

VII]

(2)

An officer granted higher paid acting rank up to and inclusive of Lieutenant Commander involving promotion to one step higher than his substantive rank, will receive pay appropriate to his substantive rank and length of service reckonable for pay plus an acting rank pay of Rs. 50/- per mensem. Officers other than ex-Branch List Officers of the rank of Commander and Captain whether acting or substantive and officers ex-Branch list of the substantive ranks of Commander and Captain shall receive pay at the rates shown for these ranks in the appropriate appendices referred to in sub-regulation (1).

Explanation. - Acting pay shall be treated as pay for all purposes.

(3)

An officer who attains the substantive rank of Lieutenant before completion of three years' service on account of accelerated promotion, shall receive pay as for a Lieutenant promoted substantively to that rank in his fourth year of service; and an officer who attains the substantive rank of Lieutenant-Commander before completion of 11 years'

service (on account of earlier accelerated promotion to the rank of Lieutenant) shall receive pay as for a lieutenant Commander promoted substantively to that rank in his twelfth year of service. In either case, the officer shall continue to receive pay at the rate mentioned above until he becomes eligible for an increment on completing the same period of service as an officer who does not get accelerated promotion.

Chapter III

General Regulations

5.

On first appointment.

- The pay of an officer on first appointment shall commence from the date of his appointment as notified in the Gazette of India or other appropriate orders.

6.

Assumption of an appointment.

- Unless it be specially provided for otherwise, an officer assumes charge of an appointment :

(a)

from the date on which he takes charge, if the charge is transferred before noon, or

(b)

from the following day, if the charge is transferred in the afternoon.

7.

Pay and Allowances on return from leave.

- An officer on return from sick leave on furlough rates of pay or from furlough (either taken by itself or combined with annual leave) shall receive full pay of rank and allowances, if any, admissible from the date of resumption of duty.

8.

Continuance of pay.

- An officer shall continue to draw full pay of rank (including acting rank he is allowed to retain under the rules in force from time to time) and allowances, if any, admissible under the following circumstances:-

(a)

while on duty in India or ex-India.

Explanation. - Officers deputed to undergo voluntary training course at the Himalayan Mountaineering Institute, Darjeeling shall be treated as on duty during the period of the course and the time spent on journeys and shall continue draw emoluments on the same scale as they would have drawn if they had not volunteered for the course.

(b)

while attending an authorised course of instruction in India or ex-India;

(c)

while on the 'Sick List Concession' under rule 19 of Leave Rules for the Services, Part II-Navy;

(d)

during annual leave, and the first six months of sick leave which shall include the period of annual leave for the year and if the annual leave for the year or a part thereof had been taken earlier, the period of full pay sick leave shall be reduced by the period of annual leave so taken;

(e)

during the joining time admissible on transfer from one appointment to another;

(f)

while appointed as supernumerary or additional to the ship or establishment.

9.

Cessation of pay.

- The pay of rank and allowances shall be discontinued-

(a)

from the day following the date of the death of an officer;

(b)

from the day on which an officer retires or resigns;

(c)

for the period of any absence from duty without leave; and

(d)

in the case of an officer who is dismissed with or without disgrace, removed from the service, or suspended for absence without leave, from the day following that on which the decision relating to such dismissal, removal or suspension is communicated to such officer.

Explanation.-When an officer is dismissed with disgrace, he also forfeits the pay accrued to him from the last pay day until the day of his dismissal under section 81(c) of the Navy Act, 1957.

10.

Retirement.

- When an officer is required to retire on attaining a specified age, the retirement shall have effect from and inclusive of the day on which he attains that age.

11.

Relinquishment of an appointment.

(1)

Except as otherwise provided for, an officer relinquishes an appointment from the day on which the charge is quited or transferred, if such quitting or transfer takes place before noon or from the following day if it takes place in the afternoon.

(2)

An officer shall relinquish an appointment from the date of the order abolishing it or from any subsequent date notified in the order, whether such officer is on duty or not at the time.

12.

Authorised deductions from or forfeiture or withholding of pay and allowances of officers.

(1)

The deductions from or the forfeiture of the pay and allowances of an officer are governed by the provisions of Sections 28,30,31,32,33,49(2) and 82(6), as the case may be, of the Navy Act, 1957 read with the relevant regulations issued under that Act from time to time.

(2)

Where an officer has been convicted and sentenced to imprisonment by a criminal court, his pay and allowances shall be withheld from the date of such conviction until the decision of the Central Government is obtained-

(a)

with regard to retention in service or otherwise of the officer in accordance with the appropriate regulations, and

(b)

with regard to the pay and allowances, if any, to be allowed to him for the period during which such pay and allowances have been withheld.

13.

Right to increase in pay on promotion.

(1)

An officer shall have no claim to pay of a higher rank before promotion to such higher rank in accordance with the rules in that behalf.

(2)

Where an officer is promoted to a higher rank, either substantively or in a paid acting capacity, the appropriate pay and allowances admissible to him under these regulations shall be allowed from the date of such promotion as notified in the Gazette of India or other appropriate orders.

14.

Grant of erroneous promotion.

- The pay of higher substantive rank to which an officer is erroneously promoted shall be discontinued from the date on which the orders rescinding the promotion reach the ship or establishment in which the officer is serving if he is present on duty, and in other cases, from the date of the orders.

Fixation of Pay

15.

Fixation of pay of officers (excluding Special Duties List).

(1)

The pay of an officer of the rank of Commander and below shall be fixed on the basis of his rank and year of service as

an officer (excluding period of antedate, unless otherwise stated) as shown under Appendices II, III, [***]

[Omitted and Substituted by S.R.O. 19(E), dated 23rd October, 1986]

and V subject to the minimum pay specified for each rank.

Commanders and below-Captains. - (2) The pay of an officer promoted to the rank of Captain shall be fixed in the time scale given in [appendices II and III]

[Omitted and Substituted by S.R.O. 19(E), dated 23rd October, 1986]

(ii) with reference to the service rendered in that or higher ranks.

Special Duties List officers. - (3) The pay of an officer in the Special Duties list shall be fixed according to his seniority in the rank held.

[Note.-Acting Sub-Lieutenant (Special Duty) (on probation) who, on satisfactory completion of probationary period and on being considered fit in all respects for promotion to Sub-Lieutenant (Special Duty) cannot be confirmed on account of non-availability of a vacancy in the stabilised cadre, shall be designated as Acting Sub-Lieutenant (Special Duty) (Temporary) and shall be entitled to increments in the scale of pay as laid down in Appendix VI.]

[Added by S.R.O. 9-E, dated 19th March, 1974]

Pilots and Observers of the Navy. - (4) Naval Aviation Officers of the Indian Navy who have specialised as Pilots (P) and Observers (O), and who fall within the authorised cadre of Pilots (P) and Observers (O) shall receive pay at the rates specified in Appendices III and IV from the dates they obtain their Wings for so long as they are fit and liable for flying duties, irrespective of the appointments actually held by them from time to time.

Explanation. - Appointments authorised as tenable by Pilots (P) and Observers (O) in various establishments from time to time constitute the authorised cadre of Pilots and Observers referred to in sub-regulation (4).

Midshipmen. - (5) Midshipmen of the Indian Navy shall receive pay at the rate laid down in Appendix VII.

16.

Increased pay based on length of service.

- Except as otherwise provided, only full-pay commissioned service (service in the Special Duties List in the case of Special Duties Officers) and periods of leave on furlough rates of pay, reckon for increased pay.

17.

Grant of ante-date for purposes of seniority, promotion and increments of pay and its effect.

(1)

The rules governing the grant of ante-date of commission for purposes of seniority, promotion and increments of pay, are laid down in the appropriate regulations made in that behalf. When an ante-date of commission is granted and published in the Gazette of India, the period of ante-date shall not, unless otherwise stated, reckon for purposes of increments of pay in the commission ranks.

(2)

Effect of ante-date. - if an officer is granted an ante-date of first commission for purposes of seniority the ante-date shall not, unless otherwise stated, reckon for purposes of increments of pay in the commissioned ranks.

(3)

The grant of ante-date of commission does not carry back pay prior to the date of commission.

(4)

An officer promoted from the erstwhile Branch List of the rank of Lieutenant shall be entitled to take into account, for purposes of increments of pay in that rank, any ante-date of seniority granted to him on promotion.

18.

Service in paid acting ranks.

(1)

Service in a paid acting rank shall be reckoned towards increased pay in that as well as in a lower substantive rank, in cases where increments of pay are based on years of service in a rank.

(2)

In the case of an officer of the rank of Captain, service, including broken periods of service rendered in that or in a higher paid acting rank, shall reckon equally with service rendered in the substantive rank towards the grant of increased pay dependent on length of service in that rank.

19.

Increments of pay.

(1)

When a scale of pay rises from a minimum to a maximum by annual increments or according to length of service, the increments of pay to officers shall be paid as they fall due: Provided that the Chief of the Naval Staff may, at his discretion, direct an increment to be withheld in respect of an officer whose efficiency or competency is, in his opinion moderate or inferior, for a period of three, six, nine or twelve months from the date on which such increment becomes due, and he shall at the time of imposing the penalty, give orders in writing as to whether the withholding shall have the effect of postponing future increments.

(2)

[An increment of pay shall be given effect to from the first of the month in which it falls due whether the officer is on duty or on leave (including leave pending retirement)";]

[Substituted by S.R.O. 19(E), dated 23rd October, 1986]

20.

Retired Officers re-employed.

- The pay and allowances of retired officers on re-employment shall be governed by orders issued by the Central Government on the subject.

21.

Officers taken prisoners of war or reported missing or presumed dead.

- The pay and allowances of an officer who is taken prisoner of war or who is reported missing and who dies or who is presumed to be dead, shall be governed by the orders issued by the Central Government from time to time.

[21 A. Officers reported prisoners of War. - (1) Officers will be entitled to receive full pay and allowances appropriate to their rank (including paid acting rank), subject to adjustment in respect of the pay they receive from the enemy while in captivity. Separation allowance if in issue prior to capture will also continue, but high altitude/uncongenial climate allowance will not be paid.

(2)

The pay and allowances, admissible as above, shall remain credited to the individual pay accounts of officers, maintained by the Naval Pay Office. From the amounts at the credit of officers, monthly allotment will be remitted, as in sub-regulation (3), at State expense by the Supply Officer-in-Charge, Naval Pay Office.

(3)

Family allotments made by officers will continue to be payable for the period for which pay is admissible. If no family allotment was in issue, fresh allotments of 45%, of pay and allowances may be made to the family."]

[Substituted by S.R.O. 19(E), dated 23rd October, 1986]

Chapter IV

Allowances

[Compensatory (City) Allowance, Compensatory (Local) Allowance and Hill (Compensatory) Allowance.]

[Substituted by S.R.O. 9-E, dated 19th March, 1974]

22.

[Admissibility Ashore.

[Substituted by S.R.O. 9-E, dated 19th March, 1974]

- Officers serving ashore shall be entitled to receive compensatory (city) allowance, compensatory (local) allowance and hill (compensatory) allowance in all cities or localities where these allowances are admissible to civilian Government servants paid from the Defence Services Estimates, at the same rates and under the same conditions as are applicable from time to time to the latter.]

23.

Admissibility Afloat.

(1)

Officers serving afloat on hoard ships which are based on Bombay or Calcutta shall be. allowed to draw the [allowances]

[Substituted by S.R.O. 9-E, dated 19th March, 1974]

(a)

at full rates-

(i)

if married and their families actually reside in Bombay or Calcutta;

(ii)

when they are required to live ashore during the time the ship undergoes refit, repairs and the like;

(iii)

when they are required to live ashore while appointed 'ANGRE' additional to await embarkation to the United Kingdom for courses of instruction, deputation duty, and the like, or on temporary duty to undergo courses of instruction in Bombay; and

(b)

[At half the rates in other cases except the officers of the Naval Air Squadron whilst embarked on board INS Vikrant"]
[Substituted by S.R.O. 12, dated 9th May, 1989]

.

(2)

[The allowance referred to in regulation 22]

[Substituted by S.R.O. 9-E, dated 19th March, 1974]

, shall also be admissible to officers borne on ships based at ports other than Bombay or Calcutta during periods of repair or refit of the ship subject to the fulfilment of the following conditions, namely:

(a)

the ship is required to stay at Bombay or Calcutta beyond thirty days;

(b)

the Commanding Officer of the ship certifies that the ship is not habitable due to repair, refit, and the like and the officers are therefore, required to stay ashore;

["(c) the officers do not avail themselves of the messing and other facilities in the ship while staying ashore except drawing free rations in kind or money in lieu thereof."]

[Substituted by S.R.O 19(E), dated 23rd October, 1986]

(d)

hardly money is not drawn in addition.

Explanation 1. - The disposition programme of Indian Naval Ships during a particular month, issued by the Chief of the Naval Staff, shall be the basis for assessing the rate of allowance for such period.

Explanation 2. - The term 'family' mentioned in this regulation means an officer's wife, legitimate children and step children, residing with and wholly dependent on him and shall include other dependents and servants.

24.

Admissibility in general.

(1)

[Allowances referred to in regulation 22]

[Substituted by S.R.O. 9(E), dated 19th March, 1974]

shall normally be admissible only to those officers who are appointed permanently to a qualifying station.

(2)

Eligibility to [the allowances]

[Substituted by S.R.O. 9(E), dated 19th March, 1974]

shall be determined with reference to the place of duty of the officer concerned.

(3)

Officers proceeding to Bombay or Calcutta or Delhi or other qualifying stations on temporary duty or attached to shore establishments located there, when not eligible for daily allowance under the travel regulations for the Navy shall, however, be entitled to the compensatory (city) allowance.

25.

[Admissibility during leave and temporary duty.]

[Substituted by S.R.O. 9(E), dated 19th March, 1974]

- [The allowance shall continue to be admissible during periods of absence on leave and temporary duty at the same rate at which it was drawn prior to proceeding on leave/temporary duty subject to the following, namely:]

[Substituted by S.R.O. 19(E), dated 23rd October, 1986]

(a)

During leave (other than leave pending retirement),

(i)

four months at a time in the case of officers on annual leave, or annual leave combined with furlough, or on furlough not combined with annual leave, if any;

(ii)

four months at a time in the case of officers on sick leave, inclusive of the period of annual leave, if any, provided for in sub-clause (i) above.

Explanation I. - The limit of four months laid down in Clause (ii) above shall be extended to eight months in the case of an officer suffering from Tuberculosis/Cancer and other prolonged ailments subject to the conditions laid down in these regulations in all other respects. The grant of the allowance to an officer suffering from Tuberculosis/Cancer and other prolonged ailments during leave exceeding eight months shall be decided on merits by Government in each case.

Explanation II. - The payment of allowances during the period of leave in excess of first four months shall also be subject to furnishing of the following certificate :

He or his family or both continued for the period for which compensatory (city) allowance is claimed to reside at the same station (whether within its qualifying limits or in an adjoining area) from where he proceeded on leave.

(b)

During temporary duty not exceeding three months.

(c)

During first three months of leave if combined with temporary duty.

Explanation : - For the purpose of the above regulation the "family" means the officer's wife/husband, children and other persons residing with and wholly dependent upon him/her. A husband/wife/child/parents having an independent source of income is not treated as a member belonging to the family of the officer except when he is in receipt only of a gross pension (including temporary increase in pension and pension equivalent of death-cum-retirement gratuity or other retirement benefits) not exceeding Rs. 100 per month."

26.

Husband and wife both entitled.

- Both husband and wife shall draw the [allowances]

[Substituted omitted by S.R.O. 9-E, dated 19th March, 1974]

, if otherwise admissible.

[* * *]

[Omitted by S.R.O. 9E, dated 19th March, 1974]

28.

Definition of 'pay' for compensatory (city) allowance.

- The term "pay" shall include pay of rank (under regulation 4), acting pay, personal pay, qualification pay, flying pay and any other [allowances]

[Substituted or omitted by S.R.O. 9E, dated 19th March, 1974]

treated as "pay for all purposes".

29.

Admissibility to Midshipmen.

- Midshipmen of the Navy shall also receive [allowances]

[Substituted or omitted by S.R.O. 9E, dated 19th March, 1974]

at the rates and under the conditions laid down in regulations 22 to 28.

["Chariot Pay"

[Substituted by S.R.O. 132, dated 9th May, 1989]

29.

-A. Admissibility and rates.

(1)

Chariot crew whilst borne against the chariot strength are entitled to chariot pay equivalent to the sub-marine pay admissible to submariners subject to the condition laid down in note.

(2)

Chariot pay shall be treated as pay for all purposes.

Notes : Chariot pay equivalent to submarine pay is admissible subject to the condition that officers borne against the

chariot strength obtain additional life insurance cover through Naval Group Insurance Scheme against all risks for an amount of Rs. 2 lakhs on payment of a contribution of Rs. 234/- per month. The Naval Group Insurance Scheme will pay survival benefits to officers covered under the above insurance scheme on retirement/release, the amount of which shall be determined by the Naval Group Insurance Scheme from time to time.]

Dearness Allowance

30.

Admissibility.

- All officers shall receive dearness allowance at the rates and under the conditions applicable from time to time to the civilian Government servants who are paid from the Defence Services estimates.

31.

Admissibility during leave in or outside India.

- [(1) The dearness allowance may be drawn during any period of leave other than : (i) leave without pay and allowances in or outside India, and (ii) any portion of leave pending retirement spent outside India, except that in case of leave pending retirement in India, it shall be admissible only during the first 180 days."]

[Ibid]

32.

Calculation of dearness allowance during leave.

(1)

Dearness allowance during leave shall be based on the leave salary actually drawn, both for the purposes of monetary limits within which the allowance is admissible and for calculation of the amount of the allowance.

(2)

Leave salary for this purpose shall comprise only those elements of pay which have been specified in regulation 35 as pay of rank. The portion of leave salary representing other additions to pay of rank which are excluded for the purpose of 'calculating dearness allowance, shall not be taken into account for calculating the amount of the allowance admissible during leave.

33.

Officer appointed or discharged or drawing varying rates of pay in the course of a month.

- The amount of dearness allowance in respect of any period or periods during which varying rates of pay are drawn, shall be based, for the actual days of duty, on the rate of dearness allowance corresponding to the monthly rate of pay during such period or periods and not on the amount of pay actually drawn during such period or periods.

34.

When emoluments are drawn from foreign Governments.

- An officer in receipt of any emoluments of the nature of pay, leave salary or pension from a foreign Government or foreign Governments in addition to pay from the Government of India, shall, subject to the total emoluments not exceeding the limit prescribed for eligibility for dearness allowance, draw the allowance on the basis of his pay from the Government of India. For the purpose of this regulation, pension as originally sanctioned, that is, before commutation, if any, shall also be taken into account.

35.

Computation.

(1)

Dearness allowance shall be assessed on the basis of the pay of rank actually drawn and for this purpose acting pay, flying pay, personal pay, qualification pay and any other allowance treated as "pay for all purposes" shall be considered as pay of rank.

(2)

No emoluments other than those mentioned in sub-regulation (1) shall be taken into account for purpose of computation of dearness allowance.

36.

[Rounding off the monthly rate. - The amount of dearness allowance for a month arrived at on actual calculation shall be rounded off to the nearest 10 paise. For this purpose, the portion not below 5½ paise shall be rounded off to 10 paise and that below 5½ paise shall be ignored."]

[Substituted or omitted by S.R.O. 9E, dated 19th March, 1974]

37.

Admissibility to Midshipmen.

- Midshipmen of the Navy shall receive dearness allowance at the rates and under the conditions laid down in regulations 30 to 36.

Disturbance Allowance

38.

to 42.

[***]

[Omitted by S.R.O. 19E, dated 23rd October, 1986]

[Married and single officers shall be entitled to disturbance allowance of Rs. 150 and Rs. 50 respectively under the conditions hereinafter detailed when they are transferred and are required to travel on warrant from one station to another within Indian limits or to a ship or while on temporary duty or when on return from leave, they are appointed to stations other than those from which they proceeded on temporary duty or leave, for the purpose of meeting the incidental expenditure incurred by them in connection with such movements.]

[Substituted or omitted by S.R.O. 9E, dated 19th March, 1974]

43.

Admissibility when officer and his family proceed Ex-India.

- Married officers proceeding overseas on duty from India or other stations Ex-India or returning to India from overseas shall be entitled to disturbance allowance at the rate of [Rs. 600]

[Substituted or omitted by S.R.O. 9E, dated 19th March, 1974]

provided that the officers move Ex-India with their families or are joined by their families within six months of the date of the movement of the officer and the families move at Government expense.

[Explanation. - All married officers who are transferred to India from abroad shall also be entitled to disturbance allowance of Rs. 600 if their families move to India with them at the expense of Government]

[Substituted or omitted by S.R.O. 9E, dated 19th March, 1974]

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44.

[When the family of an officer proceeding Ex-India moves to a selected place of residence in India.

[Substituted by S.R.O. 19(E), dated 23rd October, 1986]

- In the case of married officers whose families do not accompany them to their places of duty abroad, and in the case of single officers, the disturbance allowance will be admissible at the same rate at which they would have got transfer grant on their transfer within India.

No exchange compensation allowance will be admissible on the above rate of disturbance allowance."

45.

When officer dies abroad.

- In cases of an officer, who while living with his family, dies abroad and the family returns to India at Government expense, disturbance allowance at the rates laid down in regulation 43 above will be paid to the family of the deceased officer."

46.

Restriction as to age.

- No officer shall be eligible for disturbance allowance unless he is above 25 years of age.

[Explanation. - The conditions relating to the movement of the family and the restriction regarding the age shall not be applicable to single officers]

[Substituted & Inserted by S.R.O. 9-E, dated 19th March, 1974]

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47.

Married Officer.

- The expression "married officer" shall include an officer who is a widower, a divorcee, and an officer who has obtained a decree for judicial separation and having a dependent legitimate child or children or step-child or step-children or a legally adopted child or children and a married officer maintaining his divorced wife.

Diving Pay (Dip Money)

48.

Admissibility.

- Diving Pay at the rates and under the conditions laid down for sailors in sub-regulations ((1) to (9) of Regulation 1481 shall also be admissible to qualified officers including any officer who has successfully completed a course at a diving school and whose duties necessitate his going under water or pressure, using any approved diving apparatus during diving operations or during diving practices under the authority of the Commanding Officer.

[48-A. Admissibility.

[Substituted by S.R.O. 9-E, dated 19th March, 1974]

- Divers retaining fee at the following rates and under the conditions laid down for sailors in sub-regulations (1) to (3) of regulation 149 shall be admissible to qualified officers of the categories of "Ship's Divers" [Diving Allowance/Retaining Fee"] as shown against each :]

[Clearance Divers]

Officers (General and S.U. List)

(i) Clearance

Diving Officers

Rs.

150 p.m.

(ii)

Deep Diving Officers

Rs.

150 p.m.

(iii)

Ship Diving Officers

Rs.

75 p.m.

[Ibid]

Entertainment Allowance

49.

Qualification appointments.

- Entertainment allowance shall be admissible to officers of the Indian Navy while holding the appointments detailed in the table below, at the rates shown against each :

TABLE

[Ibid]

Rank

Nature

of appointment

Rate

of Allowance

1

2

3

(a) Afloat

(i) Rear

Admiral

Flag

Officer Commanding Indian Fleet

Rs.

350

(ii) Captain

In

Independent Command of a ship in commission

RS.

200

(iii) Commander,

Lieutenant,

Commander,

Lieutenant,

In

Independent Command of a ship in commission

Rs.

100

(b)

Others

(i) Vice

Admiral

Flag

Officer Commanding-in-Chief

Rs.

300

(ii) Rear

Admiral

Flag

Officer Commanding Western Fleet

Rs.

300

(iii) Rear

Admiral

Flag

Officer Commanding Eastern Fleet

Rs.

200

(iv) Rear

Admiral

Flag

Officer Commanding-in-Chief/Flag Officer Commanding Naval Area

Rs.

200

(v)

Commodore

Commodore

Commanding/Incharge Naval Area

Rs.

100

Explanation. - Commanding Officers of Motor Mine Sweepers, Motor Launches, Harbour Defence Motor Launches, Landing Craft Transports and vessels of comparable size shall not be entitled to this allowance.

50.

Period of admissibility.

- Entertainment allowance shall be admissible for the actual period the qualifying appointment is held.

[51. Admissibility during absence on leave, sick list concession or temporary duty.

- It will be admissible to the permanent incumbent of the appointment entitled to entertainment allowance during leave, sick list concession or temporary duty and will be stopped from the date he is struck off the qualifying appointment."]

[Substituted by S.R.O. 19(E), dated 23rd October, 1986]

Expatriation Allowance

52.

Zone of admissibility.

- Officers and Midshipmen ashore Ex-India and afloat outside the limits of the area specified below shall receive expatriation allowance:

(a)

East of line-20°45' North longitude 92°21' East South to latitude 15 North then East to longitude 95° East thence due South to the Equator.

(b)

South of the Equator.

(c)

West of the meridian of 60° East as far South as the Equator.

[Provided that expatriation allowance shall not be admissible to officers proceeding abroad or returning from abroad during the period of voyage by sea, air or land.]

[Inserted by S.R.o. 9-E, dated 19th March, 1974]

53.

Rates.

- The rates of expatriation allowance are as shown in the table below:

Rs.

p.m.

Rear-Admiral and

above

250

Commodore

Captain

200

Commander

150

Lieutenant-Commander

100

Sub-Lieutenant

Acting

Sub-Lieutenant

Midshipmen

50

50

[Explanation. - This allowance shall not be admissible to officers in receipt of daily allowance or foreign allowance Ex-India.]

[Inserted & Substituted by S.R.O. 9-E, dated 19th March, 1974]

Flying Pay

54.

Admissibility.

- Flying pay shall be admissible at the rate of Rs. 50 per mensem to Indian Naval officers, irrespective of rank, while undergoing initial flying training.

Explanation. - Flying pay shall be treated as 'Pay for all purposes'. Funeral Expenses

55.

Funeral expenses-a charge on the Central Government.

- The actual funeral expenses of an officer whose death occurs while on field service shall be a charge on the revenues of the Central Government.

Explanation 1. - Deaths occurring on board ships and deaths resulting from accidents to service aircraft shall be treated as deaths on field service and actual expenses on such funerals shall be borne by the Central Government. This is

subject to the condition that service funerals are provided for such cases.

Explanation 2. - Funeral expenses in respect of deaths occurring on board ships in Indian ports, where a naval establishment is located, shall, however, be restricted to the limits laid down in regulation 56.

56.

Limit as to amount.

(1)

When the death of an officer occurs in a peace station, a grant-in-aid to the extent of the actual cost of the funeral subject to a maximum amount of [Rs. 250]

[Inserted & Substituted by S.R.O. 9-E, dated 19th March, 1974]

shall be admissible.

(2)

The funeral expenses of an officer whose death occurs while serving in a mission or post abroad or of an Indian domestic servant of such officer dying while on duty abroad and whose passage has been met by the Central Government, shall be met by that Government in full.

(3)

In the case of death of a member of the family of an officer in circumstances referred to in sub-regulation (2), the liability of the Central Government shall be limited to the difference between the actual funeral expenses (excluding the cost of shawl that may be placed on the dead body) and the cost of an appropriate funeral in India which has been assessed at Rs. 150.

(4)

[In cases where it becomes necessary to preserve the dead bodies of Naval officers in a mortuary awaiting arrival of the next of kin to take part in the funeral, mortuary charges incurred shall be reimbursed subject to a ceiling of Rs. 35 per day for a maximum period of three days.]

[Inserted & Substituted by S.R.O. 9-E, dated 19th March, 1974]

57.

Death by drowning.

- The allowance under regulations 55 and 56 shall not be admissible in the case of death of an officer by drowning unless the dead body receives sepulchre or funeral.

Hardlying Money

58.

[Admissibility.

[Substituted by S.R.O. 9-E, dated 19th March, 1974]

(1)

Hardlying money shall be payable to officers including those belonging to record parties at the rates and under the conditions hereinafter provided.]

(2)

Hardlying money shall also be admissible for the entire period for which an officer is borne on the ship concerned except during periods of leave, sickness, temporary duty and for periods of refit or repair of the ship during which the officers are required to stay ashore.

Explanation. - Officers qualified for the grant of hardlying money for 8 days or above in a month shall be allowed the prescribed monthly rate. However, those qualifying for lesser period shall not be entitled to hardlying money for that month.

59.

Rates.

- The rates of hardlying money shall be as given below:-

Table

Rank

Monthly

Half

rates

Full

rates

(i) Cadet/

Midshipmen/Acting Sub-Lieutenant/Sub-Lieutenant

Rs.

17.50/-

Rs.

35/-

(ii) Lieutenant

and above

Rs.

22.50/-

Rs.

45/-

60.

[Classification of ships for full and half rates.

[Substituted by S.R.O. 132, dated 9th May, 1989]

(1)

The classes of ships service on which qualifies for hardlying money at "full rates" are as follows :-]

(a)

Mine-sweepers :

(i)

Motor Mine-sweepers.

(ii)

Inshore Mine-sweepers.

(iii)

Coastal Minesweepers : Bedi Bhavanagar.

(iv)

Pondicherry.

(v)

Porbandar.

(vi)

Allepey.

(vii)

Ratnagiri.

(viii)

INS DBT-55

(ix)

Malvan.

(x)

Mangrol.

(xi)

Mahe.

(xii)

Malse.

(xiii)

Mulki.

(xiv)

Magdala.

(xv)

IN clul-35.

(xvi)

INSMakar.

(b)

Salvage vessel and Ocean-going Tug-

(c)

Landing Craft-Major and Minor Landing Craft and Landing Berges:- L-31, L-32, INCLU-33, INCLU - 34

(d)

Small Craft:

(i)

Trawlers and Craft on Mine-sweepers and Anti-Submarine Work.

(ii)

Examination Vessels.

(iii)

Motor Torpedo Boats.

(iv)

Motor Gunnery Boats.

(v)

Seaward Petrol Craft.

(vi)

Sea going Lanches.

(e)

[Sub-marines: KALVARI, KHANDERI, KARANAJ, KURSURA, MSTAR, VELA, VAGIR, VAGLI, VAGHSHEER.

[Substituted by S.R.O. 19(E),dated 23rd October, 1986]

Explanation. - Hard lying Money at full rates to officers and sailors of NISTAR, VELA, VAGIR, VAGLI and VAGHSHEER shall be admissible from the date of their commissioning.]

(f)

[Missile Boats. - Hardlying money shall also be payable to officers serving on board the following missile boats at the full rates, namely:-

[Substituted by S.R.O. 19(E), dated 23rd October, 1986]

VINASH, NIRCHAT, VIDYUT, NIRBHIK, VIJETA, NASHAK, VEER, NIPAT, PRATAP, PRALAYA, PRABAL, PRACHAND, CHAPAL, CHAMAK, CHARAG, CHATAK.

Explanation. - Hardlying money to officers and sailors of these boats shall be admissible from the date of their Commissioning."]

(2)

The classes of ships, service on which qualifies for hardlying money at "half rates" are given below :

Mine-sweepers:-

Ocean or Fleet Mine-sweepers

(a)

[Mine-sweepers:-

Ocean or Fleet Mine-sweepers.

(b)

The following ships of Indian Navy :

"GODAVARI, KUTI IAR, KIRPAN, TRISHUL, TALWAR, BRAHMAPUTRA, BEAS, BETWA, KRISHNA, KAVERI, SIIAKTI, MAGAR, GHARIAL, GULDAR, IAMUNA, INVESTIGATOR, KAMORTA, KADMATT, KILTAN, KAVARATTI, KATCHALL, ARNALA, ANDROTLI, ANJADIP, ANDAMAN, AMINI, GAJ, GHORPAD, KESARI, SHARLDUL, and SHARABH, RAJPUT, RANJIT and RANG";]

[Substituted by S.R.O. 19(E), dated 23rd October, 1986]

Note :- Hardlying money shall not be admissible to Indian Naval personnel on board Ocean Mine-sweepers or Fleet Mine-sweepers as a matter of course but only when such vessels are used as Mine-sweepers.

Explanation. - The payment of full or half rates of hardlying money is based on considerations of the living and sleeping conditions on board, which refer not only to the actual messing and sleeping accommodation but all factors that affect the health and comfort of those on board, namely, interference with sleep and rest, the difficult cooking arrangements

and the like, and the amenities of life in the ship as a whole. The following broad principle is therefore, followed, namely :

(i)

When the living and sleeping conditions are considered to be not superior to those experienced in a major landing craft on normal service-Full rates.

(ii)

When the living and sleeping conditions are considered superior to those experienced in a major landing craft but markedly inferior to those in an Ocean Mine-sweeper or Fleet Mine-sweeper-Half rates.

["High Altitude Uncongenial Climate Allowance]

[Substituted & Inserted by S.R.O. 19(E), dated 23rd October, 1986]

61.

Admissibility and Rates.

- High altitude uncongenial climate allowance as the following rates shall be admissible to the officers of the Indian Navy serving in the areas defined by the Government from time to time subject to the same conditions as laid down for sailors in sub-regulation (2) of regulation 156A :

Rs.

p.m

Acting

Sub-Lieutenant/Sub-Lieutenant

Lieutenant

Lieutenant-Commander

Commander

and above

100/-

125/-

175/-

200/-

62.

to 65.

[***]

[Omitted by S.R.O. 9-E, dated 19th March, 1974]

Interpreters' Allowance

66.

Allowance for official interpreters filling authorised appointments.

(1)

An officer appointed official interpreter in a non-Indian language shall receive an allowance of Rs. 100 per month.

(2)

The above allowance shall be drawn on the authority of a Navy Order notifying the appointment and its duration.

(3)

The number of officers entitled to the allowance at any one time is three.

(4)

The allowance shall be suspended while the officer is out of India on leave, deputation and the like.

Outfit Allowance-Initial Grant

67.

Initial grant.

- Outfit allowance, at the rates and under the conditions hereinafter specified, shall be given as a grant-in-aid to officers on first commission for the purpose of providing themselves with authorised uniform.

68.

Subordinate Officers.

(1)

A grant of Rs. 1,000 for providing uniform shall be admissible to each of the cadets passing out of the National Defence Academy for naval training. This grant shall be placed at the disposal of the Commanding Officer, Cadets' Training Ship.

The Commandant of the Academy shall, as soon after the passing out of the cadets as possible, furnish to the Commanding Officer, Cadets' Training Ship and the Controller of Defence Accounts (Navy), a list of successful cadets. On receipt of this list, the amount shall be drawn by the Commanding Officer from the Ship's Imprest.

(2)

A further grant of Rs. 1,000 for the same purpose, shall be admissible to each cadet on his promotion to Acting Sub-Lieutenant.

69.

Officers granted Short Service Commissions.

(1)

A grant of [Rs. 1,400]

[Substituted by S.R.O. 9-E, dated 19th March, 1974]

shall be placed at the disposal of the Commanding Officer, Indian Naval Ship Venduruthy in respect of each candidate appointed to a short service commission in the Indian Navy, to enable him to make payments required for essential articles of uniform for the initial kitting up of the officers.

(2)

The unexpended portion of the uniform allowance shall be carried forward from the accounts in that behalf in one ship or establishment to another, until the entire period of training is completed by the concerned officer and the balance, if any, shall be paid to him.

70.

Other regular Commissioned Officer.

- A grant of [Rs. 2400]

[Substituted by S.R.O. 19(E) dated 23rd October, 1986]

shall be admissible to every regular Commissioned Officer (other than those covered in regulations 68 and 69) on first appointment in the Indian Navy whether on probation or not, to meet the cost of the uniform :

Provided that the grant of [Rs. 2400]

[Substituted by S.R.O. 19(E) dated 23rd October, 1986]

under this regulation shall not be admissible to short service commission officers and Cadet Entry Officers whose claim to outfit allowance, on getting regular commissions, shall be governed by regulations 68 and 69 respectively.

Outfit Allowance-Renewal Of

71.

Eligibility.

- All officers in receipt of pay and allowances under these regulations shall receive a fresh outfit allowance of [Rs. 2100]

[Substituted by S.R.O. 19(E) dated 23rd October, 1986]

after every seven years of effective service commencing from the date of first commission subject to the provisions of regulation 72.

72.

Dates for Eligibility for renewal of outfit allowance.

(1)

In the case of officers (other than those of erstwhile Branch List) who had completed 7 years of effective service on the 1st April, 1948 and had received a fresh outfit allowance on that date, the period of seven years for a further grant shall reckon from the 1st April, 1948.

(2)

In the case of General List Officers promoted from the erstwhile Branch List, the fresh outfit allowance shall be admissible after 7 years' from the date on which they last drew outfit allowance as Branch List Officers.

(3)

In the case of officers on the Special Duties List, the fresh outfit allowance shall be granted on completion of 7 years, effective service commencing from the date of promotion to the Special Duties List or the erstwhile Branch List, as the case may be.

73.

Officers on leave pending retirement not eligible.

- The outfit allowance referred to in regulation 72 shall not be admissible to those who at the time of completing the

period of seven years are on leave pending retirement.

74.

Officers on sick leave or awaiting re-categorisation.

- In the case of officers who are on sick leave or are sick in hospital pending categorisation of their medical category at the time of completion of seven years, the allowance shall not be paid until they return to duty. Officers who are medically categorised as 'E' shall not be eligible for the allowance.

75.

Computation of the period of seven years.

- The period of seven years' effective service referred to in regulations 71 and 72 shall include all commissioned service (and service in the erstwhile Branch List when applicable) rendered on the active list in the Indian Navy separately or as a short service commission officer or as an officer of the Indian Naval Reserve or as a Regular Permanent Commissioned Officer collectively.

76.

[Officers on deputation to civil posts in Central/State Governments.

[Substituted by S.R.O. 19(E), dated 23rd October, 1986]

(1)

"Officers on deputation to civil posts in Central/State Governments, except in the case of officers deputed to Intelligence Bureau, Ministry of Home Affairs, who have to wear Service Uniform frequently, though not all the time."]

(2)

The entire cost of the outfit allowance shall be debitable to the estimates of the Union Ministry or State Government under which the officer is employed at the time the allowance becomes due for payment.

77.

Officers under arrest, suspension and the like.

- The claims for renewal of outfit allowance in respect of officers who are under arrest, suspension or on trial at the time the allowance becomes due, shall be settled only when the final result of proceedings relating thereto becomes known.

78.

Certificate for claiming allowance.

- All claims for the renewal of outfit allowance shall be supported by a certificate that the amount shall be spent on the renewal of the uniform.

Special Outfit or Uniform Allowance

79.

Admissibility.

(1)

A special non-recurring uniform allowance of Rs. 500 shall be admissible to officers, on the personal staff of the Chief of the Naval Staff to provide themselves with the prescribed special uniform.

(2)

Such allowance shall be admissible only to those who are likely to complete eighteen months in the appointments specified hereunder:

(a)

Secretary to the Chief of the Naval Staff;

(b)

Flag Lieutenant to the Chief of the Naval Staff.

Tropical Working Dress for Air Crew Officers and Officers Employed on Engineering, Radio, Radar and Electrical Duties

80.

Eligibility for and amount of the allowance.

- An allowance up to a maximum of Rs. 90 in the case of Air Crew Officers and Rs. 70 in the case of those employed on Engineering, Radio, Radar and Electrical duties which require them to work on or in an aircraft shall be admissible to officers who have specialised as Pilots (P), Observers (O), Air Engineering Officers (A/F.), Air Electrical Officers (A/1.), Ind. Air Radio and Radar Officers (A/R) and who are under training for those specialisations, for the purchase of the following items of clothing as tropical working dress:

Item

Numbers

Cap

Covers, Khaki

3

Shirts,

Khaki

6

Shorts,

Khaki

3

Flying

Overalls, Khaki or White

2

Stocking,

Khaki-Pair

4

Shoes,

Brown Leather-Pair

1

Note 1. - The allowance shall be treated as a supplementary grant and shall not be renewable after seven years under regulation 71.

Note 2. - Flying overalls, khaki or white, are meant for the use of officers employed on Air Crew duties only.

Initial, Fresh and Special Outfit Allowance-When Refundable

81.

Refund of allowances on failing to serve 2 years after withdrawal.

(1)

An officer to whom the outfit allowance has been paid under regulations 70 and 71 and who fails to serve in the Navy for a period of 2 years shall be required to refund 25 per cent of the outfit allowance for every period of six months or part thereof by which his service falls short of two years.

(2)

The refund, may however, be waived in whole or in part, at the discretion of the Chief of the Naval Staff if the failure to complete the said period of service for 2 years is due to death, invalidation through causes beyond the officer's own control, or other special circumstances.

82.

Refund from a short service commission officer.

(1)

If a short service commission officer is discharged from the service or is permitted to resign during initial training, any unspent balance of uniform allowance drawn under regulation 69 shall be refunded to the Central Government and the items of uniform already provided to the officer shall be withdrawn from him and disposed of by sale, and the proceeds shall be credited to the Central Government.

(2)

If such officer is discharged from service or is permitted to resign after completion of initial training, the refund of uniform allowance shall be in accordance with the provisions contained in regulation 81.

83.

Refund of special uniform allowance.

- Officers to whom the special uniform allowance under regulation 79 has been paid and who leave the appointments specified in sub-regulation (2) thereof before completing eighteen months therein shall be required to refund half the allowance if they fail to complete one year of service, or a quarter of it if they serve for an year or more but less than eighteen months, in such appointments.

Personal Pay--Pre-1936 Officers

84.

Admissibility and rates.

- Officers who were in service as such or who were undergoing initial training in the United Kingdom on the 1st July, 1936, shall in addition to the rates of pay laid down in regulation 4, be entitled to personal pay which is regulated in accordance with their ranks as follows :

Rs.

p.m.

Lieutenant

Commander

Commander

Captain

Commodore

Rear-Admiral

200/-

250/-

250/-

300/-

350/-

Explanation. - The personal pay shall be regarded as "pay for all purposes" and shall be drawn in addition to pay of rank.

Qualification Pay and Grant

85.

Admissibility.

- Officers of the rank of Commander and below, including Special Duties List Officers, who have completed two or more years of commissioned service, possess the prescribed qualifications and are in receipt of pay under regulation 4, shall be eligible for qualification pay or grant at the rates and under the conditions laid down in these regulations.

86.

Qualifications.

- The qualifications referred to in regulation 85; the acquisition of which entitles the officers to qualification pay or grant; are listed in Appendix VIII. These qualifications are subject to review and the qualification pay or grant in respect of a particular qualification shall be admissible only so long as such qualification is recognised for the purpose.

87.

[Rates.

[Added & Inserted by S.R.O. 132, dated 9th May, 1989]

(a)

The qualification pay shall be admissible to the officers as follows:]

(i)

Higher rates of qualification pay : Those possessing the qualifications listed in Section II of Appendix VIII. -

Rs.

125/- p.m.

(ii)

Those possessing the qualifications listed in Section I of Appendix-VIII

Rs.100/-p.m.

(iii)

Lower rate of qualification Pay : Those possessing the qualifications listed in Section III of Appendix-VIII

Rs.

70/-p.m.

(b)

A lump-sum qualification grant shall be admissible to the

officers as follows :

(i)

Those possessing the qualifications listed in Section IV of

Appendix-VIII

Rs.

6000/-

(ii)

Those possessing the qualifications listed in Section V of

Appendix VIII

Rs.

4500/-

(iii)

Those possessing the qualifications listed in Section VI of

Appendix-VIII

Rs.

2400/-

(iv)

Those possessing the qualifications listed in Section VII of

Appendix-VIII

Rs.

1600/-

NOTE 1. The officers who were already in receipt of qualification pay (including those who were eligible for it but did not receive the said pay on or before the 31st March, 1975, shall be allowed to draw the qualification pay for a period of 10 years from the date of commencement of drawal of qualification pay subject to the condition in Note 2, or till they become ineligible for it due to promotion or otherwise, whichever is earlier.

NOTE 2. After the period of 10 years referred to in Note 1 has expired, the qualification pay shall be treated as personal pay and shall be absorbed against allowance due, if any, from or after the 1st March, 1976.

NOTE 3. In the case of officers who were initially granted qualification pay at the lower rate and who were later on granted qualification pay at the higher rate, the period of 10 years shall count from the date they began to draw the latter rate.

NOTE 4. In the case of Officers who were eligible for higher or lower rates of qualification grants on possession of the qualifications under the existing orders but did not receive the same on or before the 31st March, 1975 shall be allowed to draw the same at the rates of Rs. 2,400/- and Rs. 1,600 for higher and lower qualifications, respectively.

NOTE 5. With effect from the 1st April, 1975, an officer who first acquired a lower qualification and later on a higher qualification, shall be entitled to the difference. between the two grants on acquisition of the later qualification.

88.

Officer possessing more than one qualification.

(1)

An officer can draw only one rate of qualification pay and if he is in possession of qualifications entitling him to qualification pay both at the higher and the lower rates; he shall draw only the higher rate of qualification pay.

(2)

An officer who has drawn a lump sum grant in respect of a qualification and who subsequently acquires a new qualification, entitling him to a qualification pay or grant, shall commence to draw the qualification pay or shall be allowed to draw the new lump sum grant, as the case may be, on the expiry of a period of two years from the date on which he drew the previous grant.

(3)

[An officer, who within two years of having drawn the lower rate of qualification grant acquires a qualification entitling him to the higher rate of qualification pay, shall be allowed to draw the difference between the higher and the lower rate of qualification pay till the expiry of two years after the drawal of the qualification grant. He shall be allowed the higher rate of qualification pay thereafter.]

[Inserted by S.R.O. 9(E), dated 19th March, 1974]

89.

Non-eligibility for certain categories of qualifications.

- An officer shall not be eligible for qualification pay or grant in respect of

(a)

any qualification which was the minimum required for the entry of that officer in commissioned rank; or

(b)

any qualification acquired before being commissioned in consideration of which a concession in the form of ante-date of seniority, accelerated promotion or special rate of pay or allowance, has been given; or

(c)

any qualification by merely getting membership of societies or associations by merely paying subscription or by efflux of time.

90.

Effective date of acquisition of qualification for the purpose of qualification pay.

- The date of acquisition of a particular qualification shall be the date of Successful completion of the course, or declaration of result of the diploma or degree examination or date of conferment of membership or associate membership, as the case may be.

91.

Effect of change in the prescribed qualifications.

(1)

If a qualification entitling an officer to qualification pay or grant is omitted from the list given in Appendix VIII, the qualification pay or grant in respect of that qualification shall cease to be admissible from the date of issue of the order omitting that qualification and no protection of such qualification pay or grant shall be available thereafter.

(2)

Qualification pay shall also cease to be admissible in respect of a qualification from the date of issue of orders downgrading it to a qualification for which only a lump sum grant is admissible, and no protection of such qualification pay shall thereafter be available; and in that case the amount, if any, by which the total of the qualification pay drawn up to the said date falls short of the lump sum grant attached to the qualification on its downgrading shall become admissible as a grant to the officer.

(3)

Whenever new qualifications carrying qualification pay are included in the list given in Appendix VIII, the entitlement to qualification pay shall commence from the date of issue of the relevant orders, irrespective of when the new qualification was acquired by the persons entitled in the past.

(4)

If new qualifications with entitlement for a qualification grant are added to the list in future, the grant shall be admissible only to those who acquire such qualifications after the issue of the relevant orders.

92.

Qualification Pay is pay for all purposes.

- Qualification pay shall be treated as "pay for all purposes".

[Separation Allowance

[Inserted & Substituted by S.R.O. 9-E, dated 19th March, 1974]

92.

-A. Eligibility.

(1)

All married officers serving on board Indian Naval Ships, when the ships are away from the base port, shall receive separation allowance at Rs. 70 per mensem. The allowance shall be admissible to officers on casual leave availed of when the ship is away from the base port, but not on any other leave.

(2)

Separation allowance shall not be admissible in addition to daily allowance.

Explanation 1. - For the purpose of this allowance, the definition of the term "married officers" shall be as laid down in regulation 47.

Explanation 2. - The said allowance shall be calculated on a proportionate basis for periods of less than a month, but

shall not be admissible for ships' absence from the base port for a period of less than 12 hours. The period shall be calculated from the time a ship leaves the base port till its return or arrival in the base port.]

Survey Bounty and Survey Allowance

93.

Eligibility.

- Officers of the executive branch, employed on survey duties, shall receive survey allowance and survey bounty at the rates and under the conditions specified in these regulations.

94.

Rates for officers other than those who opt to be governed by the rules in force prior to 1st October, 1959.

- Officers other than those who have opted to be governed by the rules in force prior to the 1st October, 1959, shall receive survey allowance and survey bounty at the rates shown in the following table :-

Category

of Officers

Survey

Allowance Rs. per mensem

Survey

Bounty Rs. per mensem

4th

Class Assistant Surveyor

50

850 minus survey

allowances received during the period involved.

3rd

Class Assistant Surveyor

60

950 minus survey

allowances received during the period involved.

2nd

Class Assistant Surveyor

85

1,350 minus survey

allowances received during the period involved.

1st

Class Assistant Surveyor

100

1,850 minus survey

allowances received during the period involved.

Charge

Lieutenant

Commander

Commander

100

1,800 minus survey

allowances received during the period involved.

Captain

Nil

1800

Explanation. - An officer who is promoted from one survey class to another during the course of a survey year, shall be eligible for the grant of the survey allowance and bounty at the appropriate rate for the period for which each class is held.

95.

General conditions of admissibility for officers other than those who opt to be governed by the rules in force prior to 1st October, 1959.

(1)

The grant to such officers, of survey allowance shall be subject to the following conditions :

(a)

The allowance shall be admissible to officers of the rank of Commander and below only, both serving ashore and afloat from the date of their getting the minimum grade of 4th Class Assistant Surveyor.

(b)

The Allowance shall be credited in the individual Pay Accounts of the officer at the prescribed rates every month for the actual period he is employed on survey duties, irrespective of the month of the survey year in which he joins the survey duties.

(c)

No other qualification pay shall be admissible in addition to survey allowance while an officer is employed on survey duties.

(d)

The allowance shall cease to be admissible on the reversion of the officer from Survey to general branch.

Explanation 1. - An officer must complete a probationary period of 3 months from the date of joining the Survey branch afloat or ashore under training in hydrography before he can be graded as IVth Class Assistant Surveyor.

Explanation 2. - Survey allowance shall be treated as pay for all purposes.

(2)

The grant of survey bounty shall be subject to the following conditions :-

(a)

The bounty shall be paid annually in arrears in respect of each survey year.

(b)

For eligibility to survey bounty, an officer must have been employed in survey ships on field duties for a minimum periods of 75 days in the survey year.

(c)

Full survey bounty shall be payable only if an officer has done a minimum of 150 days on field duties; for periods ranging from 75 to 149 days, only proportionate bounty shall be admissible to officers of the rank of Commander and below.

(d)

The full survey bounty of [Rs. 2000]

[Substituted by S.R.O. 19(E), dated 23rd October, 1986]

per annum shall be admissible to officers of the rank of Captain subject to the fulfilment of the basic condition of employment on field duties for a minimum period of 150 days in the survey year. No proportionate bounty shall be admissible to a Captain who fails to put in the minimum qualifying period of 150 days on field duties.

(e)

An officer of the rank of Commander and below who is appointed to the General Service during the course of a survey year and vice versa, shall be entitled to proportionate bounty, in arrears, at the end of the survey year, provided he fulfils the condition in clause (b). In such cases, the proportionate bounty shall be calculated on the basis of the period for which an officer is actually employed on survey duties, as also of the number of days of service rendered by him on field duties in the survey year.

(f)

If an officer, on being appointed to the General Service, does not resume survey duties during the survey year, he shall be treated as a fresh entrant for the purpose of further entitlement to survey bounty.

(g)

The officer's work in the survey year must be certified to have been satisfactory by the Chief Hydrographer.

Explanation 1. - The expression "survey year" means the period from the 1st October of a year to the 30th September of the following year.

Explanation 2. - The total amount of a survey allowance drawn by an officer in the Survey Branch whether on field duty or not together with the survey bounty shall, in no case, exceed the annual rates of survey bounty payable to such officer in accordance with regulation 94.

Explanation 3. - Survey bounty shall be taken into account for determining the rates of compensatory (city) and dearness allowances.

96.

Rates-Officers who opt to be governed by the rules in force prior to 1st October, 1959.

- Officers who have opted to be governed by the rules in force prior to the 1st October, 1959, shall receive survey bounty at the rates shown in the following table:

Category of Officers	Rs. per annum
4th Class Assistant Surveyor	3rd Class Assistant Surveyor
750	2nd Class Assistant Surveyor
12,00	1st Class Assistant Surveyor
1860	Charge Lieutenant
1,680	Commander
1,800	Commander
1,800	Captain

Explanation 1. - An officer must complete a probationary period of 3 months from the date of joining the Survey branch afloat or ashore under training in hydrography before he can be graded as IVth Class Assistant Surveyor.

Explanation 2. - An officer who is promoted from one survey class to another during the course of a survey year, shall be eligible for the grant of the bounty at the appropriate rate for the period for which each class is held.

97.

General conditions of admissibility for officers who opt to be governed by the rules in force prior to 1st October, 1959.

- The grant of survey bounty under regulation 96 shall be subject to the following conditions :

(a)

The bounty shall be paid annually in arrears in respect of each survey year.

(b)

It shall be admissible to an officer who has been employed on survey duties throughout the survey year in question.

(c)

The officer must have been employed in survey ships on field duties for a minimum period of 150 days in the survey year.

(d)

An officer who is appointed to the General Service during the year, shall be entitled to proportionate bounty, in arrears, at the end of the survey year, provided he fulfils the condition in clause (c); and if he does not resume survey duties during the survey year, he shall be treated as a fresh entrant for the purpose of further entitlement to survey bounty.

(e)

The officer's work in the survey year must be certified to have been satisfactory by the Chief Hydrographer.

Explanation 1. - The term "survey year" constitutes the period from the 1st October of a year to the 30th September of the following year.

Explanation 2. - Survey bounty shall be taken into account for determining the rates of dearness allowance.

Authority for this section may be seen in the Concordance

[Flying Pay]

[Substituted & Omitted by S.R.O. 19(E), dated 23rd October, 1986]

98.

Admissibility.

- Officers of the Aviation Branch who have specialised as Pilots (P) and Observers (O) and fall within authorised Cadres of Pilots and Observers shall, in addition to their normal pay and allowances, receive a flying pay at the rates given in regulation 100. This will be treated as pay for all purposes, except for pension and gratuity. The flying pay shall be admitted on rendition of a certificate to the Supply Officer-in-Charge, Naval pay Office, Bombay as given below:

Note 1. - Officers in receipt of flying pay in terms of regulation 54 for the period of training shall continue to be governed by those provisions.

Note 2. - Flying pay will be admissible for the period of annual leave portion of the leave pending retirement. Rendition of the certificate as required above will not be necessary for the drawal of flying pay during annual leave portion of leave pending retirement.

Flying pay certificate

(To be rendered at the end of quarters ending 31st March, 30th June, 30th September and 31st December) Certified that (Rank)..... (Name)(Personal No.).....

Branch

(a)

has made adequate use of flying facilities provided to him and has maintained an acceptable level of proficiency; or did not have any facilities or opportunity to fly, but is capable of flying on return to flying duties;

(b)

has complied with the requirements prescribed in regulation 101;

(c)

has obtained additional life insurance coverage against all risks, including flying, through the Group Insurance (Naval) Scheme for the minimum amount of Rs. 2 lakhs.

(d)

has not been declared permanently medically unfit for flying duties. Commanding Officer/Superior Officer.

99.

[* * *]

[Substituted & Omitted by S.R.O. 19(E), dated 23rd October, 1986]

100.

[Rates.

(1)

The rates of Flying Pay admissible to officers are as given below :

Commander

and below

Rs.

750.00 p.m.

Captain

Rs.

666.00 p.m.

Rear

Admiral and above

Rs.

600.00 p.m.

(2)

Admissibility and its conditions.-Flying pay at the above rates will be admissible subject to an additional life insurance cover against all risks for a minimum amount of Rupees Two Lakhs being taken by the concerned officer through Group Insurance (Naval) Scheme, Survival benefits to the officer under the above Insurance Scheme a admissible will also be

payable on retirement release.

101.

[Requirement of an Assurance Policy Coverage.

[Substituted by S.R.O. 9-E, dated 19th March, 1974]

(1)

An officer of the Aviation Branch who has become qualified as pilot or observer on or after the 16th December, 1967 shall be required to take out, and keep alive, endowment assurance policy/policies, or alternatively convertible life policy/policies, with definite conversion into endowment, with the Life Insurance Corporation of India covering aviation risk also, for a period of at least 20 years, the sum assured being not less than Rs. 25,000 and the average monthly premium payable for the first 20 years being not less than Rs. 150. His eligibility for [Flying pay]

[Substituted & Omitted by S.R.O. 19(E), dated 23rd October, 1986]

for the first 20 years of his commissioned service shall be subject to the fulfilment of this requirement. A Life Insurance Policy taken out by the officer or by his parent/guardian in his favour, during training as officer or cadet (including the period as a cadet in the National Defence Academy) which fulfils the above mentioned requirements will also be acceptable for this purpose. The fulfilment of the above requirement will be verified and certified by the authority prescribed by Naval Headquarters for the purpose when the policy is initially taken out or if it has already been taken out when the officer becomes eligible for [Flying pay]

[Substituted Added & Omitted by S.R.O. 19(E), dated 23rd October, 1986]

. Thereafter the authority prescribed by Naval Headquarters will verify and certify at the close of each financial year that the policy has remained alive and unencumbered. As and when any of those policies mature, the officer shall subscribe the difference between Rs. 150 p.m. and the monthly premium of the current policy if any to the D.S.O.P. Fund over and above compulsory minimum rate of subscription payable under the rule.

[Note. - The sum assured under the Group Insurance scheme and the contribution made thereunder will also reckon towards the minimum prescribed insurance of Rs. 25000 and the average monthly premium of Rs. 150 for the purpose of grant of enhanced rates of Flying Pay.]

[Substituted Added & Omitted by S.R.O. 19(E), dated 23rd October, 1986]

(2)

An officer of the Aviation Branch commissioned on or after the 1st December, 1959 but before the 16th December, 1967 shall be required to take out and keep alive, such additional endowment assurance policy or alternatively convertible life policy with definite conversion into endowment with the Life Insurance Corporation of India covering aviation risk also, which together with such policies already taken out by him with the life Insurance Corporation of India and/or the Postal Life Insurance will give him a cover of Rs. 25,000 upto at least the expiry of 20 years from the date of commissioning in the aviation branch and the total average premium or premia payable for all would come to Rs. 150 p.m. or more. Therefore, as and when any of the policies mature, the officer shall subscribe the difference between Rs. 150 p.m. and the monthly premium of the current policy/policies, if any, to the D.S.O.P. Fund over and above the compulsory minimum rate of subscription payable under the rules.

(3)

An officer serving in the aviation branch from a date prior to 1st December, 1959 shall subscribe to the D.S.O.P. Fund, in addition to the compulsory minimum rate of subscription prescribed under the rules, a sum which when added to the insurance premium paid by him for the endowment assurance, or convertible life policy/policies with the definite conversion to endowment (Life Insurance Corporation of India as well as Postal Life Insurance Fund) total Rs. 150 p.m.

(4)

A Regular Officer Aircrew shall be required to subscribe to the D.S.O.P. Fund the difference between Rs. 150 p.m. and the amount of premia paid by him monthly for sustaining endowment assurance policy/policies or convertible life assurance policy/policies with definite conversion to endowment with Life Insurance Corporation of India and/or Postal Life Insurance Fund, in addition to the compulsory minimum rate of subscription payable under the normal rules.]

102.

&103.

[* * *]

[Substituted Aded & Omitted by S.R.O. 19(E), dated 23rd October, 1986]

[104-A. Test Pilot Allowance to Naval Aviation Officers. - Test Pilot Allowance of Rs. 250/- per month shall be admissible

to the qualified Test Pilots of the Navy, while they are on posted strength, posted supernumerary or on attachment to any unit for carrying out test flying duties in the Navy so long as the sanctioned establishment of test Pilots is not exceeded.

The Test Pilot Allowance shall be treated as an allowance and not as a part of pay at any time and shall continue to be admissible to Test Pilots during the period of their annual leave and also during the period of temporary duty/attachment, provided the period of such temporary duty/attachment does not exceed three months and that they are likely to resume test flying duties after completion of temporary duty/attachment. Test Pilot allowance shall also be admissible during the period of courses of instructions provided they come back to the test flying duties on completion of the course. In case a Test pilot seeks premature retirement, he shall draw test pilot allowance for the period equivalent to his entitlement of annual leave alone, if due, during leave pending retirement.]

[Inserted by S.R.O. 132, dated 9th May, 1989]

Submarine Allowance

105.

Admissibility and rates.

(1)

Submarine allowance at the following rates shall be admissible to officers attached for training to, or for exercises in a submarine:

Rank

Daily

rate Rs.

Monthly

ceiling Rs.

Commander

7/-

200

/-

Lieutenant

Commander

5/-

150

/-

Lieutenant

3.5

/-

100

/-

Sub-Lieutenant

2.5

/-

75/-

(2)

The allowance shall not be admissible for the period of absence from the submarine for more than three consecutive days.

Explanation. - if the absence from the submarine is not more than 3 consecutive days but is intermittently for more than fourteen days in a month, the allowance shall not be admissible for the period of such actual absence.

(3)

[The allowance shall not be admissible in addition to submarine pay.]

[Inserted by S.R.O. 9-E,d ated 19th March, 1974]

[Submarine Pay]

[Inserted by S.R.O. 9-E, dated 19th March, 1974]

105.

-A. Admissibility and rates.

(1)

Submarine pay at the following rates shall be admissible to officers qualified for service in submarine and appointed as part crew or spare crew and also to those officers who are otherwise qualified for submarine service and hold appointments which require them as part of their normal duties to go to sea in submarine from time to time, namely:

["TABLE

[Omitted, Substituted & Added by S.R.O 19(E), dated 23rd October, 1986]

Rank

Amount

per month

Captain

Rs.

550/-?

Commander

Lieutenant

Commander

Lieutenant

Sub-Lieutenant

(2)

Submarine pay shall be treated as pay for all purposes.

(3)

Submarine pay shall not be admissible in addition to submarine allowance.

(4)

Submarine pay shall cease to be admissible when an officer

(a)

remains medically unfit for service in submarines for a period exceeding three months;

(b)

fails to maintain the requisite standard of efficiency for submarine service as determined by the Chief of the Naval Staff;

(c)

is transferred to a General Service appointment.]

"(5) Submarine pay at the above rate will be admissible subject to an additional life insurance cover against all risks for a minimum amount of Rupees Two Lakhs being taken by the concerned officer through Group Insurance (Naval) Scheme. Survival benefits to the officers under the above insurance scheme as admissible will be payable on retirement/release";

Wardroom Messing Allowance in Respect of Upper Yardmen

106.

Admissibility.

- When Upper yardmen of the various branches are messed in a wardroom mess, the mess shall be reimbursed by the Government at a flat rate of Rs. 3.50 p per head per diem; but normal rations shall not be admissible to them for the periods during which this allowance may be claimed by the mess.

Mess-In-Aid to Midshipmen Under Training in Indian Naval Ships

107.

Admissibility.

- When required to mess in wardroom messes, whether a shore or afloat, aid in messing at Re. 1 per diem shall be admissible to all midshipmen of the Indian Navy undergoing initial training in Indian Naval ships or establishments.

Allowance for the purchase of text books and instruments to subordinate officers of the electrical branch during training in the United Kingdom

108.

Admissibility.

- Subordinate officers of the Electrical branch who are sent to the United Kingdom for training and who attend a University or any other Technical Institution, shall be granted an allowance for the purchase of text books and instruments as shown below, so long as a similar concession is admissible to the officers of corresponding rank in the

Royal Navy.

(a)

For the first year at the University or other Technical institution

£20

(b)

For each of the subsequent years Training Camp Allowance

£10

109.

Admissibility.

(1)

A training camp allowance at the rate of Rs. 6 per diem shall be paid to officers of the Indian Navy on the permanent staff of units of the Senior and Junior Divisions of the National Cadet Corps or of the Auxiliary Cadet Corps, during the period of training in National Cadet Corps camps or cruises or Auxiliary Cadet Corps training or term-end camps.

(2)

Such allowance shall also be paid to other officers of the Indian Navy who may be detailed by the various authorities for duty at the National Cadet Corps camps or cruises or Auxiliary Cadet Corps camps.

110.

Conditions of admissibility.

(1)

The issue of this allowance is conditional

(i)

the officer actually living, messing and sleeping in camp or on board a ship;

(ii)

the administrative authority being satisfied that it is necessary and certifies to that effect.

Note. - Where the required certificate cannot be obtained from the authority mentioned in clause (ii) on account of the camp being held at a place where no Naval Authority is stationed or in cases where such camps are run under the direct control and supervision of the National Cadet Corps Directorate, the Director, National Cadet Corps shall be competent to issue such certificates in individual cases.

(2)

No daily allowance under travel regulations for the Navy or any other subsistence allowance shall be admissible to an officer who claims training camp allowance under regulation 109.

Allowances admissible to cadets of the Indian Navy while undergoing training in the training ship

111.

Allowances to Cadet in the training ship.

(1)

Cadets of the Indian Navy while undergoing training in the training ship shall be entitled to

(a)

board and lodging at Government expense in service messes;

Note. - In respect of compulsory expenditure incurred by cadets in consequence of living in a mess, for example, mess subscription and or mess shares reimbursement shall be made up to a maximum of Rs. 5 per mensem per cadet to the mess.

(b)

a sum of Rs. 20 per mensem per cadet to meet miscellaneous expenditure which shall be placed at the disposal of the Commanding Officer;

(c)

[Financial assistance at Rs. 55 per mensem only in the case of cadets whose parents or guardians have an income of less than Rs. 450 per mensem;

[Substituted & Inserted by S.R.O. 19(E), dated 23rd October, 1986]

Note:-In case where the parents draw income from Central/State Governments, no financial assistance shall be admissible;]

(d)

reimbursement of actual expenditure on account of dhobi charges subject to a maximum limit of Rs. 15 per mensem which shall be placed at the disposal of the Commanding Officer who shall ensure that the amount is spent for the purpose for which it is intended; and washing should be done under the arrangements made by the Commanding Officer.

Children Education Allowance

[111-A. Eligibility.

[Substituted & Inserted by S.R.O. 19(E), dated 23rd October, 1986]

- Officers who have rendered not less than one year's service and whose pay does not exceed Rs. 1200 p.m. will receive the Children Education Allowance at the rates and under the conditions prescribed in the succeeding regulations 111B and 111C.]

Note - Pay for this purpose will be as defined in regulation 35.

111.

-B. Rates.

- The allowance will be admissible at the following rates :-

(a)

Primary Classes :

(Class I to V) Rs.15 p.m. per child

(b)

Secondary and Higher Secondary Classes :

(From Class VI upto the stage entry into three year's degree course)Rs. 20 p.m. per child.

The total allowance admissible to an officer at any one time shall not exceed Rs. 60 p.m.

NOTE : Primary classes do not include kindergarten and infant classes.

111.

-C. Conditions.

- The allowance will be admissible only in those cases where an individual is compelled to send his child or children to a school away from the station at which he is posted and/or is residing, owing to any of the following :

(i)

The absence of a school or schools of the requisite standard at that station.

Explanation 1. - An Indian school shall be held to be a school not of "requisite standard" for Anglo-Indian children and vice-versa. Similarly, if a child is prevented by the tenets of his religious persuasion, from attending a school run by a body of another persuasion, such school shall be held to be a school not of the "requisite standard". Also if the teaching in a school is conducted in a language different from the language of the officer, the school shall be held to be a school not of the requisite standard.

Explanation 11. - If an officer is transferred from a station where there is no school of the requisite standard to a station where there is such a school and if he was in receipt of the allowance at the former station in respect of any child or children, he shall remain eligible for such allowance until the close of the academic year of the school in which his child or children was/were studying at time of his transfer, provided he/they continues/continue to study for that period in that school.

Explanation III. - If a child of an officer is denied admission to a school of the "requisite standard" at the station at which he is posted and or residing, because of there being no vacancy, or for any other reason and the child is, therefore, compelled to attend the school away from his place of duty and/or residence, he shall be entitled to the allowance, as if there were no schools of the requisite standard at that station.

Explanation IV. - At a station where there is no school of the requisite standard, the allowance will not be admissible if the nearest school is so situated that there is a convenient train or bus service to take the child or children near the time of opening of the school and bring them back not too long after the school is closed and the journey each way does not take more than an hour, where these conditions are not fulfilled, the allowance will be admissible irrespective of distance of the school from station at which the officer is posted and/or residing.

(ii)

Posting to a field station.

(iii)

Posting to a sensitive area where families are specifically debarred from living with the head of the family.

111.

-D. Where the allowance is claimed, the officer commanding of the unit/formation, will furnish the following certificate(s) to accompany the claims.

-(41) Non-availability of a school of the requisite standard at the place of posting, or availability of school of requisite standard at a station of posting, but denial of admission therein on the basis of information obtained from the educational authorities.

Or

(b)

Location of the unit in a field/sensitive area where families are specifically debarred from living with the head of the family";

[111-E. Admissibility during training in India.

[Inserted by S.R.O. 132, dated 9th August, 1989]

- When officers proceed on training in India, for a period not exceeding 180 days, their eligibility to the allowance shall continue to be determined with deference to their place of posting from where they proceed on training. Where, however, the period of training exceeds 180 days the admissibility to the allowance during the period of such training shall be determined with reference to the place of training treating it as their place of posting during that period."]

[111-F. Reimbursement of tuition fee

[Inserted by S.R.O. 132, dated 9th August, 1989]

- All officers irrespective of the pay, shall receive reimbursement of tuition fee at the rates and under the conditions applicable to civilian Government servants paid from the Defence Services Estimates.]

[111-G. Hostel Subsidy.

[Inserted by S.R.O. 132, dated 9th August, 1989]

- Officers, who on account of their transfer are obliged to keep their children in the hostel of a residential school away from the station at which they are posted and/or are residing, shall be entitled to hostel subsidy at the rates and under the conditions as applicable to Central Government Civilians Servant', paid from the Defence Service Estimates".]

Chapter V

Leave Allowances

112.

Commencement and cessation of leave allowances.

(1)

The leave allowances payable to an officer on leave in India or ex-India shall commence from the date on which he hands over charge of or relinquishes his duties and shall cease when he resumes his duties on return from leave.

(2)

If a recognised holiday or holidays (such as Sunday, Republic Day and the like), immediately precede the day on which the leave begins, or follow immediately the day on which the leave terminates, an officer may have his station at the close of the day preceding such holiday or holidays; or return to the station at the end of such holiday or holidays; and he shall be entitled to draw full pay during such holiday or holidays, provided that suitable arrangements are made for handing over or taking charge of duties and no extra expense to the Central Government is caused.

113.

Extension or overstayal of leave.

(1)

The right to receive the leave allowances admissible on casual leave or annual leave is contingent on the return to duty of the officer within the period of leave granted; and if he fails to do so or if the period of absence is converted into other leave, his leave allowances shall be readjusted accordingly.

(2)

If an officer overstays his leave (except casual leave), no pay shall be admissible for the period of overstayal, unless an extension of leave to cover that period is granted by the competent authority.

(3)

An overstayal of casual leave in excess of the maximum period admissible shall involve the conversion of the entire spell of such leave into annual leave or furlough.

114.

Officers placed on duty while on leave.

- Officers detailed for duty or permitted to undergo voluntary courses of instruction while on leave (in ores-India) shall receive full pay and allowances during the period of such duty or courses.

115.

Annual leave on completion of temporary duty.

- When an officer leaves his own appointment on temporary duty and on completion thereof, proceeds on annual leave, he shall be deemed for the purpose of regulating his annual leave allowances, to have rejoined his own appointment from the date he proceeds on leave, provided that no extra expense is caused to the Central Government.

116.

Annual leave while on transfer.

- If, during the transit period before joining the new ship or establishment, an officer or transfer takes annual leave with the consent of the commanding officer or such ship or establishment he shall be proforma taken on the strength against the new appointment and shall be regarded as having proceeded on leave from the new appointment.

Rates and Conditions-Regular Officers

117.

Rates during casual leave.

- During casual leave which counts as duty, an officer shall receive the same emoluments as when at duty, provided that no extra expense to the Central Government is caused.

118.

Rates during annual leave.

- An officer shall be entitled to full pay of the rank held on the date he proceeds on leave, during annual leave or any portion of annual leave included in the sick leave.

119.

Rates during sick leave.

(1)

An officer placed on the "sick list concession" shall be treated as on duty and shall receive emoluments accordingly.

Explanation. - An officer falling sick while on duty or on casual leave taken by itself, shall be said to be on "sick list concession" provided that the total period of absence from duty does not exceed thirty days and the sickness is due to causes beyond his control. If the period of absence exceeds thirty days, the whole period will be converted into sick leave.

(2)

An officer proceeding on sick leave shall receive full pay of the rank held on the date he proceeds on leave if such leave is fora period of six months including the period of annual leave for the year; and if the annual leave for the year had been taken earlier, the period of full pay sick leave shall be reduced by a corresponding period.

(3)

Furlough rates of pay given in regulation 120 shall be admissible for periods of sick leave for which full pay is not due.

120.

Rates during furlough.

- Pay for furlough periods shall be 50 per cent of the pay of the rank held by the concerned officer on the date he proceeds on leave.

Explanation. - An case an officer is granted higher substantive rank during the period of furlough leave, he shall receive 50 per cent of the pay of that rank from the appropriate date, if it is more favourable than 50 per cent of the pay of the rank held at the time he proceeds on leave.

121.

Rates during leave on invalidation.

- An officer granted leave on invalidation shall be entitled to full pay of rank up to six months as laid down in sub-regulation (2) of regulation 119 and thereafter furlough rates of pay as laid down in regulation 120.

122.

Rates during leave pending retirement or resignation.

- An officer granted leave pending retirement or resignation colder the Leave Rules for the Services, Part II-Navy for the

time being in force, shall be entitled to pay during such leave as follows:

(a)

full pay of rank under regulation 119 during that portion of leave pending retirement or resignation which is represented by annual leave;

(b)

at furlough rates under regulation 121 during that portion of leave pending retirement or resignation which is represented by furlough;

(c)

at furlough rates as provided under clause (b) above during the remainder of leave pending retirement or resignation not covered by annual leave or furlough.

Explanation 1. - In the case of officers who are permitted to accept Government or private employment during the period of leave pending retirement, the leave allowances admissible during such period shall be restricted to the furlough rates of pay. Dearness allowance shall not, however, be payable on the furlough rates so admissible.

Explanation 2. - Officers who were in service as commissioned officers in the Indian Navy or undergoing initial training in the United Kingdom on the 1st July, 1936 and are granted leave pending retirement up to a maximum period of 12 months inclusive of any annual leave and furlough to their credit, shall be entitled to receive 75 per cent of pay of rank drawn on the date of proceeding on such leave rounded off to the nearest multiple of Rs. 5 plus such allowances, if any, as are admissible (under the conditions regulating such allowances) during portions of leave pending retirement referred to at clauses (b) and (c).

[122-A. Leave pending retirement.

[Inserted by S.R.O. 9-E, dated 19th March, 1974]

- Officers shall be eligible to opt for leave pending retirement for (i) the period shown in regulation 122 or (ii) four months leave with full pay and allowances, which will include annual leave due for the year in which they proceed on leave pending retirement. If annual leave or a portion thereof is availed of earlier in the year, the leave pending retirement will be correspondingly reduced.]

Rates and Conditions-Short Service Commission Officers

123.

Admissibility.

(1)

Short Service Commission Officers of the Indian Navy shall, during casual leave, annual leave, furlough and sick leave, be entitled to pay on the scale and under the conditions laid down in the regulations 117 to 120.

(2)

Short Service Commission Officers of the Indian Navy shall, during special leave and leave on termination of engagement, be entitled to full pay of the rank held on the date of proceeding on leave.

Explanation. - Officers who obtain employment, private or Government, during the terminal leave, shall be admitted one-half of their normal leave emoluments from the date of such employment.

Computation of Leave Allowances

124.

Admissibility of allowances during leave.

- The allowances which are classified as "pay for all purposes" shall be treated as part of pay for purposes of calculating leave allowances; as regards allowances which are not so classified, their admissibility during leave shall be governed by the respective regulations relating to such allowances.

[124-A. Encashment of leave entitlement of Officers who die while in service.

[Substituted by S.R.O. 132, dated 9th May, 1989]

- In the event of death of an officer while in service, the cash equivalent of pay and dearness allowance that the deceased officer would have got, had he gone on annual/accumulated leave, but for his death, due and admissible, on the date immediately following the date of death, shall be paid to the heirs.

Explanation. - The term 'Pay' for the above purpose shall be as defined in regulation 35 and shall also include submarine pay.]

Part III ? Sailors

Chapter VI

Rates and Rules Governing the Issue of Pay Rates of Pay

125.

Grouping of branches for pay of sailors.

- Sailors of various branches in the Indian Navy shall be grouped as under, for purposes of basic pay; and the rates of pay for these groups shall be as specified in Appendix IX.

Group'A' - All artificers and mechanics.

Group'B' - Matriculate Entry-Electrical and Radio Electrical sailors, [Medical Assistants]

[Substituted by S.R.O. 9E, dated March, 1974]

Signalmen and Telegraphists, Store Assistants and Writers.

Group 'C'--Seamen, Engine Room, Regulating, Stewards, Cooks, Topasses and Musicians.

Naval Aviation Sailors-Naval Airmen (Aircraft Handler), Naval Airmen (Safety Equipment), Naval Airmen (Photographer), Naval Airmen (Meteorological Observer), Naval Air Mechanics, Naval Air Ordnance Mechanics, Electricians' Mates (Air) and Electricians' Mates (Air Radio).

General Rules

Commencement of Pay

126.

Date of commencement of pay.

(1)

Sailors, apprentices and boys shall draw full pay according to their rate from the date of their enrolment; boys selected at recruiting centres for employment as enrolled sailors shall be deemed to have joined the Indian Navy from the date of enrolment by the Officer-in-Charge of the recruiting party.

(2)

The Naval Aviation sailors shall receive pay as laid down in Appendix IX from the date they qualify as such.

Increments of Pay

127.

Reckonable service for increments.

- All paid service, rendered by sailors shall count for purposes of increments; periods for which pay and allowances are forfeited in circumstances stated in regulation 133 do not reckon towards increment.

Explanation. - If during the currency of the leave granted, a sailor qualifies for a periodical increment of pay, he shall be entitled to the increased pay from the date of such qualification.

128.

Re-enrolled Sailors-Counting of previous service for increments.

(1)

A sailor re-enrolled in the Indian Navy shall be entitled to count towards increments only that portion of his previous service which he rendered, before discharge or release in the same or higher rate, under these regulations provided that-

(a)

the interval between the discharge or release and the re-engagement does not exceed one year;

(b)

he is not in receipt of pension;

(c)

he refunds the gratuity that he may have received on, or since, his discharge or release, in not more than thirty-six monthly instalments from his pay commencing from the date of his re-enrolment;

(d)

the service rendered by him prior to his release or discharge in a branch other than that in which he is re-enrolled shall not be reckoned for this purpose.

(2)

The pay of a sailor on re-enrolment shall be fixed in the following manner: -

(a)

where the minimum of the scale of pay applicable to the rate in which he is re-enrolled is equal to or higher than the maximum of the scale applicable to the rate held by him immediately before discharge or release, his pay on such

re-enrolment shall be fixed at the minimum of the new scale; and service for purpose of increments shall reckon from the date from which he is brought on to that scale;

(b)

where the Maximum of the scale of pay applicable on re-enrolment is equal to or less than the minimum of the scale applicable immediately before discharge or release and where the minimum and the maximum of the scale applicable on re-enrolment are lower than the minimum and the maximum respectively, of the scale applicable immediately before discharge or release, his pay in the new scale shall be fixed according to the total length of service previously rendered by him in the rate in which he is re-enrolled and in any higher rate held by him under these regulations and his future increments shall be given as from the date fixed on the basis of the said length of service;

(c)

in all cases other than those covered by clauses (a) and (b), if the scale applicable immediately before discharge or release, his pay in issue under the scale applicable immediately before discharge or release, his pay on re-enrolment in the new scale shall be fixed at the figure; if the scale applicable on re-enrolment does not include such figure, his pay shall be fixed at the next figure above, or, if there is no figure above, at the maximum of the new scale.

(3)

Increments on the new scale shall be given on the date on which they would have become due under the scale applicable immediately before discharge or release, except in those cases where the individual's initial pay on re-enrolment is equal to or higher than his pay plus one increment under the scale applicable immediately before discharge or release, in which case service for increment on re-enrolment shall count from the date of re-enrolment.

129.

Due dates for increments.

- [The annual increments will be allowed from the first of the month in which they fall due.]"

[Substituted & Inserted by S.R.O. 19(E), dated 23rd October, 1986]

130.

Withholding of increments.

- The Chief of the Naval Staff or any of the Commanding Officers, Indian Naval Ships or establishments, however, may at his discretion, direct an increment to be withheld in respect of a sailor whose efficiency or competency is, in his opinion, moderate or inferior, for a period of three months, six months, nine months or twelve months, as the case may be, depending on the circumstances of each case, from the date on which such increment becomes due, and he shall at the time of imposing such penalty, give orders in writing as to whether the withholding shall have the effect of postponing future increments.

Changes in Pay

131.

Pay on advancement.

- Sailors (including apprentices and boys) shall draw full pay according to their rates from their respective dates of advancement to such rates whether they are on leave or not. Paid service, if any, rendered in any higher rate previously held, shall also count for the purpose of fixation of pay.

Explanation. - In the case of sailors who are given a higher provisional rate on passing an authorised provisional examination and who are subsequently reverted for failure to pass the final examination or due to their withdrawal from the concerned course, the service rendered in the higher provisional rate shall not, on subsequent advancement, reckon as paid service for the purpose of the above regulation.

[131-A. Fixation of pay on promotion.

[Inserted by S.R.O. 19(E), dated 23rd October, 1986]

(1)

When a sailor is promoted to the next higher rank, a notional amount equal to one increment in the lower rank shall be added to the pay actually drawn by the individual on the date of his promotion and thereafter his pay fixed in higher the scale for the higher rank at the next higher stage.

(2)

The notional pay in respect of sailors stagnating at the maximum of the lower scale shall be arrived at by increasing the pay by an amount equal to the last increment in the lower scale before pay is fixed in the higher scale at the stage next above the notional pay under sub-regulation (1) above.

(3)

On promotion to the rank, Master Chief Petty Officer 11 Class, 'Good Conduct Badge Pay' shall also be added to the basic pay drawn as Chief Petty Officer and thereafter the pay fixed as in sub-regulations above.]

132.

Fixation of pay on being reduced, disrated, reverted or re-advanced.

(1)

A sailor shall, for and from the date he is reduced, disrated or reverted, receive the pay and allowances pertaining to the rate to which he is so reduced, disrated or reverted. On being disrated or reverted, previous service in the rate to which he is disrated or reverted and service in the higher rate or rates shall together be reckoned for fixation of pay in the rate to which he is disrated or reverted.

(2)

On being re-advanced previous service in the higher rate or rates shall be reckoned for fixation of pay in the rate to which re-advancement is made and subsequent increments shall be given from the date fixed on the above basis.

Explanation. - In the case of sailors who are given a higher provisional rate on passing an authorised provisional examination and who are subsequently reverted for failure to pass the final examination or due to their withdrawal from the concerned course, the service rendered in the higher provisional rate shall not reckon for fixation of pay on subsequent advancement.

[132-A. Admissibility of pay and allowances to sailors reported prisoners of war.]

[Inserted by S.R.O. 19(E), dated 23rd October, 1986.]

(a)

Sailors reported prisoners of war.-Sailors (including those holding honorary commission ranks) taken prisoners of war will be entitled to normal pay and allowances, subject to adjustment in respect of pay they receive from the enemy while in captivity. The pay and allowances of a sailor (including those holding honorary commission ranks) as prisoner of war shall be forfeited if he is dismissed/discharged from service or awarded any other punishment in consequence of his conduct resulting in his capture by the enemy or his conduct while in enemy hands as a prisoner of war. Such dismissal/discharge/punishment may be as a result of trial by Naval tribunal or administratively under the provision of the Regulations for the Navy part III on the basis of Court of Enquiry proceedings or other investigations.

Explanation. - The term 'Pay and Allowances' referred to above will include the special compensatory allowance. If the high altitude/uncongenial climate allowance was in issue prior to capture, this will be discontinued and a special compensatory allowance at the rates given in table below will be admissible:

Table
Rate
of sailor
Amount
per mensem
Rs.
Honorary
Commissioned Officer
34
MCPO
I & II
29
CPOs
/POs
22
I.S.
19
SEA
//SEA OO
17

(b)

Family allotments.-Family allotments if already in issue prior to capture will continue. Where allotments are not being paid fresh allotments may be issued upto 60%, of the sailor's net emoluments provided.

- (i)
he was maintaining the allottee(s);
- (ii)
allottee(s) is/are in need of financial assistance and
- (iii)
sanction of the Commanding Officer of the ship/establishment concerned has been obtained.

Forfeiture of Pay and Allowances

133.

Authorised deductions from or forfeiture or withholding of pay and allowances of sailors.

- (1)
The deductions from, or the forfeiture of the pay and allowances of a sailor are governed by the provisions of sections 29, 30, 31, 32, 33, 49 (2) and 82(6), as the case may be, of the Navy Act, 1957, read with the relevant regulations issued under that Act from time to time.

- (2)
[When a sailor has been tried and convicted by a criminal court, he shall forfeit one day's pay for each day or part of a day during which he is detained by the civil power as a part of the sentence. He shall also, as a general rule, forfeit pay in like manner for the time spent in custody pending his trial.]

[Substituted by S.R.O. 9(E), dated 19th March, 1974]

- (3)
The Chief of the Naval Staff may remit the penalty or penalties referred to in sub-regulation (2) whenever the offence is venial and brings no discredit to the Service; he may also remit them in other cases where there are special grounds for remission.

Explanation 1. - When a sailor is arrested by the civil power while he is on leave, his pay shall not be stopped for that portion of his absence during which he was on leave.

Explanation 2. - The period between the date of arrest and the date of conviction and sentence may consist of the following spells, namely:

- (a)
from the date of his arrest (unless he is on leave at the time) or from the date of expiration of his leave (if he is arrested during leave and is still in custody when his leave expires);
- (b)
from the date of surrender to bail (if he is allowed to return to his ship pending trial);
- (c)
from the date of a sentence of imprisonment and the like.

Explanation 3. - Forfeiture of pay enforced under this regulation is to take effect from the commencement of each separate period of absence.

Discontinuance of Pay

134.

Occasion for discontinuance.

- On transfer to the reserve list or to the pension establishment or on discharge (including discharge due to death), the pay of a sailor shall be discontinued from the date following that of such transfer or discharge.

Chapter VII

Allowances

[134-A. Eligibility.

- (1)
All sailors (including those holding honorary ranks as commissioned officers), who have put in not less than one year's service and whose pay does not exceed Rs. 1200 p.m. will receive the Children Education Allowance at the rates and under the conditions given in the succeeding regulations.
- (2)
All service rendered under the Central Government in any Department or Office may be taken into account for the

purpose of reckoning one year's service for the eligibility to the Children Education Allowance.

(3)

Service rendered prior to their retirement or discharge from Armed Forces/Central Government service will count for computing qualifying period of one year's service for the grant of the above allowance in the case of re-employed Military/Civil pensioners provided their re-employed service is continuous to their former service and the retirement or discharge was not on disciplinary grounds or at their own request.

(4)

Pay for this purpose will be as defined in regulation 146;

134.

-B. Rates.

- The allowance will be admissible at the following rates :

(a)

Primary Classes.

[(Class I to V) Rs.15/- p.m. per child]

(b)

Secondary & Higher Secondary Classes (from Class VI upto the stage entry into three year's degree course).....Rs. 20/- p.m. per child.

The total allowance admissible to a Service personnel at any one time shall not exceed Rs. 60/- p.m.

Note :- Primary classes do not include kindergarten and infant classes".

134.

-C. Conditions.

(1)

The grant of children's education allowance shall be subject to the fulfilment of the following conditions, namely:

(a)

the child is studying and staying in a school away from the station at which the sailor is posted and/or residing;

Illustration. - 'A' has headquarters at Delhi and is residing at Ghaziabad. The allowance shall not be admissible if his children are studying in a school either at Delhi or at Ghaziabad.

(b)

The Child is between the age of 5 years and 18 years;

NOTE. - The allowance shall commence from the month following that in which the child attains the age of 5 years and shall cease at the end of the academic year in which the child attains the age of 18 years.

NOTE. 2. - When a child is admitted to or withdrawn from a school during the course of a month, the allowance shall be admissible for the whole of a month subject to the fulfilment of the other conditions.

NOTE 3. - On the death, retirement, discharge or release of a sailor in the middle of an academic year, the allowance shall be admissible till the end of the academic year only when the other prescribed conditions are also satisfied. In the case of such a discharged released sailor the conditions prescribed above shall have to be satisfied.

NOTE 4. - A sailor initially declared as missing and subsequently declared to be dead shall be eligible for the allowance for the academic year in which he is initially declared missing. A sailor who is reported to be initially missing but who rejoins subsequently shall be eligible for the allowance as in the case of prisoners of war provided arrears of pay and allowances are admitted to him under the existing rules on the subject.

NOTE 5. - The allowance shall not be allowed where a sailor is dismissed or removed from service as a disciplinary measure.

NOTE 6. - The allowance is admissible during a period of vacation even if the children stay with their parents during vacation provided they continue to be on the rolls.

NOTE 7. - The allowance, in the case of sailors, who are drafted at the end of a month and report to the new ship or establishment in the following month after availing any joining time, shall be discontinued or admitted from the beginning of the month following that in which the sailors are drafted away;

(c)

the children are sailor's legitimate children including step children and adopted children (where adoption is recognised under the personal law of the individual) and they are wholly dependent on the sailor;

(d)

the wife of a sailor, in Government service, is not drawing children's education allowance under the rules applicable to civilian Government employees;

(e)

the children are not studying in a foreign country except in schools located in Nepal, Bhutan or Sikkim.

NOTE. - If both the husband and wife are Central Government employees and are posted at different stations, the allowance shall not be admissible if the children are staying and/or studying at a station at which either parent is working and/or residing."

134.

-D.

(1)

From 1-11-73 Children Education Allowance will be admissible only in those cases where an individual is compelled to send his child or children to a school away from the station at which he is posted and/or is residing, owing to any of the following:

(a)

The absence of a school or schools of the requisite standard at that station.

Explanation No. 1 - An Indian School shall be held to be a school not of 'Requisite Standard' for Anglo-Indian Children and vice-versa. Similarly, if a child prevented by the tenets of his religious persuasion, from attending a school run by a body of another persuasion, such school shall be held to be a school not of the requisite standard. Also, if the teaching in a school is conducted in a language different from the language of the service personnel, the school shall be held to be school not of the requisite standard.

Explanation No. II. - If a serviceman is transferred from a station where there is no school of the requisite standard to a station where there is such a school and if he was in receipt of the allowance at the former station in respect of any child or children, he shall remain eligible for such allowance until the close of the academic year of the school in which his child or children, was/were studying at the time of his transfer, provided he/they continues/continue to study for that period in that school.

Explanation No. III - If a child of a serviceman is denied admission to a school of a "requisite standard" at the station at which he is and/or is residing, because of there being no vacancy, or for any other reason and the child is, therefore, compelled to attend the school away from his place of duty and/or residence, he shall be entitled to the allowance, as if there were no school of the requisite standard at that station.

Explanation No. V - At a station where there is no school of the requisite standard, the allowance will not be admissible if the nearest school is so situated that there is convenient train or bus service to take the child or children near the time of the opening of the school and bring them back not too long after the school is closed and the journey each way does not take more than an hour. Where these conditions are not fulfilled, the allowance will be admissible irrespective of distance of a school from the station at which the serviceman is posted and/or is residing.

(b)

Posting to a field area.

(c)

Posting to a sensitive area where families are specifically debarred from living with the head of the family.

(d)

Non-availability of married accommodation for Petty Officer, Leading Seamen and Seaman I & II who are within the authorised married establishment and who are not paid compensation in lieu of quarters.

(e)

Non-availability of married accommodation in the case of Petty Officers, Leading Seamen and Seaman I & II who are not within the authorised married establishment and are not eligible for the grant of compensation in lieu of quarters.

(i)

Married accommodation allotted to Petty Officers and Leading Seamen and Seaman I & II for a period not covering one full complete academic year provided the individual is not entitled to compensation in lieu of quarters on vacation of Government accommodation.

(ii)

In respect of children for whom Children's Education Allowance was admissible on 31st Oct. 1973, the allowance will, however, continue to be admissible in accordance with the orders contained in Regulation 134-A et seq but at the

revised rates, even if the above conditions are not satisfied, so long as he/they continues/continue to study at the same place or within the same district, where he/they was/were studying on the 31st October, 1973 and for the period for which they were/are otherwise eligible for the grant of the allowance.

(iii)

Subject to the above terms and conditions service personnel who are citizens of Nepal, Sikkim and Bhutan may be granted Children's Education Allowance in respect of their Children studying in schools in their respective country/state in addition to those Children studying in schools in India.

(iv)

Where the Children's Education Allowance is claimed, the officer commanding of the unit/formation will furnish the following certificate(s) to accompany the claim: -

(a)

Non-availability of a school of the requisite standard at the place of Posting or availability of school of requisite standard at station of posting but denial of admission therein on the basis of information obtained from the educational authorities.

NOTE : In all cases, the above mentioned certificate may be rendered by the Officer Commanding or Head of Department, without obtaining information from the concerned educational authorities due to difficulties involved in collection of such information due to lapse of time,

OR

(b)

Location of unit in a field sensitive area, where families are specifically debarred from living with the head of the family.";

[134-E. Eligibility

[Inserted by S.R.O. 132, dated 9th May, 1989]

- When sailors (including those holding honorary rank as commissioned officers, MCPOs I and II and CPOs) proceed on training in India for a period not exceeding 180 days, their eligibility to the allowance shall continue to be determined with reference to their place of posting from where they proceed on training. Where, however, the period of training exceeds 180 days, the admissibility to the allowance during the period of such training shall be determined with reference to the place of training treating it as their place of posting during that period.

134.

-F. Re-imburement of tuition fee.

- All sailors (including those holding honorary rank as commissioned officer), irrespective of the Pay, shall receive re-imburement of tuition fees at the rates and under the conditions applicable to civilian Government servants paid from the Defence Service Estimates.]

[Acting Allowance.]

[Inserted, Substituted & Omitted by S.R.O. 9-E, dated 19th March, 1974]

135.

Eligibility.

(1)

Suitable master Chief Petty Officers I and II other than those holding honorary commissions, shall receive acting allowance at the following rates when appointed in officers' vacancies in ships and establishments other than Command Headquarters and Naval Headquarters, wherever they arise as a result of shortage of officers in both General and Special Duty Lists, but not due to vacancies caused by leave, temporary duty or courses of instructions, namely:

Rs. p.m.

(a)

Master Chief Petty Officer I when officiating in a vacancy of Lieutenant Commander; 100

(b)

Master Chief Petty Officers I and II when officiating in a vacancy of Lieutenant or Sub-Lieutenant, 75.

(2)

The appointment of a Master Chief Petty Officer II in an officer's vacancy shall, however, be subject to the further following conditions, namely:

(a)

he should have served for 3 years as Master Chief Petty Officer II;

(b)

Master Chief Petty Officer I of that Branch is not borne in that ship or establishment.

(c)

he shall only officiate in the vacancy of a sub-lieutenant of lieutenant.

(3)

Such appointments shall be made with the prior approval of the administrative authority. No consequential advancements shall be made in place of Master Chief Petty Officers I and II appointed in lieu of officers.

(4)

The appointment together with the rank, in which officiating arrangement is made, shall be specified by the Administrative authority for admitting the appropriate rate of acting allowance to Master Chief Officers I and II. The sanctioned cadre of Lieutenant Commanders for this purpose shall be reckoned as 25 per cent of the total sanctioned cadre of Lieutenant Commanders, Lieutenants and Sub-Lieutenants, in each Branch or such other percentage as may be fixed by the Central Government from time to time.

Compensatory (City) Allowance, Compensatory (Local) Allowance And Hill (Compensatory) Allowance

135.

-A. Admissibility ashore.

- Sailors excluding boys, serving ashore at places where compensatory (city) allowance, compensatory (local) allowance and hill (compensatory) allowance are admissible to non-gazetted civilian Government servants paid from the Defence Services Estimates shall receive such allowances under the conditions applicable to civilians, but at [100 per cent]

[Substituted & Inserted by S.R.O. 19(E), dated 23rd October, 1986]

of the rates (including minimum and maximum) admissible to the latter from time to time.]

136.

Admissibility afloat.

(1)

Compensatory allowance at the same rates and conditions as are given in [regulation 135A]

[Inserted, Substituted & Omitted by S.R.O. 9(E), dated 19th March, 1974]

shall also be admissible to sailors serving afloat on board ships based on ports situated in qualifying localities.

(2)

Rates of [compensatory (city) allowance, compensatory (local) allowance and Hill (compensatory) allowance] such as are applicable in Bombay and Calcutta shall be admissible to sailors borne in ships based at any port other than Bombay or Calcutta during periods of the ships' repair or refit subject to the fulfilment of the following conditions, namely:

(a)

the ship is required to stay at Bombay or Calcutta beyond thirty days;

(b)

the Commanding Officer of the ship certifies that the ship is not habitable due to repair or refit or the like and the sailors are therefore required to stay ashore;

(c)

the sailors do not avail themselves of the messing and other facilities in the ship while staying ashore;

(d)

hardly money is not drawn in addition.

137.

Reckonable emoluments.

- For the purpose of assessing the rate of compensatory allowances the emoluments to be taken into account are :-

(a)

pay;

(b)

good conduct pay;

(c)

flying bounty;

(cc)

[acting allowance, and]

[Inserted, Substituted & Omitted by S.R.O. 9-E, dated 19th March, 1974]

(d)

any other allowance specifically mentioned as reckonable for this purpose.

138.

Station of eligibility.

(1)

Eligibility to compensatory allowances shall be determined with reference to the place of duty of the sailor concerned.

(2)

The allowance shall be admissible only when a sailor is actually "posted" to a qualifying station.

(3)

If a sailor in receipt of compensatory allowances at one station, proceeds on temporary duty or attachment to another station, he shall continue to receive the allowances applicable to the former station during the first three months of such temporary duty or attachment; thereafter, the allowances applicable to the temporary duty station or station of attachment, if any, shall be admissible.

Explanation. - Sailors drafted to Indian Naval ship ANGRE (DLMOB) in connection with their discharge from the service shall be deemed to be "posted" to that ship for the purpose of admissibility of [these allowances]

[Inserted, Substituted & Omitted by S.R.O. 9-E, dated 19th March, 1974]

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(4)

[When a detachment is permanently located at a station other than that of its parent establishment or that of the base port of its parent ship, the individuals, drafted to the detachment shall be treated as on permanent duty and shall be paid compensatory allowances of the station at which the detachment is located from the date of their posting:

Provided that the individuals serving with the detachment on temporary duty at a station other than that of the parent establishment or base port of the parent ship shall receive the allowances admissible at that station under the provisions of Sub-regulation (3).]

[Inserted, Substituted & Omitted by S.R.O. 9-E, dated 19th March, 1974]

139.

Admissibility during transit.

- If a sailor in receipt of compensatory allowance at a station is transferred to another station where a similar allowance is admissible the allowance shall be admissible to him during the transit period provided that if the rates differ in the two stations the lower rate only shall be admissible.

140.

Other conditions same as officers.

- The other conditions laid down in regulations 25(2), 26 and 27 shall apply mutatis mutandis to sailors and apprentices (excluding boys) for the payment of compensatory allowances.

CHARIOT PAY

[140-A. Admissibility and rates

[Inserted by S.R.O. 132, dated 9th May, 1989]

(1)

Cariot Crew whilst borne against the chariot strength shall be entitled to chariot pay equivalent to the submarine pay admissible to Submariners subject to the conditions laid down in note.

(2)

Chariot Pay will be treated as pay for all purposes.

NOTE-Chariot Pay shall be admissible subject to the condition that sailors borne against the chariot strength obtain additional life insurance cover through Naval Group Insurance Scheme against all risks fora minimum of Rupees one lakh, on payment of monthly contribution of rupees one hundred and fifty per month. The Naval Insurance Group will pay 'Survival Benefits' to sailors covered under the above Insurance Scheme on retirement/release, the amount of which will be determined by the Naval Group Insurance Scheme from time to time.]

Conservancy Allowance

141.

Entitlement to free conservancy.

- Married sailors of the Indian Navy serving both ashore and afloat who are in occupation of Government quarters or are

in receipt of money compensation in lieu of quarters and are permitted to reside at the duty station with their families under their own arrangement, shall be entitled to tree conservancy which includes provision of services of sweeper and water carrier, provided that they are within the percentage of authorised married establishment.

142.

Admissibility of conservancy allowance and its rates.

(1)

Where the above said services cannot be provided in kind, an allowance in lieu thereof shall be admissible.

(2)

The allowance shall be fixed by the Station Commander (or the Commanding Officer where there is no Station Commander) after ascertaining the rate at which such services are obtained by civilians of equivalent status in the concerned localities subject to a maximum of [Rs. 12]

[Substituted and Inserted by S.R.O. 9-E, dated 19th March, 1974]

per month for Chief Petty Officers and [Rs. 10]

[Substituted & Inserted by S.R.O. 9-E, dated 19th March, 1974]

per month for Petty Officers and other sailors.

(3)

In stations where such service cannot be obtained at or within these rates, the Station Commander (or the Commanding Officer where there is no Station Commander) may in consultation with the Controller of Defence Accounts (Navy), Bombay fix the rate at [Rs. 15]

[Substituted, Omitted & Inserted by S.R.O. 9-E, dated 19th March, 1974]

per month for Chief Petty Officers and [Rs. 12] per month for Petty Officers and other sailors.

(4)

The element of such allowance which is payable in lieu of services of water carrier shall not be admissible when pipe water supply exists in quarters in which personnel are living.

143.

Admissibility during annual leave.

- Conservancy allowance shall also be admissible during periods of annual leave provided that

(a)

the sailor was in receipt of it immediately prior to proceeding on leave;

(b)

during his absence he retains the house which he hired while on duty and that the house was not sublet;

(c)

his Commanding Officer certifies that an equivalent amount of expenditure has been incurred by the sailor on account of conservancy during the period of absence as when on duty;

(d)

the leave granted to the individual is not leave preparatory to retirement or discharge.

144.

Single or married unaccompanied sailors.

- The allowance shall also be admissible to single or married unaccompanied sailors serving ashore, who are not provided with Government accommodation and are consequently compelled to make their own arrangements for accommodation and conservancy services.

Dearness Allowance

145.

[Admissibility and rates.

[Substituted, Omitted & Inserted by S.R.O. 9-E, dated 19th March, 1974]

(1)

Sailors and apprentices (excluding boys) shall receive dearness allowance at 11100 per cent] of the rates and under the conditions applicable to civilian Government servants, as specified for them in Government orders from time to time.

(2)

The amount of dearness allowance admissible to each sailor under sub-regulation (1) shall be rounded off to the nearest rupee.]

146.

Reckonable emoluments.

- The reckonable emoluments for the purpose of assessing dearness allowance are:

(i)

pay;

(ii)

good conduct pay;

(iii)

flying bounty [* * *]

[Substituted, Omitted & Inserted by S.R.O. 9-E, dated 19th March, 1974]

(iii a) acting allowance; and]

(iv)

any other allowance specifically mentioned as reckonable for this purpose.

147.

Extent of admissibility-Other conditions.

- The other conditions for the payment of dearness allowance to officers laid down in regulations 31 to 36 shall also apply mutatis mutandis to sailors and apprentices (excluding boys.)

Diving Pay (Dip Money)

148.

Rates and conditions.

- Diving pay at the following rates shall be admissible to qualified sailors when diving in any approved apparatus either for diving operations carried out or when diving for practice with the authority of the Commanding Officer, namely :

[TABLE

[Substituted by S.R.O. 19(E), dated 23rd October, 1986]

Depth

Rate

for the time under water or Compression

Fathoms

Metres

Paise

per minute

(a)

Upto 20

36.58

10

(b)

20 to 30

36.58

to 54.86

15

(c)

30 to 40

54.86

to 73.15

20

(d)

40 to 50

73.15

to 91.44

30

(e)

50 to 60

91.44

to 109.73

40

(f)

60 to 75

109.73

to 137.16

55

(g)

75 to 100

137.16

to 182.88

70

(2)

Diving pay at one-fifth of the amount payable under sub-regulation (1) to divers shall be admissible to sailors when actually employed in attending on divers engaged in such diving duties provided that they are qualified divers; and attendants in decompression or re-compression chambers shall receive the same rate of diving pay as divers.

(3)

The period for which payment is made shall be the interval between the time of entering and that of leaving the water, or between that of entering or leaving pressure, the decompression periods being included in the time under water or pressure for which payment is made.

(4)

The Commanding Officer may, at his discretion, cancel the whole or any portion of the payment if the work is subsequently found to have been done improperly.

(5)

In case the total amount of dip money admissible to a diver under this regulation works out to less than one rupee, a minimum sum of one rupee will be paid to him.

(6)

Attendants when attending on trainee divers shall be entitled to payments at the same rates as they are entitled to when attending on fully qualified divers.

(7)

The term "attendant" shall include the following personnel :-

(a)

Air pipe attendant.

(b)

Brest rope attendant.

(c)

Operator of oxy-helium control panel.

(d)

Operator of diver's control panel, when that panel is fed by a motor-driven air compressor or receiver.

(e)

Operator of submerged decompression chamber control panel.

(f)

Operator of main decompression or recompression (main or portable).

(g)

Attendant in submerged decompression chamber.

(h)

Attendant in main or portable decompression or recompression chamber:

Provided that if the same sailor combines the duties of air pipe attendant and brest rope attendant, he shall be entitled to be paid only the one-fifth rate specified in sub-regulation (2).

(8)

When more than one diver is being supplied at the same time with air or gas mixture by the same control panel operator

(a)

the operator of the diver's control panel shall receive the one-fifth rate in respect of only one such diver;

(b)

the operator of the submerged decompression chamber control panel shall receive the one-fifth rate either in respect of an attendant in the submerged decompression chamber, or in respect of the diver in the submerged decompression chamber, but not for both concurrently;

(c)

the operator of the main decompression chamber control panel, shall receive the one-fifth rate in respect of only one diver in the chamber, and not in respect of any attendant in the chamber.

(9)

A clearance diver who is borne on the authorised complement of such divers shall be entitled to dip money at the rates and under the conditions laid down in sub-regulations (1) to (8) provided that when he is employed in hazardous operations of live mine clearance, he shall be entitled to dip money at double the rates specified in sub-regulation (1).

(10)

Payment to qualified attendant shall be made at the rate of one-fifth of the dip money paid to a clearance diver on whom he is attending.

(11)

[***]

[Omitted & Inserted by S.R.O. 9-E, dated 19th March, 1974]

[DIVING ALLOWANCE

[Omitted & Inserted by S.R.O. 9-E, dated 19th March, 1974]

148.

-A. Admissibility and rates.

(1)

Sailors belonging to the authorised cadre of clearance divers shall be entitled to diving allowance pertaining to the appropriate class of the respective category, as follows, namely:-

TABLE

Rs.

per month

(i)

Clearance Divers Class I

75

(ii)

Clearance Divers Class II

65

(iii)

Clearance Divers Class III

55

Diving Qualification Retaining Fee

149.

Admissibility and rates.

(1)

Sailors belonging to the authorised cadre of the category of divers shall be entitled to retaining fees pertaining to the appropriate class of the respective category as follows:

Rs.

p.m.

(i)

Clearance divers

Clearance

Diver 1st Class

15

Clearance

Diver 2nd Class

10

Clearance

Diver 3rd Class

5

(ii)

Ships Divers

Rs.

75/- per month

(iii)

Deep Divers

Rs.85

/- per month

(2)

A sailor who becomes unfit for diving duties shall not be eligible for the retaining fee from the date of his being declared as unfit.

(3)

The rates specified in sub-regulation (1) may be drawn in addition to diving pay admissible under regulation 148.

(4)

[***]

[Substitute & Omitted by S.R.O. 9-E, dated 19th March, 1974]

[Expatriation]

[Substituted by S.R.O. 19(E), dated 23rd October, 1986]

Allowance

150.

Admissibility and rates.

(1)

Expatriation allowance shall be admissible to sailors when serving ashore ex-India or afloat outside the limits noted below:-

(a)

East of line 20° 45" longitude 92° 21 East South to latitude 15° North thence East to longitude 95° East thence due South to the Equator.

(b)

South of the Equator.

(c)

West of the meridian of 60° East as far South as the Equator.

(2)

The monthly rates of expatriation allowance admissible to sailors shall be as follows:

Rs.

Chief

Petty Officers.

20.00

Petty

Officers

15.00

Leading

Rates

12.50

Able/Ordinary

Rates

10.00

Seagoing

boys

5.00

(3)

The allowance shall not be admissible in conjunction with daily allowance when on duty in the United Kingdom.

[Flying Pay]

[Substituted by S.R.O. 9(E), dated 19th March, 1974]

151.

Rates.

(1)

An aircrewman borne against sanctioned vacancy shall, during the period of his aircrew service, be paid in addition to his normal pay and allowances a flying pay of Rs. 374.50 per month. This will be treated as pay for all purposes except for pension and gratuity.

(2)

Admissibility and its conditions. - The payment will be subject to the following conditions :

(a)

The aircrewman subscribes monthly the difference between Rs. 75 and monthly amount of the premium paid by him for sustaining endowment assurance policy/policies (Life Insurance Corporation of India or Postal Life Insurance Fund) covering aviation risks also, to the Armed Forces Personnel Provident Fund in addition to the compulsory minimum rate of subscription payable to the Armed Forces Personnel Provident Fund. Such additional subscription will commence from the pay of the month following that in which he qualifies for the flying pay.

(b)

The aircrew man obtains an additional life insurance cover against all risks for a minimum amount of Rupees One Lakh through the Group Insurance (Naval) Scheme. Survival benefits to the personnel under the above insurance scheme as admissible will also be payable on retirement/release.

(3)

The flying pay shall be admitted on rendition of a certificate as given below:-

Flying Pay Certificate

(to be rendered at the end of quarters 31st March, 30th June, 30th September and 31st December)

Certified that (Service No.)Rank.....(Name) Trade
.....

(a)

"has made adequate use of flying facilities provided to him and has maintained an acceptable level of proficiency.

*did not have any facilities or opportunity to fly, but is capable of flying on return to flying duties.

(b)

has fulfilled the conditions regarding minimum additional contribution to Armed Forces Personnel Provident Fund/Compulsory Insurance Cover.

(c)

has not been declared permanently medically unfit for flying duties.

Commanding Officer

Superior Officer.

(4)

Flying pay will be admissible for the period of annual leave portion of leave pending retirement. Rendition of the certificate as required above will not be necessary for the drawal of flying pay during annual leave portion of leave pending retirement. funeral Expenses

152.

Admissibility.

(1)

The actual funeral expenses of a sailor or apprentice or boy whose death occurs while on field service shall be a charge on the revenues of the Central Government.

(2)

When the death of a sailor occurs in a peace station, a grant-in-aid to the extent of the actual cost of the funeral subject to a maximum amount of Rs. 2501 shall be admissible.

(3)

The funeral expenses of a sailor whose death occurs while serving in any mission or post abroad, shall be met by the Central Government in full. In the case of the death of a member of the family of such a sailor in such circumstances, the liability of the Government shall be limited to the difference between the actual funeral expenses (excluding the cost of the shawl that may be placed on the dead body) and the cost of an appropriate funeral in India which has been assessed at Rs. 75.

Explanation. - Deaths occurring on board ships and deaths resulting from accidents to service aircraft shall be treated as deaths on field service and actual expenses on such funerals shall be borne by the Central Government; this is subject to the condition that service funerals are provided for such cases. Funeral expenses in respect of deaths occurring on board ships in an Indian port, where a naval establishment is located shall however, be restricted to the limits laid down in sub-regulation (2).

(4)

[In cases where it becomes necessary to preserve the dead bodies of sailors in a mortuary awaiting arrival of the next of kin to take part in the funeral, mortuary charges incurred shall be reimbursed subject to a ceiling of Rs. 35 per day for a maximum period of three days.]

[Substituted & Inserted by S.R.O. 9-E, dated 19th March, 1974]

Good Conduct Pay

153.

Admissibility and rates.

- Good Conduct Pay shall be admissible, at the rates given below, to sailors [excluding Master Chief Petty Officers I and III who are granted Good Conduct Badges in accordance with the appropriate regulations for the Navy.

Rs.

For one Badge

5

For two Badge

10

For three Badge

15

Hair Cutting, Hair Cleaning and Washing Allowance

154.

Admissibility and rates.

(1)

Hair-cutting, hair cleaning and washing allowance shall be admissible to sailors at the rates given below :

Rs.

head per mensem

(a)

Sailors serving afloat

8. [75]

[Substituted & Inserted by S.R.O. 4-E, dated 19th March, 1974]

(b)

Other sailors

10. [00]

[Substituted by S.R.O. 132, dated 9th May, 1989]

(2)

The said allowance shall also be admissible during casual, annual or sick leave provided that sailors serving afloat shall get the allowance at [Rs. 7]

[Substituted and Inserted by S.R.O. 4-E, dated 19th March, 1974]

per month only during periods of leave other than casual leave. The allowance shall not be admissible during periods spent in hospital where services are to be provided in kind and also during absence without leave [or leave pending retirement discharge]

[Substituted and Inserted by S.R.O. 4-E, dated 19th March, 1974]

and while undergoing sentences of imprisonment.

Hardlying Money

(1)

[Hardlying money shall be payable to sailors including those belonging to record parties under the conditions specified in Regulation 58 at full or half rate according to the classification of ships laid down in Regulation 60.;"]

[Substituted by S.R.O. 19(E), dated 23rd October, 1986]

Sailors

Monthly

Full

Rates

Half

Rates

Rupees

Rupees

Master

Chief Petty Officer I & II

35.00

17.50

Chief

Petty Officers

35.00

17.50

Petty

Officers

30.00

15.00

Leading

Seamen

30.00

15.00

Seamen

I & II

25.00

12.50

Boys

20.00

10.00

156.

Full rates for all prescribed classes of ships.

- The classes of ships service on which qualifies for hard lying money areas laid down in regulation 60; but sailors shall be entitled to full rates while serving on any of ships.

[HIGHT ALTITUDE/UNCONGENIAL CLIMATE ALLOWANCE]

[Substituted by S.R.O. 19(E), dated 23rd October, 1986]

156.

-A. Admissibility and rates.

- High altitude/uncongenial climate allowance at the following rates shall be admissible to sailors serving in the area

defined by the government from time to time, under the following conditions :-

Rupees

per month

Master

Chief Petty Officer I & II

90

Chief

Petty Officer

Petty

Officer

70

Leading

Seaman

Seaman

I & II

50

(2)

This allowance shall be admissible from the date on which an individual arrives in the specified area on being posted to a unit/formation in that area and subject to the following exceptions; it shall cease on the (date following that on which he leaves the area.

Exceptions.- An individual who is absent from the area for a maximum period of 14 days in one or more of the following circumstances shall continue to receive the allowance provided he returns to the area in which the allowance is admissible.

(i)

when placed on the sick list;

(ii)

when on casual leave;

(iii)

when on temporary duty;

Explanation I. - The allowance shall not be admissible to individuals holding posts elsewhere who proceed on temporary duty to the specified area. However, the allowance shall be admissible to individuals holding posts elsewhere who are attached to units etc. in the specified area for a continuous period of more than 14 days, if they are not in receipt of daily allowance as admissible to individual proceeding on temporary duty.

Explanation II. - Individuals serving with detachments within the specified area shall be treated as posted for the purpose of admissibility of the allowance, if the detachments are deployed in the area for a continuous period of one more than 14 days. Conversely, individuals of units/formations which are located within the defined area, who move with detachments outside the area shall cease to be eligible for the allowance if the detachments remain outside the area for a continuous period of more than 14 days.

Explanation III. - The allowance shall not be admissible to individuals when they are absent from the area on annual leave, sick leave or any other leave except casual leave.

Explanation IV. - The allowance shall be admissible while on transit from one qualifying area to another.

(3)

The special compensatory allowance admissible for concessional area shall not be admissible in addition to this allowance."

157.

Other conditions.

- The conditions for the grant of hardship money laid down in regulations 6i to 65 shall apply mutatis mutandis to sailors.

[157-A. Hostel Subsidy.

[Substituted by S.R.O. 132, dated 9th May, 1989]

- Hostel subsidy to sailors be granted at the rates and under the conditions applicable to officers under regulation 111-G.]

158.

&159. [***]

[Substituted-Inserted & Omitted by S.R.O. 9-e, dated 19th March, 1974]

Kit Upkeep Allowance

160.

Admissibility.

- Kit upkeep allowance shall be payable to sailors at the rates to be notified in Navy Instructions issued by the Government from time to time.

161.

General conditions of admissibility.

(1)

The above said allowance shall be payable every month along with pay in arrears and shall be admissible proportionately in respect of broken periods of less than one month.

(2)

The said allowance shall also be admissible during leave pending retirement, including annual leave pending discharge of the individual from service.

(3)

The said allowance shall cease to be admissible during periods of desertion and imprisonment but shall be continued during periods of detention and while in hospital.

(4)

Recovered deserters awaiting trial are entitled to the said allowance from the date they are received into the naval custody.

Ration Allowance

162.

Conditions of admissibility.

- Ration allowance at the rates notified in Navy Instructions issued by the Government from time to time shall be admissible to sailors under the following conditions, namely :

Lower Rate

(a)

where the Government is in a position to supply free rations, but the sailor for his own convenience, prefers to draw an allowance in lieu thereof;

(b)

where owing to sickness or other disability, the sailor is unable to consume normal ration and no ration articles are drawn for him;

[Higher Rate]

[Substituted & Omitted by S.R.O. 9-E, dated 19th March, 1974]

[***]

[Substituted & Omitted by S.R.O. by S.R.O. 9-E, dated 19th March, 1974]

(c)

where it is not possible or economical or convenient for Government to supply free rations or where rations can be supplied but the distance of his residence from the ship or establishment from which the sailor is entitled to draw his free rations is more than 2 miles and the sailor prefers to draw ration allowance;

(d)

[when travelling by rail or road on leave;]

[Substituted & Omitted by S.R.O. 9-E, dated 19th March, 1974]

(e)

when travelling by rail or road on duty;

NOTE.- To meet unforeseen delays caused by late running and/or congested trains small parties of sailors (i.e. sailors proceeding in a batch on draft from one place to another or a party of sailors proceeding on escort duty) to whom ration allowance is issued in lieu of free rations for the period of the journey shall, in addition, be given a reserve of ration money in advance in the following scale, namely:

(i)

For a journey over 18 hours but not exceeding 24 hours with no change of trains

One

days advance ration money

(ii)

For a journey as (i) above with a change of train

Two

days advance ration money

(iii)

For a journey of between 24 and 48 hours with one or more changes.

Three

days advance ration money

(iv)

For a journey of between 48 hours and 72 hours with one or more changes.

Four

days advance ration money

(v)

For journeys over 72 hours with one or more changes

Five

days advance ration money

(f)

when employed on movement control duties at a station where they are obliged to take their meals in a refreshment room;

(1)

Actual expenses including chargers, if any for Dak Bunglows, etc. as certified by the individuals Commanding Officer, subject to a maximum of special rate notified from time to time

(g)

when detained on temporary duty at an outstation or attending camps where rations cannot be supplied by Government

(2)

Claims for periods in excess of 10 days shall be countersigned by the Commanding Officer of the nearest Naval Establishment.

NOTE

1. - Leave ration allowance shall be drawn in full prior to proceeding on leave.

NOTE.

2. - Ration allowance due for any sanctioned period of extension of leave shall be drawn by the sailor on return to his duty station;

(h)

when employed on courier duty;

(i)

when employed on secret equipment duty;

(j)

when patients travel by ambulance convey or ordinary train, provided free rations are not issued;

(k)

when T.B. patients travel on transfer from one Military Hospital to another for further treatment on recommendation of the Medical Board after they have been invalided out of service, provided free rations are not issued :

(l)

when on leave

At

the lower rate shown at clause-(a) above;

NOTE. 1. - Advance of ration allowance at full rate per man per day shall be admissible to sailors detailed on temporary duty at an outstation for the anticipated number of days for which they are likely to be detained at outstation.

NOTE 2. - The above ration allowance shall not be admissible to I.N. provost sailors when they are paid out of pocket expenses incurred by them in service while on police duties involving investigations away from their ship or establishment;

(1)

camps where rations cannot be supplied by Government are obliged to take their meals in a refreshment room; when detained on temporary duty at an outstation or attending or more changes when employed on movement control duties at a station where they

["(m) When attending NCC camps at outstations where rations cannot be supplied by the Government.

(i)

upto 30 days Commander NCC Group HQ

(ii)

Beyond 30 days Director, NCC States."]

163.

Commanding Officer authorised to sanction.

- The Commanding Officer shall be competent to sanction ration allowance at the appropriate rate according to the circumstances of each case and the grant of the allowance shall be notified in Genforms. Genforms sanctioning the grant of higher rates of ration allowance under clause (c) of regulation 162 shall specify the particular condition or reason such as is referred to therein which has warranted the grant of the higher rate, as for example, inability of the Government to supply rations in kind, the distance over two miles of the individual's residence from the ship or establishment and the like.

164.

Ration allowance while travelling.

(1)

When it is not possible to issue rations in kind to parties of sailors travelling by rail or road, the Commanding Officer may issue ration allowance admissible in advance to cover the period of the journey.

(2)

To meet unforeseen delays caused during transit, parties of sailors, that is to say, sailors proceeding in a batch on draft from one place to another or a party of sailors proceeding on escort duty, to whom ration allowance is issued in lieu of free rations for the period of the journey shall, in addition, be given a reserve of ration money in advance in the following scale :

(i)For

a journey for over 18 hours but not exceeding 24 hours with no change of train.

One

days' advance ration money.

(ii)

For a journey referred to in sub-clause (i), with a change of train.

Two

days' advance ration money.

(iii)

For a journey for a period between 24 and 48 hours with one or more changes.

Three

days' advance ration money.

(iv)

For a journey for a period between 48 and 72 hours with one or more changes.

Four

days' advance ration money.

(v)

For a journey for a period of over 72 hours with one or more changes.

Five

days' advance ration money.

(3)

Such advance shall be adjusted on completion of the journey and the authorities making the advances shall correctly furnish all the requisite particulars to the Supply Officer-in-Charge, Naval Pay Office, Bombay [and to the Controller of Defence Accounts (Navy), Bombay along with cash account) to enable him to make the necessary adjustments in the individual pay account of the sailor on the authority of the information contained in the Genform.

165.

Ration allowance for the leave period.

- leave ration allowance shall be drawn in full prior to proceeding on leave; ration allowance due for any period of extension of leave sanctioned, shall be drawn by the sailors on return to their duty station.

166.

Ration allowance during temporary duty at an outstation.

- An advance of ration allowance at the rate notified in Navy Instructions issued by the Central Government from time to time shall be admissible to personnel detailed on temporary duty at an outstation for the anticipated number of days for which they are likely to be detained at the outstation.

167.

[***]

[Omitted by S.R.O. 9-E, dated 19th March, 1974]

168.

Duration of journey.

- Every sailor shall be eligible to draw the ration allowance admissible for journeys when the duration of his journey exceeds six hours and is not commenced and completed between 2200 hours and 0600 hours.

169.

Ration allowance during air journey.

- Sailors travelling by air shall be entitled to ration allowance as for rail or road journey when free meals are not provided at halts; the said allowance shall not, however, be admissible

(a)

when the duration of the halt is less than six hours,

(b)

for halts between 2200 and 0600 hours; and

(c)

when free meals are provided during the journey.

170.

Ration allowance to Naval pensioners.

- A Naval pensioner shall receive ration allowance at the rate notified in the Central Government orders issued from time to time for the period during which he may be detained, either in hospital, or with an establishment. On being called up from his home for medical examination in connection with the re-assessment of his disability pension, or to settle question arising out of the grant of such pension, subject to a maximum of four days, provided rations in kind cannot be

supplied.

171.

Ration allowance to apprehended deserters.

(1)

Naval deserters or absentees from the Indian Navy apprehended by Civil authorities shall be entitled to rations the cost of which does not exceed-

(a)

Rs. 1.25 per sailor per diem while he is in Civil custody, and

(b)

Rs. 2 per sailor per diem when he is travelling by rail or road.

(2)

The Civil authorities may claim the amounts actually spent by them for the rations subject to the limits laid down in sub-regulation (1) from the Controller of Defence Accounts (Navy), Bombay.

(3)

When claiming the amounts from the Controller of Defence Accounts (Navy), Bombay a certificate that the aforesaid deserters or absentees belong to the Indian Navy should be obtained from the Captain, Naval Barracks, Bombay.

172.

Ration allowance for aircrew engaged on long duration flights.

- Aircrew engaged on long duration flights shall receive ration allowance as follows :

Rs.

(a)For

flights of duration of over three hours but not exceeding five hours

0.75

(b)

For flights of over five hours' duration

1.00

Explanation 1. - The above-said allowances are not admissible when ordinary flying rations or emergency flying rations are issued.

Explanation 2. - Periods spent in briefing and debriefing shall not form part of the duration of flight for purposes of the above allowances.

Sea duty Allowances

[172-A. Ration Allowance to pensioners or discharged sailors while appearing before a re-survey medical board.

[Omitted by S.R.O. 9-E, dated 19th March, 1974]

- Pensioners or discharged sailors when appearing before a re-survey medical board for re-assessment of their disability which is regarded as attributable to or aggravated by Naval service shall be entitled to free rations or an allowance at the rate of Rupees two per day for the period detained at the station where the medical board is held.]

[Substituted by S.R.O. 19(E), dated 23rd October, 1986]

172.

-B. Rations allowance to pensioners or discharged sailors while attending hospitals etc. in certain cases.

- Pensioners or discharged sailors whose disability has been regarded as attributable to or aggravated by Naval service while attending hospitals or centres for repair or renewal of artificial limbs, shall be entitled to free rations or an allowance in lieu thereof at the rate of Rupees two per day for the period detained in hospitals or centres.

[SEA DUTY ALLOWANCE]

[Omitted by S.R.O. 9-E, dated 19th March, 1974]

172.

-C. Admissibility and rates.

- This allowances at the following rates will be admissible to all Sailors, serving afloat, including those attached on temporary duty, during the periods their ships are actually away from the base ports.

Petty

Officer I

38

Leading

Seaman

33

Seaman

I & II

30

Rank

Rupees

per month

Master

Chief Petty Officer I & II

53

Chief

Petty Officer

173.

Eligibility.

- Sailors of the Seaman Branch employed on survey duties shall receive survey bounty at the rates and under the conditions hereinafter specified.

174.

Rates.

- The rates of survey bounty admissible to sailors shall be as shown in the following table, namely:

[TABLE

[Inserted & Substituted by S.R.O. 19(E), dated 23rd October, 1986]

Category

Rupees

per annum

1stClass Survey Recorder

Master

Chief Petty Officers Class I & II

700

Chief

Petty Officer

600

Petty

Officers and below

500

2ndclass Survey Recorder

400

3rdclass Survey Recorder

300

Explanation. - A sailor who is promoted from one survey class to another or advanced in rate during the course of a survey year shall be eligible for the grant of survey bounty at the appropriate rate for the period during which each class or rate is held.

175.

General conditions of admissibility.

- The grant of survey bounty to a sailor under these regulations shall be subject to the following conditions, namely-

(a)

The bounty shall be paid to the sailor annually in arrears in respect of each survey year.

(b)

The sailor must have been employed in survey ships on field duties for a minimum period of 75 days in the survey year.

(c)

Full survey bounty shall be payable if a sailor has done a minimum of 150 days on field duties; for periods ranging from 75 to 149 days, only proportionate bounty shall be admissible.

(d)

A sailor who is appointed to the General Service from Survey duties during the course of a survey year and vice versa shall be entitled to proportionate bounty in arrears at the end of the survey year provided he fulfills the condition in clause(b).

(e)

If a sailor, on being appointed to the General Service, does not resume survey duties during the survey year, he shall be treated as a fresh entrant for the purpose of further entitlement to survey bounty.

(f)

The sailor's work during the survey must be certified to have been satisfactory by the Commanding Officer of the survey ship.

Explanation 1. - The expression "survey year" means the period from the 1st October of a year to the 30th September of the following year.

Explanation 2. - Survey bounty shall be taken into account for determining the rates of compensatory (city) and dearness allowances.

Submarine Allowance

176.

Admissibility and rates.

(1)

Submarine allowance at the following rates shall be admissible to sailors attached for training to or for exercises in a submarine:

Rating

Daily

Rate

Monthly

ceiling

Master

Chief Petty Officer Class I & II

Rs.

2/-

Not

laid down;

(2)

The allowance shall not be admissible for the period of absence from the submarine for more than three consecutive days.

Explanation. - If the absence from the submarine is not for more than three consecutive days but is intermittently for more than fourteen days in a month, the allowance shall not be admissible for the period of such actual absence.

(3)

[The allowance shall not be admissible in addition to submarine pay.]

[Substituted & Inserted by S.R.O. 19(E), dated 23rd October, 1986]

[SUBMARINE PAY

[Inserted by S.R.O. 9(E), dated 19th March, 1974]

176.

-A. Admissibility and rates.

(1)

Submarine pay at the following rates shall be admissible to sailors qualified for service in submarine and appointed as part crew or spare crew. It shall also be admissible to those sailors who are otherwise qualified for submarine service and hold appointments which require them as part of their normal duties to go to sea in submarine from time to time :

[Rank

[Inserted by S.R.O. 9(E), dated 23rd October, 1986]

Rupees

per month

Master

Chief Petty Officer I and II

350

Chief

Petty Officer

300

Petty

Officer

275

Leading

Seaman

265

Seaman

I and II

250

[Inserted by S.R.O. 9(E), dated 23rd October, 1986]

(2)

Submarine pay shall be treated as pay for all purposes.

(3)

Submarine pay shall not be admissible in addition to submarine allowance.

(4)

Submarine pay shall cease to be admissible when a sailor-

(a)

remains medically unfit for service in submarines for a period exceeding three months;

(b)

fails to maintain the requisite standard of efficiency for submarine service, as determined by the Chief of the Naval Staff;

(c)

is transferred to a General Service appointment.]

(5)

Submarine pay at the above rates will be admissible subject to an additional life insurance cover against all risks for a minimum amount of Rupees One Lakh being taken by the concerned personnel through the Group Insurance (Naval) Scheme.

Survival benefits to the personnel under the above insurance scheme as admissible will also be payable on retirement/release.

176.

-B. Shorthand allowance.

- Shorthand allowance @ Rs. 30/-p.m. will be admissible to (a) one Leading Writer/writer when performing the duties of the Stenographer in Ships commanded by Captains and in Leaders of Squadrons; (b) one Chief Petty Officer/Writer/Petty Officer Commanding, Indian Fleet when performing the duties of the stenographer on the following conditions :

(i)

The allowance will be paid only if the individual is adjudged as qualified stenographer and passes the prescribed trade tests.

(ii)

The allowance will only be admissible while serving on board a ship when civilian stenographers are not available.";

Toilet requisites while in Civil or Military or Naval or Air Force Custody Allowance for the purchase of

177.

Admissibility and rates.

(1)

When pay is inadmissible to sailors during the period they are in civil, military, naval or air force custody awaiting trial, they shall receive an allowance of two rupees per month for the purchase of essential toilet requisites like tooth paste, soap and the like.

(2)

The allowance shall be payable monthly in advance.

[SUBSISTENCE ALLOWANCE]

[Inserted by S.R.O. 9-E, dated 19th March, 1974]

177.

-A. Subsistence Allowance to pensioners, Discharged sailors and Relatives of Deceased Sailors.

- Subsistence allowance shall be granted to the sailors (serving/discharged pensioners) or the relatives of deceased sailors at the rates and on the specified occasions as shown below, namely :

(a)

Pensioners or discharged sailors when appearing before re-survey medical board for re-assessment of their disability which is regarded as attributable to or aggravated by Naval service :

(i)

For the period detained at stations where medical boards are held.

Free

rations or an allowance in lieu thereof under regulation 172-A;

(ii)

For the period of transit between their homes and the stations where medical boards are held and vice-versa.

Rs.

2/- per day

(b)

Pensioners or discharged sailors whose disability has been regarded as attributable to or aggravated by Naval service while attending hospitals or centres for repair or renewal artificial limbs :

(i) For the period

detained in hospitals or centres

Free rations or an

allowance in lieu thereof under regulation 172-B.

(ii) Subsistence

allowance for the period of transit from and to their homes and hospitals or centres

Rs. 2/- per day

(c)(i) Subsistence

allowance to discharged or released sailors while attending investitures held by Civil officials for the presentation of medals and decorations.

Rs. 2/- per day

both for the period of transit & halt.

(ii) Subsistence

allowance to one relative of deceased sailor attending investitures held by civil officials for the presentation of medals and decorations

Subsistence Allowance to Families of Sailors Awarded Imprisonment/detention

[177-B. Admissibility and Rates.

[Inserted by S.R.O. 19(E), dated 23rd October, 1986]

- A subsistence allowance of Rs. 60/- per month shall be paid to the family of married sailors who are awarded imprisonment or detention by their Commanding Officer or by a Court Martial and who are not dismissed from service.

The allowance shall be payable during the period the pay and allowances are forfeited. The allowance shall be adjusted against any credits that might later become available by way of remission or acquitted to the individuals.

Note. - When the above amount is remitted by money order, the money order commission shall be charged to the Government.";]

Note. - Grant of allowance in respect of sub-clause (i) and (ii) of clause (c) shall be restricted to a maximum of five days only. The allowance shall not be admissible if the individuals reside at the station where presentation takes place.

Unit and Charge Certificate Allowances to Engine Room Artificers and Mechanics

178.

Rates and conditions of admissibility.

(1)

Engine room artificers and mechanics of the Indian Navy who are on continuous service terms, shall be granted unit certificate allowance and charge certificate allowance, provided that they are re-engaged, or undertake in writing to re-engage, to complete the minimum qualifying service for pension, at the following rates, namely:

(a)

[Unit certificate allowance

[Inserted by S.R.O. 19(E), dated 23rd October, 1986]

(i)

Lower rate-at Rs. 25 per mensem;

(ii)

Higher rate-at Rs. 50 per mensem.

(b)

Charge certificate allowance--

(i)

Lower rate-at Rs. 50 per mensem;

(ii)

Higher rate---at Rs. 75 per mensem;

(iii)

Special rate-at Rs. 90 per mensem.]

(2)

(a)

The Lower rate of unit certificate allowance shall be payable

(i)

during the first ten years' engagement-on completion of two years from the date of qualifying for the unit certificate.

(ii)

during the period of re-engagement beyond ten years to complete the time for pension-from the date following the date of completion of ten years' service since attaining a man's rate or since attaining the age of 17 years whichever is later, if they are already qualified for the unit certificate, or from date of qualifying for the unit certificate, whichever is later.

(b)

The higher rate shall be payable during the period of re-engagement to complete the time for pension from the date following the date of completion of ten years' service since attaining man's rate or since attaining the age of 17 years whichever is later, provided that the lower rate has been drawn for a period of two years after qualifying for the certificate.

(c)

[The special rate shall be admissible for periods of re-engagement beyond fifteen years provided the higher rate has been drawn for a period of two years.]

[Inserted & Substituted by S.R.o. 9-E, dated 19th March, 1974]

(3)

The lower rate of charge certificate allowance shall be payable

(i)

during the period of their first ten years' engagement-on completion of two years from the date of qualifying for the charge certificate;

NO during the period of re-engagement beyond ten years to complete time for pension-from the date following the date of completion of ten years' service since attaining man's rate or since attaining the age of 17 years whichever is later, if they are already qualified for the Charge Certificate, or from date of qualifying for Charge Certificate whichever is later.

(b)

The higher rate shall be payable during the period of re-engagement beyond ten years to complete the time for pension from the date following the date of completion of ten years' service since attaining a man's rate or since attaining the age of 17 years whichever is later, provided that the lower rate has been drawn for a period of two years after qualifying for the certificate.

Explanation. - The period of the "first ten years' engagement" referred to in sub-regulations (2)(a)(i) and (3)(a)(i), shall in the case of those engine room artificers and mechanics who have signed for eight years' engagement and have been transferred to continuous service and have re-engaged to complete the time for pension include their period of eight years' engagement plus two years of their period of re-engagement.

(4)

Unit and charge certificate allowances shall not be drawn concurrently; only one allowance shall be admissible at a time.

(5)

Engine room artificers and mechanics who are released from service after the 1st September, 1952, but who are subsequently re-engaged to complete the time for pension shall also be eligible for these allowances.

Note. - The admissibility of the above said allowances shall be subject to specific orders of the Government to be issued from time to time but engine room artificers and mechanics already in receipt of such allowances shall continue to draw the allowances under these regulations notwithstanding any decision that may be made to withdraw those allowances.

[178-A. Flight Charge Certificate Allowance

[Inserted & Substituted by S.R.O. 132, dated 9th May, 1989]

- Flight Charge Certificate Allowance shall be admissible to the following categories of sailors holding the flight charge certificate at the rates indicated against each :

(a)

Master Chief Air Artificers/Mechanicians Class I and Class 11 and Chief Air Artificers/Mechanicians-Rs. 100/-per month :

(b)

Air Artificers/Mechanicians Class I, Class 11 and Class III Rs. 501 per month]

Cash Allowance in Lieu of Soap Toilet

[178-B.

[Inserted by S.R.O. 9-E, dated 19th March, 1974]

Sailors (including boys and apprentices), who are authorised to get soap toilet for bathing purposes but are not provided with the same in kind, shall be granted a cash allowance in lieu thereof at the rate of eighty-seven paise per month.]

178.

-C. Admissibility of bonus.

[Inserted & Substituted by S.R.O. 132, dated 9th May, 1989]

(1)

Bonus shall be credited to IRLAS of the sailors at the rate of 4.8%, per annum, compounded quarterly, that is 60 paise per quarter of each complete sum of Rs. 50/- of the credit balance in the IRLA as it stood at the end of the each quarter less the net pay and allowances for the last month of the quarter. Sums less than Rs. 50/- in the balance shall be disregarded.

(2)

In the case of individuals who become casualties, bonus shall be credited upto the last day of the quarter preceding that in which their account has been finally closed.

Note. - For the purpose of calculation of interest on credit balance, pension of re-employed pensioners where paid through IRLASs shall also be taken into account".]

Chapter VIII

Leave Allowances

179.

Admissibility.

- Full pay and allowances shall be admissible to sailors, boys and artificer apprentices during all kinds of leave; and the admissibility or otherwise of compensatory allowances, dearness allowance during leave shall be regulated in accordance with the relevant provisions contained in Chapter VII.

Explanation. - Sailors who take up any civil employment (Government or private) during their leave pending discharge or retirement, transfer to the reserve or pension establishment shall, during the period of such leave, remain entitled to pay and allowances under this regulation provided that dearness allowance and other compensatory allowances shall be admissible only on the basis of the pay of the civil post, and dearness allowance drawn by such sailors from the Navy shall be deducted by the civil employer at the time of payment of the civil pay and allowances.

180.

Overstayal of leave.

- If an individual overstays his leave, his pay and allowances shall be regulated as follows :

(a)

If found guilty, he shall be dealt with under the Navy Act, 1957 and awarded mulcts of pay.

(b)

If found not guilty, an extension of leave to cover the period in question shall be granted by the authority who sanctions the leave, and the period of such extension shall be debited to his annual leave account for the current year; and if no annual leave is due for that year, such leave shall be treated as an advance of the next year's annual leave.

(c)

An overstayal of casual leave in excess of the maximum admissible will involve its conversion into annual leave.

[180-A. Encashment of leave entitlement.

[Inserted by S.R.O. 132, dated 9th May, 1989]

- In the event of death, while in service, the sailors (including apprentice and boys) the cash equivalent of pay and dearness allowance that the deceased individual would have got had he gone on annual/accumulated annual leave but for his death, due and admissible, on the date immediately following the date of death, shall be paid to the heir.

Explanation. - The term "pay is for this purpose shall in addition to basic pay include:

(i)

Good conduct pay,

(ii)

Flying pay

(iii)

Submarine pay,]

Part IV ? General

Chapter IX

Fees-Awards-Rewards Fees

181.

For setting papers for promotion examinations.

(1)

Commanding Officers of Indian Naval Ships or Establishments shall receive a fee of fifty rupees for drawing up each set of question papers in the examination for promotion to the rank of

"Lieutenant" and "Commander".

(2)

A similar fee shall also be admissible to engineer officers for drawing up each Connection with the examination for promotion to the ranks of "Lieutenant(Engineer)" and "Commander (Engineer)".

(3)

The total expenditure under each account referred to in either sub-regulation (1) or (2) shall not, however, exceed four hundred rupees per annum.

182.

For conducting examinations in Hindustani or Hindi.

- The authorised fees admissible to examiners for conducting examinations in Hindustani or Hindi shall be as follows :

Category

of examiners

Rupees

(a) Indian

naval examiners (excluding the supervising officer) appointed on the special board of examiners convened by the Chief of the Naval Staff for the examinations of Indian Naval Officers, to conduct the Lower Standard and Higher Standard Hindustani or Hindi Test or either of these.

Fifty

(b)

Indian Naval Commissioned Officer detailed to assist the aforesaid board in the oral test

Five

(c) Petty

Officer detailed to assist the aforesaid board in the oral test.

Three

183.

For nautical assessors.

- When an Officer of the Indian Navy is appointed to act as an assessor to a court empowered to make formal investigation under Part XII of the Merchant Shipping Act, 1958 (44 of 1958

) he shall receive fifteen rupees per diem, which shall not be subject to any deductions.

184.

Pilotage fees to Commanding Officer and Navigating Officer.

(1)

The rates of pilotage fees in respect of particular ports admissible to Commanding Officers and Navigating Officers of the Indian Naval Ships under the appropriate regulations for the Navy shall be laid down by the Chief of the Naval Staff from time to time and such rates shall not exceed two-thirds of the customary fees payable to pilots for such ports.

(2)

Claims for pilotage preferred by Commanding Officers of Indian Naval ships and those preferred by Navigating Officers require the approval of the Chief of the Naval Staff, before submission for payment to the Controller of Defence Accounts (Navy).

(3)

The grant of pilotage fees to such an officer is restricted to six times in and six times out of anyone port or channel and to six times of picking; on the same anchorage during the period for which the officer is borne continuously for service in the same ship.

(4)

If either the Commanding Officer or the Navigating Officer be ineligible for pilotage fees at a port or channel owing to the restriction imposed by sub-regulation (3), that officer's share of the total pilotage fees admissible shall lapse and shall not be payable to any other officer.

185.

Payment to pilots when employed.

(1)

The Commanding Officer of an Indian Naval ship may, if he employs any pilot in such ship, make payments to such pilot out of the contingent money in his charge and forward the receipted bills to the Chief of the Naval Staff for his sanction, if such employment is later considered by the Chief of the Naval Staff to be unnecessary in any case, the sum so paid already by the Commanding Officer shall be deducted from his salary unless he can justify such employment to the Chief of the Naval Staff.

(2)

When it may be found necessary to employ one ship to tow another, only one pilot shall be paid, except in extraordinary cases, the particulars of which are to be noted in the relevant certificates connected with such employment. The payment for pilotage shall be made only to the pilot of either ship to whom the senior officer shall think fit to give charge.

Such pilot may be directed by the senior officer to be in whichever ship he may consider most advantageous under the circumstances of the service to be performed.

186.

Navigation allowance.

- Officers and sailors of the Navy when employed in taking to their destinations vessels built or refitted for other departments in the Naval dockyard, may, subject to the approval of the Chief of the Naval Staff, be granted navigation allowance at the following rates from the time of taking charge of the vessel to the date of delivery of the same at destination :

Rs.

per diem

General

List Officer

6.00

Special

Duties List Officers

4.00

Sailors

0.50

Explanation 1. - Navigation allowance shall not be admissible to the civilian crew specially engaged or provided by the Dockyard concerned for the navigation of a vessel.

Explanation 2. - No other allowance except pilotage fee when admissible under regulations 184,185 may be granted for the service stated in sub-regulation (1).

Explanation 3. - Charges on account of the above allowances are debitable to the department for which the vessel was built or refitted.

Annual Retaining Fee-Officers

187.

Retaining Fee.

- Retaining fee at the following rates shall be allowed to the undermentioned categories of officers, namely :

(1)

Short Service Commissioned Officers :-

For

each year they are placed on the Emergency List on expiry of their short service contract

Rs.

200/- per annum.

(2)

Indian Naval Reserve/Indian Naval Volunteer Reserve officers :-

For

each year of reserve liability.

Rs.

400/- per annum.

Retaining Fee for Fleet Reservists

187.

-A. Retaining Fee.

- Fleet Reservists or all categories shall be entitled to a retaining fee of Rs. 20 per mensem under the conditions as laid down in Government orders issued from time to time.]

Rewards

188.

For apprehension of deserters.

- Any person who apprehends a deserter from the Indian Navy, shall except when such deserter voluntarily surrenders before him, receive a reward of [one hundred rupees]

[Substituted by S.R.O. 132, dated 9th May, 1989]

. The amount of the reward and the cost of the deserter's or absentee's own railway fare or sea passage or both, as the case may be, shall be charged against the deserter's pay.

189.

For apprehension of prisoners of war.

- The person who apprehends or gives information which leads to the apprehension of a prisoner of war who has escaped from a prisoner-of-war camp, or from any authorised place of employment, segregation, or detention, or who has effected his escape while travelling, shall receive a reward of twenty rupees and such reward shall be payable by the Commanding Officer in charge of the camp to which the prisoner of war is first brought after apprehension.

Awards

190.

Language awards.

(1)

The monetary grants for qualifying in modern foreign languages and Indian languages are as laid down in the Language Regulations for the Armed Forces.

(2)

The fact of passing a language examination by a Commissioned Officer shall be notified in the return of appointments, promotion and awards issued by the Chief of the Naval Staff and such notification shall be the authority for the admission of the prescribed award by the Controller of Defence Accounts (Navy).

[191. Gallantry decorations awarded after the 15th August, 1947-Rates and conditions.

[Substituted by S.R.O. 19-E, dated 23rd October, 1986]

(1)

The rates of special pension per month attached to gallantry decorations awarded to any officer or sailor shall be as given hereunder:-]

Gallantry

Award

Pension

Per month

(a)(i)Param

Vir Chakra

Rs.

100

(ii)Each

Bar to Param Vir Chakra

Rs

40

(b)(i)Maha

Vir Chakra

Rs

75

(ii)

Each Bar to Maha Vir Chakra

Rs

25

(c)(i)Vir

Chakra

Rs

50

(ii)

Each Bar to Vir Chakra

Rs

20

(d)(i)Ashoka

Chakra

Rs

90

(ii)

Each Bar to Ashoka Chakra

Rs

35

(e)(i)Kirti

Chakra

Rs

65

(ii)

Each Bar to Kirti Chakra

Rs

20

(f)(i)Shourya

Chakra

Rs

40

(ii)

Each Bar to Shourya Chakra

Rs

16

The above rates will take effect from 1st January 1972 and will be applicable to all awards made after 15th August 1947.

(2)

The pensions shall be admissible with effect from the date of the act or event in respect of which the decoration is granted.

(3)

Pension for only one decoration (and a bar or bars thereto) shall be drawn at a time; and the less favourable rate of pension shall be relinquished from the date of grant of the higher decorations.

(4)

The pension shall be admissible to the recipient of the decoration till his death, and on his death to his widow who has been lawfully married to him by valid ceremony; and she shall continue to receive the pension until her re-marriage or death: provided that such payment shall be continued to a widow who remarries her late husband's brother and continues to live with the deceased's other living heirs who are eligible for family pension.

Explanation. - Ordinarily, the pension payable to an officer/sailor shall, on his death, be paid only to the widow who was his first wife. But with the special sanction of the Central Government, such pension may be divided equally between all the widows of the recipient, and payments to all the widows shall cease when the pension to the widow who was his first wife, ceases to payable as herein before provided.

(5)

When the award is made posthumously to a bachelor, the monetary allowance shall be paid to his father or mother, and in case the posthumous awardee is a widower, the allowance shall be paid to his son below 18 years or unmarried daughter as the case may be.

(6)

Pension under this regulation is liable to be forfeited on conviction for the following offences and shall be stopped with effect from the date indicated in the Gazette of India notifying the forfeiture of the award namely:

(a)

Treason

(b)

Sedition

(c)

Mutiny

(d)

Cowardice

(e)

Desertion during hostilities

(f)

Murder

(g)

Dacoity

(h)

Rape

(j)

Unnatural offences.

Such pension as may have been forfeited shall become payable on the restoration of the award as notified in the Gazette of India.

[191-A. Monetary rewards.

[Inserted & Substituted by S.R.O. 9(E), dated 19th March, 1974]

(1)

Gorkha Commissioned officers and sailors of Nepalese domicile in the Navy, who are awarded the gallantry decorations shall receive special lump sum monetary rewards as specified below, namely :]

(a)

Param Vir Chakra

[15000]

[Substituted by S.R.O. 132, dated 9th May, 1989]

(b) Maha

Vir Chakra

[Rs. 10,000]

[Substituted by S.R.O. 132, dated 9th May, 1989]

(c) Vir

Chakra

[Rs. 5000]

[Substituted by S.R.O. 132, dated 9th May, 1989]

(2)

The award of a bar to the medal will not entitle the recipient of the same to a further reward.

(3)

In the case of posthumous awardees and awardees who died before the receipt of the reward, the lump sum monetary reward shall be paid to their heirs in the order mentioned below, namely:

(i)

the widow of the deceased;

(ii)

the male lineal descendent of the deceased in the male line of descendent;

(iii)

the unmarried daughters of the deceased;

(iv)

the parents of the deceased.)

192.

Gallantry awards and Jangi Inams in force prior to 15th August, 1947.

- Recipients of the awards which were in force prior to the 15th August, 1947 and Jangi Inams for meritorious service rendered in the Second World War (1939-1945) shall continue to receive allowances attached thereto in accordance

with the relevant orders for the time being in force on the subject.

Non-Gallantry Awards

193.

The Meritorious Service Medal with annuity and the Long Service and Good Conduct Medal with gratuity.

(1)

For the non-gallantry medals mentioned below the pecuniary benefits indicated against them shall be admissible :

(a)

The Meritorious Service Medal. - An annuity of one hundred rupees, admissible with effect from the 15th August of the year for which the award is made.

(b)

The Long Service and Good Conduct Medal with Gratuity. - A gratuity of one hundred rupees.

(2)

The categories of personnel eligible for the medals, the qualifications and conditions governing the awards are laid down in the relevant regulations for the Navy.

Chapter X

COMPENSATION

Compensation for non-provision of government accommodation and allied services-officers

194.

Admissibility.

(1)

In cases in which accommodation is not available in the station pool of accommodation, an officer entitled to be provided with accommodation, may be permitted by the Station Commander in writing to make his own arrangements for accommodation. The officer, in that case, shall be entitled to the reimbursement of expenditure incurred towards [Licence Fee]

[Inserted & Substituted by S.R.O. 9-E, dated 19th March, 1974]

in excess of the amount he would normally be required to pay if Government accommodation is provided.

(2)

Where officers are permitted to make private arrangements for accommodation, the sanction of the Station Commander accorded within a period of two months from the date of hiring of private accommodation shall be treated as in order. Application for approval of the scale and [Licence Fee]

[Inserted & Substituted by S.R.O. 9-E, dated 19th March, 1974]

of such hired accommodation shall be made either before or within 10 days of the date of hiring.

While according sanction, no relaxation shall be made by the Station Commander in regard to the conditions pertaining to the scale, area, rate of [Licence Fee]

[Inserted & Substituted by S.R.O. 9-E, dated 19th March, 1974]

or the like.

(3)

The certificate of non-availability of married accommodation shall be issued by the Station Commander to the officer within a period of 10 days of the provision of single accommodation.

195.

Officer unable or unwilling to make his own arrangements.

- In cases in which accommodation is not available in the station pool of accommodation, an officer entitled to be provided with accommodation and who is unable or unwilling to make his own arrangements for accommodation, may be provided with suitable accommodation in a hotel, club, boarding house, and the like, under the orders of the Station Commander; and the officer, in that case, shall be entitled to reimbursement of the difference, if any, between the approved [Licence Fee]

[Inserted & Substituted by S.R.O. 9-E, dated 19th March, 1974]

of the quarter occupied and the normal [Licence Fee]

[Inserted & Substituted by S.R.O. 9-E, dated 19th March, 1974]

which he would be required to pay if Government accommodation is provided.

196.

Conditions of admissibility.

- The compensation admissible for non-provision of Government accommodation under regulations 194 and 195 is subject to the following conditions:

(a)

The provision of accommodation under private arrangements or in a hotel or boarding house should be authorised only for a period not exceeding three months at a time and it should be stipulated in the lease, if any, that the hiring may be terminated without notice at the end of any calendar month.

(b)

The accommodation arranged in hotels, clubs or boarding houses, or under officers' own private arrangements, shall not be more than is necessary to house the officer and his family and such servants, horses or motor cars as he may be authorised to and does actually maintain; and in any case the officer shall not, under this arrangement, be allowed more accommodation than that which would be allowed in a Government hostel. In towns where there are hostels of different grades, accommodation shall not be arranged in hotel, and the like, in a grade higher than what is suitable to the rank of the officer.

Explanation. - The term "family" for the purpose of clause (b) shall mean an officer's wife, legitimate children and step children residing with and wholly dependent on him.

(c)

The accommodation arranged, which shall be of a class and scale suitable to the rank and status of the officers, shall be approved by the Officer Commanding, Station except in the case of officers of the rank of Captain in which case the approval of the General Officer, Commanding Area shall be obtained.

(d)

In the case of hotels, clubs and the like, the Officer Commanding, Station shall determine what proportion of the charges made by the hotel, clubs and the like, should be allocated to [Licence Fee]

[Substituted by S.R.O. 9-E, dated 19th March, 1974]

and the decision on this point shall be based on a consideration of the accommodation occupied and the comparative cost of similar accommodation elsewhere.

(e)

When necessary arrangements for accommodation in each case have been concluded, the amount of [Licence Fee]

[Substituted by S.R.O. 9-E, dated 19th March, 1974]

shall be approved in writing by the Officer Commanding, Station except in the case of officers of the rank of Captain in which case it shall be approved by the General Officer, Commanding Area. The [Licence Fee]

[Substituted by S.R.O. 9-E, dated 19th March, 1974]

fixed under such arrangement shall not, in any case, exceed the [Licence Fee]

[Substituted by S.R.O. 9-E, dated 19th March, 1974]

payable by Government for similar hired accommodation in the station. In cases in which the [Licence Fee]

[Substituted by S.R.O. 9-E, dated 19th March, 1974]

is excessive, specific orders in writing of the General Officer, Commanding Area shall be obtained.

(f)

The [Licence Fee]

[Substituted by S.R.O. 9-E, dated 19th March, 1974]

and other charges shall be paid direct to the landlord, hotel and the like, as the case may be, by the officer concerned and he shall be entitled to reimbursement admissible under regulations 194 and 195.

197.

Officers permitted to live in their own houses.

- Officers, for whom Government accommodation is not available in the station pool of accommodation and who are permitted by the Station Commander in writing to live in their own house at their place of duty, shall be reimbursed the amount equivalent to the difference between the rental value of such house as determined by the Station Commander on the basis of their entitlement and the amount of [Licence Fee]

[Substituted by S.R.O. 9-E, dated 19th March, 1974]

recoverable from them for accommodation for their class.

Explanation. - The provisions contained in this regulation are subject to review and shall remain operative so long as a

similar concession is applicable to civilian officers of the Central Government.

198.

Provision of furniture.

(1)

When an officer is living in Government accommodation, owned or hired by the Military Engineering Service or is permitted with the approval of the Station Commander to arrange for his own accommodation, he shall be provided with furniture according to the authorised scale under the relevant rules. When this is not practicable he may be permitted with the approval of the Military Engineering Service to hire furniture within the authorised scale and any hire charges in excess of two and a half per cent of the officer's pay but subject to a maximum limit of a further two and a half per cent of his pay shall be met by the Central Government.

(2)

Officers entitled to be provided with free furniture shall, under this regulation, be reimbursed hire charges up to five per cent of their pay.

Explanation 1. - Officers living in factory quarters are also entitled to the aforesaid concession. But such officers shall not be provided with furniture either by the Military Engineering Service or factory authorities and they shall hire furniture from private sources. The Barrack Officer shall in that case check and certify that the articles so hired are within the authorised scales and have been hired on reasonable rates in accordance with the prevalent market rates. On the strength of such certificate, the Supply Officer-in-Charge, Naval Pay Office, Bombay, shall reimburse the officer, the excess hire charges on the scales laid down above.

Explanation 2. - When the Military Engineering Service authorities are unable to provide any furniture to an officer and he buys his own set, he shall not be entitled to any rebate or reimbursement from Government under the above regulation.

199.

Garages.

(1)

If the Station Commander is unable to provide garages to officers who actually maintain cars and for whom garages are authorised as part of their residences to which they are entitled, such officers may hire garages with the permission of the Officer Commanding the Station. In such a case the officer concerned may claim reimbursement of the hire charges for the garage, provided the Station Commander certifies that a garage could not be provided and no cheaper arrangement was possible.

(2)

The provisions of sub-regulation (1) shall not apply to officers provided with accommodation in Delhi or New Delhi.

Compensation in lieu of Quarters-Sailors

200.

Admissibility.

- When family quarters are not provided for sailors at their duty station but they are entitled thereto under the relevant rules in force or if accommodation inferior to that authorised is provided, compensation in lieu of such quarters shall be admissible under these regulations.

Explanation 1. - In the case of sailors afloat, the port at which their ship is based shall be deemed to be their duty station for the purpose of grant of compensation.

Explanation 2. - Sailors afloat and ex-India who are unable to accept accommodation allotted due to their absence from the base port shall be considered as not having been allotted accommodation till they return to the base port for the purpose of entitlement to compensation, provided always that this shall not result in Government accommodation remaining vacant.

201.

Rates of compensation when no accommodation is provided.

- When no quarters are provided, compensation shall be admissible at the following rates:

Rate

Ordinary

Rs. p.m.

Special

Rs. p.m.

Master

Chief Petty Officer I and II

[Inserted by S.R.O. 9-E, dated 19th March, 1974]

48

61

Chief

Petty Officer

28

42

Petty

Officer

21

31.5

Leading

Rate

14.44

21.66

Able/Ordinary

Rates

10.5

15.75

Explanation. - The special rates shall be admissible to those employed at Calcutta, Bombay, Madras, Delhi, New Delhi and Simla (including those employed at Armed Forces Headquarters and Inter-Service Organisations at New Delhi or Delhi or Simla). The special rates shall also be admissible in the adjacent localities which are specially included within the limits of these cities for the purposes of Compensatory (City) Allowance.

202.

Element of water, light, furniture and conservancy.

(1)

The rates of compensation laid down in regulation 201 include those in lieu of water, light and furniture. In the case of sailors serving in the Armed Forces Headquarters (including Inter-Service Organisations) at Delhi, New Delhi and Simla and who are provided with free Government accommodation but with no services of water, light and furniture, compensation in lieu of such services, shall be admissible at the following rates, namely:-

Rs.

per mensem

Water

1

Light

62

Furniture

1.19

(2)

Free conservancy or allowance in lieu thereof is not included in the rates given in regulation 201 and is, therefore, admissible, in addition, in terms of regulation 142.

203.

Compensation when inferior accommodation is provided.

- Compensation for inferior quarters shall be a sum proportionate to the "ordinary" rates of compensation as laid down in regulation 201 based on the floor area of the main rooms occupied compared with the authorised scale laid down in the relevant regulations.

204.

Compensation to [Master Chief Petty Officers and]

[Inserted by S.R.O. 9-E, dated 19th March, 1974]

Chief Petty Officers.

(1)

Married [Master Chief Petty Officers and]

[Inserted by S.R.O. 9-E, dated 19th March, 1974]

Chief Petty Officers who are permitted to live out with their families under private arrangements shall be entitled to compensation at the rates laid down in regulation 201 irrespective of whether single Government accommodation is available or not. Compensation at those rates shall continue to be admissible to such [Master Chief Petty Officers and]

[Inserted by S.R.O. 9-E, dated 19th March, 1974]

Chief Petty Officers during the temporary absence of their families provided that such absence does not exceed three months. If they continue to live without their families, after the expiry of three months, compensation shall be restricted to two-thirds of the prescribed rates.

(2)

Single [Master Chief Petty Officers and]

[Inserted by S.R.O. 9-E, dated 19th March, 1974]

Chief Petty Officers and married Master Chief Petty Officers and Chief Petty Officers living without their families, and who are permitted to make their own arrangements, shall be entitled to compensation at two-thirds of the rates specified in regulation 201.

205.

Compensation to Petty Officers and below.

- Married sailors of the rate of Petty Officer and below, who are not provided with married accommodation but are permitted to live out and make their own arrangements irrespective of the fact whether or not Government is in a position to provide them with single accommodation, shall be granted compensation at full rates, provided that they are within the authorised percentages of married establishments.

206.

Compensation during temporary absence on duty or leave.

- Compensation shall continue to be admissible during periods of temporary absence on duty and during absence on annual leave, provided that-

(a)

the sailor concerned was drawing it while on duty immediately before proceeding on leave;

(b)

during such absence he retains and does not sublet the house which he had hired while on duty;

(c)

his Commanding Officer certifies that an equivalent amount of expenditure has been incurred on house rent at the station of duty during the period of absence as when on duty; and

(d)

the leave granted to the sailor is not leave preparatory to retirement or discharge.

207.

Compensation when not admissible.

(1)

Compensation shall not be paid to a sailor to whom Government accommodation of the authorised class has been allotted but who, thereafter, prefers to take private accommodation; nor shall it be paid to a sailor in receipt of any special allowance in lieu of accommodation.

(2)

Compensation on the scale appropriate to a higher appointment shall not be admissible to a sailor who is acting in such appointment; nor to a sailor for whom accommodation, on the scale laid down for his substantive appointment is available but who elects to retain his inferior quarters.

(3)

Compensation for inferior quarters shall not be admissible-

(a)

in hutted camps;

(b)

when Government tents have been provided;

(c)

when, in the opinion of the accommodation allotting authority, the sailor concerned is suitably housed irrespective of the scale of accommodation laid down;

(d)

owing to deficiencies in out-houses;

(e)

to sailors who are entitled to compensation in lieu of quarters at less than rupees six per mensem;

(f)

to sailors in occupation of Government accommodation declared not habitable; the occupation of such accommodation shall also be at their own risk and cost.

208.

Procedure for claims.

- Claims for compensation shall be prepared by the ships and establishments and forwarded to the Supply Officer-in-Charge, Naval Pay Office, Bombay, for crediting the amounts to the respective sailor's accounts. These claims shall be supported by the following certificates and particulars, namely:-

(a)

In respect of claims submitted for the first time

(i)

a copy of the order authorising the sailor to make private arrangements for accommodation at the duty station where Government married accommodation is not available;

(ii)

a certificate from the sailor that extra expenditure to the extent of the claim has actually been incurred by him in making private arrangements;

(iii)

in the case of [Master Chief Petty Officers and]

[Inserted by S.R.O. 9-E, dated 19th March, 1974]

Chief Petty Officer, the claim shall indicate whether he is married and whether he is living with his family or not.

(b)

In respect of claims for subsequent months

(i)

a certificate from the Commanding Officer to the effect that no Government accommodation has been provided since the issue of the order referred to in clause (a) (i);

(ii)

certificate and particulars as required in sub-clauses (ii) and

(iii)

of clause (a).

(c)

In the case of personnel on leave or temporary duty, in addition to the certificate and particulars mentioned in sub-clause (ii) and (iii) of clause (a), certificates in terms of regulation 206 shall also be furnished.

(d)

The first claim on account of compensation for inferior accommodation shall be supported by a certificate from the Garrison Engineer regarding floor area of the concerned building.

Compensation, for Loss or Damage

209.

[Compensation in respect of officers.

[Substituted by S.R.O. 19(E), dated 23rd October, 1986]

(1)

If any article of equipment, clothing (including personal clothing), books, instruments, tools or accessories being the personal property of an officer is lost, damaged or destroyed under circumstances mentioned below the Government

shall he liable to pay compensation to the officer provided the loss, damage or destruction was not due to the negligence on part of the claimant.]

(i)
When the loss, damage or destruction is caused by the action of the enemy or insurgents;

(ii)
When the loss, damage or destruction is due to an accident occurring when the officer was travelling by road, river, rail, sea or air on duty:

(iii)
When the articles are lost, damaged or destroyed in a Naval Ship or a Government building, whether owned, hired or rented, or in a tent in use under appropriate authority and for a recognised service purpose, provided the officer had no option but to live in such accommodation for the performance of his Naval duties.

(iv)
When the articles are lost, damaged or destroyed, while in transit by rail, road, air, river or sea provided that they were in the charge and custody of Government at that time.

(v)
When the articles are destroyed under the orders of the competent authority;

(vi)
When the articles are lost, damaged or destroyed during the performance of duty.

2. Compensation will be sanctioned on the basis of the recommendations of a Board of Inquiry convened by the Administrative Authority. In respect of items which an officer is required to purchase out of outfit allowance, the Board of Inquiry will determine the proportion which the cost of such item destroyed bears to the total cost of all items purchased out of initial outfit allowance granted at the time of commissioning and the compensation will be limited to the same proportion of the initial outfit allowance.

3. Articles of equipment clothing or necessities which are issued free will be replaced by Government on the recommendations of the Board of Inquiry.

4. Compensation for the loss of clothing (including personal clothing) equipment and articles occurring in the above-mentioned circumstances may also be sanctioned by the Administrative authority if recommended by the Board of Inquiry, subject to a limit of Rs. 1,000/- in each individual case. Compensation will not cover items like jewellery, refrigerators, air conditioners and other expensive articles. The competent authority will take into account the cost price of the articles, the period for which they had been used, and their depreciation while assessing the amount of compensation.

Where the Board of Inquiry recommends compensation in excess of the above amount the case may be referred to Government for consideration on merits.

210.

[Compensation in the case of sailors.

[Substituted by S.R.O. 19(E), dated 23rd October, 1986]

(1)
If any article of equipment, clothing (including personal clothing), books, instruments, tools or accessories, being the personal property of a sailor is lost, damaged or destroyed under circumstances mentioned below, the Government shall be liable to pay compensation to the sailor provided the loss, damage or destruction was not due to the negligence on part of the claimant.

(i)
When the loss, damage or destruction is caused by the action of the enemy or insurgents;

(ii)
When the loss, damage or destruction is due to an accident occurring when the individual was travelling by road, river, rail, sea or air on duty;

(iii)
When the articles are lost, damaged or destroyed in a Naval Ship or a Government building whether owned, hired or rented, or in a tent in use under proper authority and for a recognised service purpose provided the individual had no option but to live in such accommodation for the performance of his duties;

(iv)

When the articles are lost, damaged or destroyed while in transit by rail, road, air, river or sea provided they were in the charge and custody of Government at that time;

(v)

When the articles are destroyed under the orders of the competent authority;

(vi)

When the articles are lost, damaged or destroyed during the performance of duty.

(2)

Compensation will be sanctioned on the basis of the recommendation of a Board of Inquiry by the Administrative Authority. The maximum limit for compensation in respect of personal clothing will be the "frozen rates."

(3)

Articles of equipment, clothing or necessities which are issued free, will be replaced by Government on the recommendation of the Board of Inquiry.

(4)

Compensation for the loss of clothing (including personal clothing) equipment and articles occurring in the above mentioned circumstances may also be sanctioned by the Administrative Authority recommended by the Board of Inquiry, subject to a limit of Rs. 500/- in each individual case. Compensation will not cover items like jewellery, refrigerators, airconditioners and other expensive articles. The competent authority will take into account the prices of the articles, the period for which they had been used, and their depreciation while assessing the amount of compensation. Compensation in the case of civilian clothing will be restricted to the civilian clothing allowance. Where the Board of Inquiry recommends compensation in excess of the above amount the case may be referred to Government for consideration on merits".]

211.

Compensation for instruments and books.

(1)

Claims on account of loss of, or damage to, instruments or professional books shall be treated on their merits; and in such claims, where they relate to books, the titles and publishers' names and where they relate to any instrument or chronometer, the maker's name, and the particulars of the original cost in each case, should be stated; and if any instrument or chronometer were used in the navigation of the ship, the Commanding Officer should give a certificate to that effect.

(2)

The compensation for an instrument lost or damaged shall be made either by the supply of another in lieu thereof, or by a money payment, at the discretion of the Chief of the Naval Staff. Books shall be replaced in kind.

212.

Compensation for infected clothing or personal effects destroyed.

(1)

When the clothing or other personal effects of an officer or a sailor suffering from an infectious disease on board a ship are ordered to be destroyed to prevent the risk of infection to others, a list of such clothing or effects shall be made and the actual value thereof shall be appraised.

(2)

A certificate from the medical officer concerned, stating the necessity for destroying the said articles, shall be endorsed on the list thereof and attached to the voucher for the payment or replacement. The list should not include articles other than those actually required for service.

(3)

In the event of the restoration of the patient to health, replacement shall be made or compensation paid according to the foregoing regulations; but in the event of death, no compensation shall be payable to the deceased person's representatives in respect of the articles destroyed.

213.

Compensation for tools.

- Compensation for loss of, or damage to, tools shall be calculated according to the current market values, but shall be paid in respect of only such tools as are included in the minimum toolkit of the individual who has sustained the loss or damage.

214.

Person who leaves the service before being compensated.

- When an officer or a sailor leaves the service for causes other than his own misconduct before being compensated for loss or damage sustained by him while in service, a report of the circumstances relating to the particular case shall be submitted to the Chief of the Naval Staff, who shall decide on the award of compensation to be made to the individual. Such award shall in no case exceed the actual value, so far as it can be ascertained, of the articles lost or damaged.

215.

Person who dies before being compensated.

- When an officer or a sailor dies before being compensated for loss or damage, no compensation shall be payable. If expenditure on compensation is incurred, but the officer or sailor dies before a claim for refund is made, the Chief of the Naval Staff may, on receipt of proof of the expenditure, make an award at his discretion to the legal representative of the deceased.

216.

No compensation admissible when an officer or a sailor can claim indemnification from individual at fault.

- Where loss or damage occurs in circumstances which give the officer or sailor a claim to indemnification from persons through whose fault it happened, no compensation shall be paid under these regulations; but if the officer or sailor so desires, and losses no time in making application to the senior officer present, an inquiry shall be ordered by the aforesaid senior officer and every assistance for obtaining the necessary evidence in support of the claim against the parties liable shall be rendered to the claimant.

217.

Compensation for loss of baggage sent by another vessel.

- Where an officer for his own convenience sends any of his baggage or articles of equipment by any of the Indian Naval Ships or a private vessel in which he himself is not travelling as a passenger, it shall be incumbent upon him to insure such baggage or articles, and if he neglects to do so no compensation shall be given in the event of their loss.

218.

No compensation for loss of money.

- No claim for compensation by an officer or sailor shall be admitted on account of loss of money, which is his private property, nor for losses sustained by officers while proceeding on, or returning from, leave of absence.

219.

Compensation for additional cost of car insurance.

(1)

An officer serving on the staff of any Indian Embassy or High Commission in a foreign country, who has not been provided with an official car for his use and in whose case maintenance of a private car has been certified by the concerned Ambassador or High Commissioner as necessary for the efficient performance of duties at the post abroad, shall be reimbursed at the following rates, the expenses incurred by him on account of Insurance of his private car maintained abroad :

Rs.

per mensem

(a)

Captain or Commander

25

(b)

Lieutenant Commander or Lieutenant

20

(2)

The payment shall be made on the officer's certifying each month that he maintains a private car, that he has taken out a comprehensive insurance policy for it and that it is in force; a copy of the receipt for every payment of insurance premium shall also be filed by the officer with the Embassy or High Commission.

220.

Submission and investigation of compensation claims.

(1)

All claims for compensation the words ["other than those falling under Regulations 209 and 210"]

[Inserted by S.R.O. 19(E), dated 23rd October, 1986]

shall be submitted to the Chief of the Naval Staff for consideration within thirty-one days of the date of loss or damage. Late claims shall be rejected unless the claimant can prove that delay was unavoidable. Claims shall be investigated by a board of enquiry which should record an opinion as to the amount of compensation to be granted.

(2)

Pending finalisation of claims for compensation reasonable money advances may be made under the authority of the Chief of the Naval Staff to commissioned officers and to subordinate officers.

(3)

In respect of claims for loss or damage sustained by sailors, the following procedure shall be followed, namely:

(a)

immediately after the loss or damage, any articles of absolute necessity so lost or damaged shall be issued and their value charged in the ship's cash account and intimated to the pay accounting authorities for the purpose of recovery from the sailors to whom such issues have been made. These charges need not, however, be actually deducted from the pay of the concerned sailors, pending the result of necessary investigation;

(b)

the investigating officer shall assess the compensation proposed (if any) in money, articles of uniform clothing being assessed at the issue price of new articles. In no case compensation shall be awarded for loss of articles of clothing, and the like, which are in excess of the regulation kit (compulsory and optional) of the sailors held by the concerned sailor at the time of the loss or damage;

(c)

the report of the investigating officer shall be submitted to the Chief of the Naval Staff who shall award such compensation as he may consider equitable in each case. The amount awarded shall then be credited in the name of the sailor concerned in the Individual Running Ledger Account any debits incurred under clause (a) being liquidated before payment is made.

Chapter XI

Advances and Recoveries

Section I-Advances

General Rules

221.

General provision regarding the grant of advances.

(1)

Advances of money other than those admissible under these regulations or any other regulation for the time being in force and advances of money exceeding the limits laid down in such regulations, shall require the sanction of the Central Government.

(2)

Even though admissible under regulations, an advance shall not be given unless the circumstances require it, and then only to the extent necessary.

(3)

When an advance is sanctioned for a specific purpose, it shall only be drawn as required to meet current expenditure and in no circumstances shall it be diverted to any other purpose.

(4)

The payment of an authorised advance of pay shall be made by the Commanding Officer of the ship or establishment in which the individual is serving, on the application of the individual concerned.

222.

Grant of repayable advances.

- Advances falling under the head "Advances Repayable", other than advances for the purchase of motor cars, motor cycles and bicycles (For example, first formation of messes in an Indian Naval Ship, and the like) shall not be sanctioned until the Controller of Defence Accounts (Navy) has certified that funds are available in the year in which payment is proposed to be made. In the case of advances for the purchase of motor cars, motor cycles and bicycles, it shall be the duty of the sanctioning authority, before such an advance is sanctioned, to satisfy itself that funds are available.

223.

Yearly acknowledgement of Advances repayable.

(1)

On the first day of April each year, every officer who has received advances falling under the head "Advances Repayable", (for example, advances for the purchase of motor cars or motors cycles or bicycles, advances on the first formation of messes in Indian Naval Ships, and the like) shall send an acknowledgement in the prescribed form (Appendix X) to the Controller of Defence Accounts (Navy) stating that the amount of advance or loan outstanding on the 31st March of that year is due from him and is to be accounted for by him.

(2)

When an officer operating advances other than advances for the purchase of motor cars, motor cycles and bicycles, is relieved of his charge, he shall account for the advance to his successor and shall also submit an acknowledgement as mentioned above to the Controller of Defence Accounts (Navy).

224.

Adjustments on transfer.

- When an officer or sailor is transferred to another audit circle, all outstanding demands against him shall be adjusted by the audit officer of that circle.

Drawal of Advances of Pay on Naval Pay Books

225.

General conditions while serving in India.

- Under the Centralised Pay Accounting System followed in the Navy, pay and allowances due to an individual are credited in a running ledger account maintained by the Naval Pay Office separately for each individual. Actual monthly payments shall be made in the form of advances only, under the following conditions, namely :

(a)

Advances shall be made monthly in arrears normally on the first of the month following that for which it is due.

[If the first day (irrespective of whether it is Sunday) of a month is a public holiday, disbursement of pay and allowances to sailors may be authorised on the last working day before the holiday, by the administrative authorities at their discretion. The administrative authorities may also authorise disbursement of pay and allowances on the last working day of the previous month, if there is no common working day for ships offices and treasuries/bank during the first two days of a month :

Provided that earlier disbursement of pay and allowances is not to be authorised in March, even if the first day of April is a public holiday.]

[Inserted by S.R.O. 9-E, dated 19th March, 1974]

(b)

Advances shall not exceed the net entitlement of the individual as exhibited in his Naval Pay Book from time to time and any debit balance intimated by the Naval Pay Office through the statement of entitlement or change statement or otherwise shall be carefully adjusted; and paying officers shall be held personally responsible for any over-payments authorised or made.

(c)

An individual can draw, in round sum, the whole amount of his entitlement or, if he prefers, may draw a portion only and leave the balance in his pay account. Any sum thus undrawn shall not be drawn during the current month except in special circumstances, for example, advance to personnel proceeding on leave, advances of ration money and the like, and in every such case, prior written concurrence of the Officer-in-Charge, Naval Pay Office or the Commanding Officer shall be obtained.

(d)

Immediately after each payment, the amount paid shall be entered in the Pay Book of the individual and the payments shall be attested by the paying officer.

226.

Mode of drawal of advances of pay and allowances.

(1)

Officers may elect one of the following methods for the drawal of advances of pay and allowances, namely :-

(a)

payment in cash;

(b)

payment by cheque, when the paying officer operates a public banking account;

(c)

remittance to the bank through which the officer draws his monthly pay and allowances when the paying officer operates a public banking account.

(2)

Sailors shall draw advances of pay and allowances in cash only.

227.

Drawal of advances of monthly pay and allowances while serving ex-India.

- The drawal of advances of pay and allowances ex-India is subject to any restrictions that may be imposed by the Central Government from time to time.

Other Advances of Pay

228.

Definitions of 'advance of pay' and 'net pay'.

(1)

An advance of pay means a sum drawn after an individual has been paid up to the due date and shall be advance against the 'net pay' due for the period in respect of which such sum is drawn.

(2)

The 'net pay' of an individual is that amount of the monthly gross emoluments to which he is entitled after deduction of the regular monthly charges, for example, family allotment, income-tax, fund contribution and the like.

229.

Occasions and extent of drawing advance of pay.

- Advances of pay may be allowed to the extent and in the circumstances stated below :

(a)

[Officers

(i)

on transfer from one ship appointment to another necessitating change of station one month's pay.

(ii)

when proceeding abroad on duty or on deputation or returning to India from abroad--one month's pay.

(iii)

when proceeding on annual leave or combined leave pay for the annual leave portion of the leave.

NOTE : In determining the quantum of one month's pay for the purpose of payment of advance of pay, the following elements shall be included in pay :-

(a)

Pay

(b)

Qualification Pay.

(c)

Kit-Maintenance Allowance.

(d)

Flying pay.

(e)

Submarine pay.

(f)

Non-practising allowance-in the case of Medical and Dental Officers.

Explanation. - Officers when proceeding on duty or deputation outside India for a period of less than one month are not entitled to advance of pay under sub clause (ii)"]

[Substituted by S.R.o. 132, dated 9th May, 1989]

(iv)

When returning to India from duty in the United Kingdom :

£

Captain,
Commander and Lieutenant Commander of and over 18 year's service.

150

Lieutenant
Commander of under 18 years' service

100

Lieutenant
and Sun-Lieutenant

50

(b)

Sailors

(i)When

transferred from ship to another necessitating change of station.

One

month's pay

(ii)

when proceeding on leave, other than casual leave.

Pay

including good conduct pay and dearness allowances for the period of leave subject to a maximum of four month's pay, provided that such an advance is covered by the assets of the sailors concerned and that any part of the advance not so covered is guaranteed by the Welfare Funds at the disposal of Naval Head-quarters.

(iii)

The provisions contained in sub-clause(ii) of clause(b) shall also apply to boys and apprentices.

Pay

and allowances for the period of leave.

(iv)When

proceeding on leave pending discharge or retirement.

(v)

When leaving their duty stations on temporary duty or attachment.

One

month's pay of rate, when necessary if sanctioned by the commanding officer.

230.

General conditions of admissibility.

(1)

An advance ordinarily admissible under regulation 229 shall be reduced by the amount, if any, still outstanding under a previous advance.

(2)

Advances of pay admissible on transfer from one station to another on duty must be drawn prior to departure from the old station.

(3)

If an officer proceeding on leave in India has not drawn the advance of pay admissible under sub-clause (ii) of clause (a) of regulation 229, he may arrange with the Naval Pay Office for the remittance of his pay, as it falls due, during absence on leave.

(4)

No advance of pay shall be granted to officers proceeding out of India on duty with their ship.

231.

Recovery of advances.

- The recovery of advances admissible under regulation 229 shall be effected as follows, namely :

(a)

Advances payable under sub-clauses (i) and (iii) of clause (a) and under sub-clause (i) of clause (b) of regulation 229 shall be recovered in monthly instalments each equal to one-third of the total monthly emoluments of the individuals concerned. The recovery of advances under sub-clauses (i) and (iii) of clause (a) of regulation 229 shall commence from the pay for the month following that in which the advances are paid.

(b)

Advances payable under sub-clause (ii) of clause (a) and sub-clauses NO and (iv) of clause (b) of regulation 229 shall be adjusted in full as the pay falls due monthly and no issue of leave pay shall be made until after the sum advanced has been recovered.

Explanation. - Any loss to the Central Government arising from advances which are guaranteed by the Welfare Funds shall be borne by those funds.

(c)

Advances payable under sub-clause (iv) of clause (a) of regulation 229 shall be recovered in India at the uniform rate of exchange of 1 sh. 6d. to the rupee, as follows:

Captain,

Commanders and Lieutenant Commanders of and above 18 years services

By

monthly installments each equal to one-third of the monthly emoluments drawn inclusive of all allowances.

Lieutenant-Commanders

of under 18 years service, Lieutenant and sub-Lieutenants.

In

ten equal monthly installments or in a smaller number if installments, if the officer so desires.

Explanation. - No recovery shall be effected from the leave allowances drawn by an officer for the period between the date of last payment in the United Kingdom and that of joining duty in India.

232.

Recovery of advances in case of deceased personnel.

- No recovery shall be made from the estate of a deceased officer or sailor in respect of any advance of pay drawn by him, except under the special orders of the Central Government;

Provided that the whole or a portion of the pay or gratuity payable to an officer or a sailor and due to him at the time of his death may be withheld in or towards liquidation of any unadjusted advance of pay:

Provided further that in the case of annual leave pay issued in advance to an officer who dies before the expiry of his annual leave, the amount paid in respect of the period beyond the date of his death may be recovered from his estate :

[Provided also that for a further period of 10 years commencing from the 1st January, 1966, no recovery of over issue of pay and allowances, advances or other public debts, shall, however, be made from surplus of the estates of a deceased officer except in the following circumstances when such recovery shall be made from the estates or the beneficiary :

(i)

if the deceased officer has either left behind a widow and one or more children or was a widower with two or more children and total assets worth more than Rs. 25,000; or

(ii)

if the deceased officer has either left a widow without any child or was a widower with one child only and total assets worth more than Rs. 20,000; or

(iii)

if the deceased officer was unmarried with dependants and total assets worth more than Rs. 15,000; or

(iv)

if the deceased officer was unmarried and has left behind no dependants, irrespective of the value of the estate: subject to the proviso that recovery shall be made only upto the extent of difference between the net value of the assets and the

ceilings stipulated in clauses (i), (ii) and (iii) above.]

Miscellaneous Advances

233.

Advance of pay to accepted recruits.

(1)

Indian Navy recruits enrolled by recruiting officers are entitled to an advance of pay of [five rupees]

[Substituted by S.R.O. 9-E, dated 19th Marh, 1974]

when proceeding to join their training establishments and where the journey to such establishments takes five days or more, the said advance may be increased up to [ten rupees]

[Substituted by S.R.O. 9-E, dated 19th Marh, 1974]

at the discretion of the recruiting officer.

(2)

The said advance shall be recovered in full from the first month's pay of the recruit. Where the pay due to a recruit for the first month is less than the amount of advance, the balance shall be recovered in full from the pay for the following month.

In the event of a recruit deserting or becoming non-effective before earning sufficient pay to cover the advance, the amount remaining unrecovered shall be written off.

(3)

Advances of pay up to the maximum of half a month's pay, rounded off to the nearest rupee, may be granted by recruiting officers and assistant recruiting officers to all sailors recruited on mobilisation and each of such advances shall be recoverable in four monthly instalments.

234.

Advance of pay to meet initial house rent in the United Kingdom.

(1)

Naval personnel sent on deputation from India to the United Kingdom shall be entitled to advance up to a maximum of two months' salary for payment of the initial house rent payable by them in advance to the landlord concerned; such advance is payable by the High Commissioner for India in London.

(2)

The advance shall be recovered in six monthly instalments; but where the amount of advance granted to any of such personnel falls short of his two months' salary the number of instalments shall be reduced proportionately.

235.

Advances to Service motor transport drivers for payment of fines awarded by a Criminal Court.

(1)

An advance not exceeding three hundred rupees may be granted by a Commanding Officer to a Service motor transport driver for the payment of any fine awarded by a Criminal Court in consequence of his being involved in a traffic accident while driving a Government vehicle on duty, provided that in the opinion of the Commanding Officer, further retention of such driver in the Indian Navy is desirable.

(2)

An advance sanctioned under sub-regulation (1) shall be claimed from the Controller of Defence Accounts (Navy) on the individual's application, supported by the sanction of the competent authority and a receipt, duly stamped, where necessary.

(3)

An advance under this regulation is recoverable in monthly instalments each equal to one-quarter of the individual's monthly emoluments.

Advance for the Purchase of Motor Cars

236.

Conditions for grant of advance.-(1) Advance for the purchase of motor car may be allowed to-

(a)

every officer for whom a motor car is essential to enable him to carry out his duties; and

(b)

every officer to whom a motorcar, though essential, is of assistance in carrying out his work.

[Explanation 1. - An advance for the purchase of a conveyance shall not except with the concurrence of the Ministry of Finance (Defence), be sanctioned unless the outstanding balance in respect of an advance previously granted for the same purpose, together with interest thereon has been fully repaid,

Explanation 2. - Officers likely to proceed or be sent abroad on temporary duty, for courses of instructions on leave deputation or training etc. shall in no circumstances be granted advance for the purchase of motor cars.

Explanation 3. - Officers serving in operational areas. shall not he entitled to advance for the purchase of motor cars.]

[Substitued by S.R.o. 9-E, dated 19th March, 1974]

(2)

Advances may be made at the discretion of the sanctioning authority to officers of the categories shown and up to the limits laid down in regulation 237 provided that such advances can be met from the sanctioned allotment. Before sanctioning an advance, the sanctioning authority shall satisfy itself that funds are available and, before granting any advance under clause (1) of sub-regulation (1), that the year's allotment is sufficient for the requirements of officers referred to in clause (a) thereof.

(3)

Advances for the purchase of motor cars may he granted after the commencement of a financial year only when "provisional" allotments are notified to the lower formations. Advances so granted, before the final allotment for that year has been notified, should not exceed that portion of the proposed appropriation for the whole year for which a vote "on account" has been passed by the Lok Sabha.

(4)

The amount of advance shall not exceed the price to be paid for the car subject to the maximum amount admissible under regulation 237. In case the advance taken is in excess of the actual price paid, such excess shall he refunded at once to the Controller of Defence Accounts (Navy). In the case of the purchase of a second-hand vehicle, no portion of the advance shall be utilised for the purpose of overhauling, refitting and the like after the vehicle has been purchased.

[Explanation I. - 'Actual price' means the price paid by the officer as cost of the car and the price of such items which have necessarily to be purchased along with the car (or in other words on the purchase of which the purchaser has no choice, e.g. spare wheel, tyre and tube).

Where, however, certain assessors (e.g. radio in a car, plastic covers) are purchased, which are not essential and which the customer purchases of his own volition. The term 'actual price' shall not cover their cost. Insurance and registration charge,, shall also not he included in the 'actual price' as these are incurred for running the motor vehicle.

Explanation II. - 'Actual price' shall also cover the following items in the case of the first purchase,,:

(a)

the cost of transportation of the conveyance upto the place of duty of the officer concerned at the time of purchase, irrespective of whether the transport is arranged by the distributors or by the officer himself;

(b)

the octroi charges actually paid.]

(5)

Before sanctioning an advance, the sanctioning authority shall satisfy itself that the conveyance has not already been purchased and paid for and if the conveyance has been paid for in part, the sanctioning authority shall restrict the advance to the minimum amount required to meet the balance of the price of the conveyance:

Provided that where an officer purchases a conveyance after applying for the advance and arranges to pay for it by raising a temporary loan, he may be permitted to draw the advance, subject to other conditions being satisfied if the conveyance was purchased within 3 months of applying for an advance.

237.

[Sanctioning authorities and the amount of grant that they can sanction.

[Inserted & Substitued by S.R.O. 9(E), dated 19th March, 1974]

(1)

the categories of officers to whom the advises are admissible, the sanctioning authorities and amount of advance admissible are described in the table below:]

[Substitued by S.R.o. 9-E, dated 19th March, 1974]

To

whom Admissible

Sanctioning

Authority

Amounts

Admissible

1

2

3

(a)(i)Chief of the

Naval Staff

Government

of India

(i)Rs. 16,000, or

16 month pay or the anticipated price of the car, whichever is least;

(ii)Officer

serving with Indian Missions abroad

(b)

Flag officer Commanding-in-Chief, Western Naval Command

Flag

officer Commanding-in-Chief, Eastern Naval Command

Flag

officer Commanding-in-Chief, Southern Naval Area

All Naval Officers

(Other than Chief of the Naval Staff)

(ii) Rs. 13,500,

ceiling for officers making purchases of motor cars from countries like U.K. etc, and those who have devalued their currency along with U.K.

(iii) Rs. 15,750,

ceiling in case of purchases of cars from countries who did not devalue their currency along with the U.K.

(c)All Naval

Officers serving ashore under the Flag Officer?

Commanding-in-Chief, Western Naval Command

Flag

Officer Commanding in Chief, Western Naval Command

(d) All Naval

Officers serving ashore under the Flag Officer

Commanding-in-Chief, Eastern Naval Command

Flag

Officer Commanding-in-Chief, Eastern Naval Command

(e)All Naval

Officers Serving ashore under Flag Officer Commanding, Southern Naval Area

Flag

Officer Commanding, Southern Naval Area Commandant Defence

Services Staff College, Wellington

(f)Instructional

Staff and Student Officers, Defence Services, Staff College, Wellington

(g) Staff and

student Officers paid from Defended Services Estimates, National
Defence College, New Delhi

Commandant

National Defence College, New Delhi

(h) All Naval

Officers serving in Naval Project, Vishakapatnam

Director

General, Naval Project, Vishakapatnam

To

Whom Admissible

Sanctioning

Authority

Amounts

Admissible

1

2

3

(a)(i) Chief of
the Naval Staff

Government

of India

(i) On first

occasion Rs. 20,000 or 20 month's pay or the price of the motor
car, whichever is the least

(ii) Officers

serving with Indian Missions abroad.

Government

of India

(ii) For second

and subsequent advance, the amount of advance may be restricted
to the difference between the price of the motor car to be
purchased and the sale proceeds of the old car left with the
Government servant concerned after repayment of the earlier
outstanding advance (principal as well as interest) subject to
the amount not exceeding Rs. 15,000 or 15 month's pay whichever
is less.

(b)

Flag officer Commanding-in-Chief, Western Naval Command

Flag

officer Commanding-in-Chief, Eastern Naval Command

Flag

officer Commanding-in-Chief, Southern Naval Area

All Naval Officers

(Other than Chief of the Naval Staff)

Chief

of the Naval Staff

(i) On first

occasion Rs. 20,000 or 20 month's pay or the price of the motor
car, whichever is the least.

(ii) For second

and subsequent advance, the amount of advance may be restricted

to the difference between the price of the motor car to be purchased and the sale proceeds of the old car left with the Government servant concerned after repayment of the earlier outstanding advance (principal as well as interest) subject to the amount not exceeding Rs. 15,000 or 15 month's pay whichever is less.

(c) All Naval

Officers serving ashore under the Flag Officer,
Commanding-in-Chief, Western Naval Command

Flag

Officer Commanding in Chief, Western Naval Command

(i) On first

occasion Rs. 20,000 or 20 month's pay or the price of the motor car, whichever is the least

(ii) For second

and subsequent advance, the amount of advance may be restricted to the difference between the price of the motor car to be purchased and the sale proceeds of the old car left with the Government servant concerned after repayment of the earlier outstanding advance (principal as well as interest) subject to the amount not exceeding Rs. 15,000 or 15 month's pay whichever is less.

(d) All Naval

Officers serving ashore under the Flag Officer
Commanding-in-Chief, Eastern Naval Command

Flag

Officer Commanding in Chief, Eastern Naval Command

(i) On first

occasion Rs. 20,000 or 20 month's pay or the price of the motor car, whichever is the least.

(ii) For second

and subsequent advance, the amount of advance may be restricted to the difference between the price of the motor car to be purchased and the sale proceeds of the old car left with the Government servant concerned after repayment of the earlier outstanding advance (principal as well as interest) subject to the amount not exceeding Rs. 15,000 or 15 month's pay whichever is less.

(e) All Naval

Officers Serving ashore under Flag Officer Commanding, Southern Naval Command

Flag

Officer Commanding in Chief, Southern Naval Command

(i) On first

occasion Rs. 20,000 or 20 month's pay or the price of the motor car, whichever is the least.

(ii) For second

and subsequent advance, the amount of advance may be restricted to the difference between the price of the motor car to be purchased and the sale proceeds of the old car left with the Government servant concerned after repayment of the earlier

outstanding advance (principal as well as interest) subject to the amount not exceeding Rs. 15,000 or 15 month's pay whichever is less.

(f) Instruction

Staff and Student Officers, Defence Services Staff College,
Wellington

Commandant,

Defence Services Staff College, Wellington

(i) On first

occasion Rs. 20,000 or 20 month's pay or the price of the motor car, whichever is the least.

(ii) For second

and subsequent advance, the amount of advance may be restricted to the difference between the price of the motor car to be purchased and the sale proceeds of the old car left with the Government servant concerned after repayment of the earlier outstanding advance (principal as well as interest) subject to the amount not exceeding Rs. 15,000 or 15 month's pay whichever is less.

(g) Staff and

Student Officers, paid from Defence Services Estimates, National
Defence College, New Delhi

Commandant,

National Defence College, New Delhi

(i) On first

occasion Rs. 20,000 or 20 month's pay or the price of the motor car, whichever is the least.

(ii) For second

and subsequent advance, the amount of advance may be restricted to the difference between the price of the motor car to be purchased and the sale proceeds of the old car left with the Government servant concerned after repayment of the earlier outstanding advance (principal as well as interest) subject to the amount not exceeding Rs. 15,000 or 15 month's pay whichever is less.

(h) All Naval

Officers serving in Naval Project, Vishakhapatnam

Director

General, Naval Project Vishakhapatnam.

(i) On first

occasion Rs. 20,000 or 20 month's pay or the price of the motor car, whichever is the least.

(ii) For second

and subsequent advance, the amount of advance may be restricted to the difference between the price of the motor car to be purchased and the sale proceeds of the old car left with the Government servant concerned after repayment of the earlier outstanding advance (principal as well as interest) subject to the amount not exceeding Rs. 15,000 or 15 month's pay whichever is less. Provided that during the continuance of the emergency declared on 26th October, 1962 under Article 352 of the

Constitution, the maximum advance for the purchase of motor car shall be restricted to Rs. 12,000 or 12 month's pay of the Government servant or the anticipated price of the motor car, whichever is the least. The amount of the advance thus granted shall be recoverable in not more than 60 monthly installments.

(2) The authority

authorised to sanction an advance for the purchase of a motor car under this regulation may at its discretion grant such advance on the basis of the acting rank or appointment for the time being held by the officer seeking the advance provided that-

(a) Such officer

has held the acting rank or appointment for 6 month's continuously and he is not likely to revert to a rank too low so that it is difficult for him to repay the amount in regular monthly instalments as originally fixed; and

(b) it is made

clear in every such case that no plea of hardship consequent on re-reversion to a lower rank or appointments would be accepted as a cause or reduction of the amount recoverable every month.

(c) the grant of

advance to officers referred to at item (a) (ii) above, shall be subject to the conditions that the advance is applied for by an officer within 12 months of his arrival at the station abroad.

238.

Admissibility for officers serving afloat.

(1)

Officers appointed afloat may also be allowed to draw advances for the purchase of motor cars subject to the same terms and conditions as are applicable to other officers and as are laid down in regulations 236 and 237.

(2)

Officers of the rank of Lieutenant Commander and above drawing substantive pay of not less than one thousand rupees may draw advances for the purchase of motor car with the sanction of the competent authority shown below:

To

whom Admissible

Sanctioning

Authority

(i)

Flag Officer Commanding Indian Fleet

Chief

of the Naval Staff.

(ii)

All other officers appointed afloat

Administrative

authority of the ship in which the officer is serving.

239.

Method of applying for advance

(1)

Every application for an advance shall be made in triplicate in the form given in Appendix XI-A, through the normal channels to the sanctioning authority.

(2)

The advance shall be applied for well in time, sanctioned by the sanctioning authority as soon as possible and drawn from the Controller of Defence Account (Navy) Bombay within [four month's]

[Substituted by S.R.O. 132, dated 9th May, 1989]
of the date of sanction.

(3)

In cases where the officer intends to purchase a new vehicle he shall draw the advance only after he has received a written assurance from the dealer that the vehicle is likely to be available within a month and a certificate to this effect shall be recorded on the bill for the advance.

(4)

[The sanctioning authority shall forward blank forms of agreement and mortgage bond (specimen at Appendices XTB, XIC and XIH) to the officer.

(5)

The officer shall complete the form of agreement in the presence of the Commanding Officer of the ship or establishment or other similar authority and forward it along with a certificate as shown in Appendix XI-I and his claim for drawal of advance to the authority who sanctioned the advance. The agreement form and the claim shall be forwarded by the sanctioning authority to the Controller of Defence Accounts (Navy) Bombay, only on receipt of the certificate from the officer as shown in Appendix XI-I.

(6)

The officer shall complete the mortgage bond (vide Appendix X1-C) within one month from the date of drawal of advance in the presence of the commanding Officer of the ship or Establishment or other similar authority and another officer, hypothecating the vehicle to the President of India as security for the advance and forward the same accompanied by a cash receipt and the bill for the purchase of a conveyance to the Controller of Defence Accounts (Navy) Bombay, for scrutiny that the advance has been utilised for the purchase of conveyance within the prescribed period and that the 'actual price' as defined in regulation 239 (4) is not less than the amount of the advance. The cash receipt and the bill shall be returned to the borrower through the Commanding Officer of the Ship or Establishment.

(7)

As regards officers serving at Naval Headquarters and Inter-Services Organisations, Commanding Officer, I.N.S. INDIA shall forward all such documents to the Controller of Defence Account (Navy), Bombay.]

[Substituted by S.R.O. 9-E, dated 19th March, 1974]

(8)

The said agreement shall be executed by the officer in the presence of the Commanding Officer of the ship or establishment or other similar authority at the time the advance is drawn, and the said mortgage bond shall be executed in the presence of the same authority and another officer as soon as purchase has been made hypothecating the vehicle to the President of India as security for the advance.

(9)

The said documents, after execution, shall be forwarded to the Controller of Defence Accounts (Navy), Bombay for safe custody, accompanied by the cash receipt for the payment actually made. When the advance is fully recovered, the said documents shall be returned to the mortgagor.

240.

Time limit for the drawal of the advance and purchase of motor car.

(1)

If the amount of advance is not drawn within two months of the date of sanction the same shall lapse to the Government.

(2)

When an individual draws an advance for the purchase of motor car under these regulations purchase shall be made within one month of the date on which the advance is drawn, [and the vehicle should be fully insured as prescribed in the succeeding regulations from the date of its purchase. The prescribed time limit of one month should be strictly adhered to in all cases. This will also apply in the case of second hand vehicles.]

[Substituted by S.R.O. 9-E, dated 19th March, 1974]

Explanation. - In cases where the purchase of the vehicle is not completed within one month of the drawal of the advance, the Government servant shall invariably be asked to refund the full amount of the advance drawn together with interest thereon for the period the advance is retained by him. In the event, however of any delay in supply, despite the written assurance referred to in regulation 239, the officer concerned shall apply for extension of the time limit within the permissible period of one month and seek permission for retaining the advance for a further period which shall be

specified. Each such request shall be supported with a letter from the dealer concerned indicating the likely date of supply and shall be considered on its own merits by the Government. In exceptional cases, where the circumstances warrant such extension the sanctioning authority may extend the period of one month by another month.

(3)

Furnishing of security at the time of registration a prospective purchaser of a car shall be the responsibility of the officer concerned and no advance shall be given to the officer from Government funds for this purpose at the time of furnishing such security.

241.

Insurance of the motor car.

(1)

The vehicle shall be fully insured as prescribed in this regulation before it is brought into use.

(2)

The amount for which a vehicle is insured during any period shall not be less than the outstanding balance of the advance together with interest thereon accrued due at the beginning of the period in question, and the policy of insurance must be renewed from time to time the advance is fully repaid. If at any time the amount insured under the current policy is less than the outstanding balance plus interest accrued due, the officer concerned shall refund the difference to the Central Government in not more than three monthly instalments.

(3)

Insurance policies with qualifying condition "owner drive" or the like shall not be sufficient for the purpose of this regulation. Vehicles purchased with advances from public funds shall in all cases be fully insured against loss or damage by fire or accident:

Provided that insurance policies at a reduced rate of premium shall be accepted as adequate in cases where

(a)

the owner undertakes to meet the first '(Rs. 250] of a claim preferred against an insurance company in event of an accident; or

(b)

the vehicle is not insured against accidents for any season of the year because it is not in use or is garaged during such season.

(4)

The insurance policies shall bear an endorsement on the forms specified in Appendix XI-E. After purchase of the conveyance the Controller of Defence Accounts (Navy), Bombay, shall obtain from the officer drawing the advance a letter in the form prescribed in Appendix XI-F addressed to the Insurance Company with which conveyance is insured notifying it that the Government is interested in the insurance policy secured. He shall himself forward this letter to the Insurance Company and obtain the acknowledgement. In case of insurance effected on annual basis, this procedure shall be repeated every year until the advance has been fully repaid to the Government. In cases where the insurance Company does not issue fresh policy every year and the original policy in which the clauses as in Appendix XI-h already stand inserted is renewed, the Controller of Defence Accounts (Navy), Bombay, shall ensure that the original policy has been renewed by the Company and the relevant clauses in Appendix XII: already stand included in the original policy and that the vehicle has been insured for an amount not less than the outstanding amount of the advance plus interest thereon.

(5)

Failure to comply with the provisions regarding the execution of mortgage bond and insurance of vehicle as mentioned in this regulation shall render the officer drawing the advance liable to refund forthwith the whole of the amount advanced with interest accrued thereon unless good and sufficient reason is shown to the contrary and the competent authority waives the fulfilment of any of the conditions prescribed above by issue of specific order in writing. The competent authority for the purpose shall be the authority competent to sanction the advance.

Explanation 1. - The Controller of Defence Accounts (Navy), Bombay may accept such evidence as may be adequate to show that a vehicle has been sufficiently insured and that the insurance is regularly renewed at the proper time, and should bring to the notice of the sanctioning authorities cases in which such evidence is not forthcoming.

Explanation 2. - Contravention of the provisions of regulations 240 (2) and 241.

242.

Sale of motor cars purchased with Government advance.

(1)

An officer shall not sell or transfer a motor car for so long as the amount of advance together with interest on such amount is not completely repaid, except with the permission of the sanctioning authority in writing.

(2)

If an officer seeks permission to transfer a motor car to another officer who should use a motor car in the discharge of his duties, the sanctioning authority may permit to transfer the liability attached to the car to the later, provided that the transferee records a declaration that he is aware that the motor car transferred to him remains subject to the mortgage bond and that he is bound by its terms and provisions. The application for sale of a vehicle shall be forwarded to the sanctioning authority through proper channel.

(3)

When a vehicle is sold before completion of repayment of the Government advance granted for its purchase the sale proceeds must be applied, so far as maybe necessary, to the repayment of the outstanding balance of the advance, provided that if the vehicle has been sold only in order that another may be purchased, the sanctioning authority may permit the officer to apply the sale proceeds towards such purchase subject to the following conditions, namely:

(a)

the advance outstanding should not exceed the cost of the new vehicle;

(b)

the advance outstanding shall continue to be repaid at the rate previously fixed; and

(c)

the new vehicle shall be insured and mortgaged to Central Government as required under these regulations.

(4)

[A fresh advance shall not be sanctioned to an officer who is permitted to sell his old car in order to purchase new one. A fresh advance can be sanctioned only when the outstanding balance of the advance in respect of the first car together with interest thereon has been fully repaid.

Explanation. 1 - An officer who is permitted by the sanctioning authority to sell his car purchased out of Government advance shall intimate the date of sale to the sanctioning authority and the Controller of Defence Accounts (Navy), Bombay, as soon as the sale is effected.

Explanation. 2. - A specimen of Mortgage Bond for motor vehicle purchased with sale proceeds of an old one before the repayment of the entire advance of money with interest thereon sanctioned by the Government earlier for the purchase of the latter vehicle required under sub-regulation (2) of regulation 242 is given as Appendix XI-J. The fresh Mortgage Bond shall be for the amount then due and not for the amount originally advanced.]

[Substituted by S.R.O. 9-E, dated 19th March, 1974]

243.

Recovery of advance.

(1)

Advances for motor car shall be recovered as under:-

(a)

From officers holding permanent commission. - In [1/100th for the first occasion and "1/75 for the second occasion]

[Substituted by S.R.O. 132, dated 9th May, 1989]

part of the amount advanced. Provided that the recovery of the advance from an officer who is due to retire within 5 or 6 years, as the case may be. From the first issue of pay after the drawal of the advance by him, will be made in such number of instalments as would enable recovery of the advance and interest thereon being completed by the time of the issue of the last pay to him before retirement.

(b)

From those holding temporary commissions. - Within three years or before the termination of their engagement whichever is earlier.

(2)

The sanctioning authority may permit recovery to be made in lesser number of instalments if the officer so desires.

Explanation. - The amount of the instalment should be fixed in whole rupees except in the case of the last instalment which shall consist of the balance including any fraction of a rupee.

(3)

Simple interest shall be charged on these advances the rate of which shall be prescribed from time to time. The interest shall be calculated on the balance outstanding on the last day of each month and it shall be recovered in one or more instalments after the whole of the principal has been repaid, and no such instalment shall be appreciably greater than the instalments by which the principal was recovered.

(4)

If an officer dies before the final liquidation of an advance taken by him from the Central Government for the purchase of a vehicle, the outstanding balance of the advance together with interest due thereon at the time of his death, less the amount realised by the sale of the vehicle, shall be recovered from the pay and allowances that may be due to the deceased. Any balance remaining unadjusted thereafter, shall, in the case of naval officers he referred to the Chief of the Naval Staff for treatment as a non-preferential charge. In other cases such balance shall be adjusted through non-effective accounts. [The fact whether it is possible or advisable to recover the amount by other methods, shall also be considered.]

[Substituted by S.R.O. 9-E, dated 19th March, 1974]

(5)

In the case of an officer dismissed, removed or resigning from service before the repayment, in full, of the advance drawn by him the administrative authority responsible for relieving him of his duties, shall before such relief, seize the car and the claim of the Government in respect of the amount of advance outstanding shall be settled in terms of the mortgage deed under Appendix XI-C.

[(5-A) In case of an officer who is due to retire within maximum period prescribed for its payment, the sanctioning authority may increase the number of instalments if the date of retirement changes after the sanction of the advance consequent on his promotion or grant of substantive rank or grant of another tenure etc., subject to the provisions of sub-regulation (I) of regulation 243. In such cases the officer shall execute a supplementary mortgage deed as prescribed in Appendix XI-K.]

[Substituted by S.R.O. 9-E, dated 19th March, 1974]

(5B)

An officer, who is sent on deputation for a period exceeding 12 months out of India or is transferred to a post abroad before an advance drawn by him in India for the purchase of a motor car is completely repaid by him, may, at his option, be allowed by the sanctioning authority to repay the remaining instalments in rupees in India. The officer should arrange to remit the amount due by bank draft, by the 15th.

of every month in favour of the Controller of Defence Account (Navy), Bombay, in whose book the accounts of the advance in question are kept. A written undertaking shall be obtained from the officer to this effect and from the office to which he is attached abroad. If the draft is not received by the Controller of Defence Accounts

(Navy)

, Bombay, before the end of the month, he should immediately report the matter for further necessary action to the administrative officer concerned and also to the office abroad where the officer is working. Failure on the part of the officer concerned to remit the bank draft by the due date shall constitute default and render him liable. Draft by the due date shall constitute default and render him liable to pay penal rate of compound interest in terms of rule 161 of the General Financial Rules, 1963. On return of the officer to India any amount left unrecovered shall be deducted as before from his monthly pay bills by the Controller of Defence Accounts (Navy), Bombay.

(6)

If an individual retains the advance without purchasing a conveyance beyond the period of one month, in contravention of the provisions of regulation 240, normal rate of interest shall be charged for the first month and for the period in excess of one month penal rate of interest shall be charged in the following manner, namely:

(a)

The period of one month prescribed by sub-regulation (2) of regulation 240 shall be a calendar month from the date of the drawal of advance.

(b)

The penal rate of interest shall be calculated on the balance outstanding for the actual period in excess of first month (including fraction of a month) and not on monthly balances.

(c)

The penal rate of interest shall be calculated in the manner prescribed in paragraph 243 (2) of General Financial Regulations, Volume 1.

(d)

When the period of one month prescribed under sub-regulation (2) of regulation 240 is extended by the sanctioning authority, the penal rate shall be charged with effect from the date following that on which the extended period expires.

(dd)

[the penal rate of interest shall be the compound rate of interest and it would as merged with the principal at monthly intervals for the purpose of calculation of future rate of interest for the subsequent periods.]

[Inserted by S.R.O. 9-E, dated 19th March, 1974]

(e)

The following example shall illustrate the procedure to be followed, namely.-

'A' was sanctioned an advance of Rs. 12,000 on 30th August, 1960 repayable in sixty monthly instalments of Rs. 200 each. He refunded Rs. 200 each on 1st September, 1960 and 1st October, 1960. The interest shall be charged as under:
30th.

August, 1960 to 31st August, 1960 on Rs. 12,000 at the normal rate, 1st September, 1960 to 29th September, 1960 on Rs. 11,800 at the normal rate (Rs. 200/- refunded on 1st September, 1960).

30th. September, 1960 on Rs. 11,800/- at the penal rate 1st October, 1960 to 31st October, 1960 on Rs. 11,600/- at the penal rate (Rs. 200/- refunded on 1st October, 1960).

244.

Information/certificates required in support of the application for advance.

- The following information and certificates are required to be forwarded along with application for an advance for the purchase of a motor car, namely:-

(a)

Rank (acting or substantive) held by the officer.

(b)

Pay of acting or substantive rank.

(c)

Date from which such rank is held.

(d)

Type of commission.

(e)

A certificate by the officer to whom the advance is sanctioned endorsed on the contingent bill for the advance that the advance is not being drawn for a conveyance which has already been purchased and paid for, or that the advance claimed in the bill is not more than the minimum amount required to meet the balance of the price of the conveyance, if part of the cost of the conveyance has already been paid.

(f)

A certificate by the officer that he is aware that no plea of hardship consequent on reversion to a lower rank or appointment would be accepted as a cause for reduction in the amount of monthly instalments originally fixed.

(g)

[The date on which an officer on permanent engagement is due to retire or date of expiry of the present engagement in respect of those holding temporary commission.

[Inserted by S.R.O. 9-E, dated 19th March, 1974.]

(h)

A certificate from the officer that he is not under orders of transfer or is likely to proceed abroad on temporary duty, courses of instructions or leave.]

Special Provisions for Officers Posted Abroad

245.

Advance for purchase of motor car.

- Officers serving with Indian missions abroad shall be entitled to advance for the purchase of motor cars. The provisions of regulations 236 to 244 shall apply mutatis mutandis, except that the competent authority to sanction the advance in

these cases shall be the Central Government.

246.

[* * *]

[Omitted by S.R.O. 132, dated 19th May, 1989]

247.

Condition of admissibility.

- The general conditions laid down in these regulations in respect of an advance for the purpose of motor cars shall apply, mutatis mutandis, to an advance for the purchase of motor cycle, scooter, scooterettes and autocycles".

248.

Sanctioning authorities.

(1)

Officer to whom advances for the purchase of motor cycles are admissible and the authorities empowered to sanction them are given in the table below :-

To

Whom Admissible

Sanctioning

Authorities

(a)

Individuals serving a Naval Head-quarters

(i)All

Naval Officers

(ii)All

Civilian Officers

Chief

of the Naval Staff.

(iii)

All sailors of the rank of LS and above whose basic pay is more than Rs. 500 per months

(iv)

All civilian sub-ordinates whose basic pay is more than Rs. 500 per month

(b)

Individuals serving in shore establishments outside Naval Head-quarters.

(i)All

Naval Officers

(ii)All

Civilian Officers

Respective

administrative authorities the Flag officer Commanding-in-Chief, Western Naval Command.

(iii)

All sailors of the rank of LS and above whose basic pay is more than Rs. 500 per months

(iv)

All civilian sub-ordinates whose basic pay is more than Rs. 500 per month

Eastern

Naval Command and Southern Naval Command.

(c)Instructional

Staff and Student Officer and other Naval Personnel of the rank

of LS and above whose basic pay is more than 500 per month.

Commandant,

Defence Services Staff College, Wellington.

(d)

Staff and Student Officers of the National Defence College, New Delhi whose basic pay is more than Rs. 500 per months.

Commandant,

Defence Services Staff College, New Delhi

(e)

Naval Officers and other Naval Personnel of the rank of LS and above basic pay is more than Rs. 500 per month.

Director

General, Naval Project, Visakhapatnam.

(f)(i)

Individuals who are eligible for the grant of motor cycle/scooter advance

(i)Chief

of the Naval Staff in the case of individuals serving at Naval Head-quarters.

(ii)All

sailors of the rank of LS and above whose basic pay is less than Rs. 500 per month excluding those who are serving in field Concessional areas. (The quantum of advance in this case shall be Rs. 1500 only recoverable in 60 monthly installments.)

(ii)Respective

Administrative authorities, namely the Flag Officer Commanding in Chief Western Naval Command, Eastern Naval Command and Southern Naval Command in the case of Individuals serving under their Commands.

(iii)

Commandant, Defence services Staff College, Wellington in the case of individuals serving in the Defence Services Staff College, Wellington.

(iv)

Commandant National Defence College, New Delhi in the case of individuals serving in the National Defence College, New Delhi

(v)

Director General, Naval Project, Visakhapatnam in the Case of individuals serving in the Naval Project, Visakhapatnam.

[248-A. Quantum of advance

[Substituted & Inserted by S.R.O. 132, dated 9th May, 1989]

].

[Substituted by S.R.O. 9-E, dated 19th March, 1974]

(i)

On first occasion - The maximum amount admissible shall be Rs. 3500 for ten month's pay of the individual or the anticipated price of the vehicle, whichever is the least.

(ii)

On second/subsequent occasion - Quantum of advance that may be granted on the second or subsequent occasions shall be equal to the difference between the price of the vehicle to be purchased and the sale proceeds left over with the individual after repayment of the earlier outstanding advance (including interest), if any, but the amount of the advance so granted shall not exceed Rs. 2750/- or 8 months pay whichever is the least.

249.

[Recovery of advance-]

[Substituted S.R.O. 19(E), dated 23rd October, 1986]

(i)

From officers serving on permanent engagements - The recovery shall be effected in seventy instalments. However, recovery of the advance from an officer who is due to retire within six years from the first issue of pay after the drawal of advance by him shall be made in such number of instalments as would enable recovery of the advance and interest thereon being completed by the time of issue of the last pay to him before retirement.

(ii)

From those serving on temporary engagements - The advance shall be recovered within three years or before the date of termination of their engagement whichever is earlier.

250.

Admissibility for officers serving afloat.

- Officers of the rank of Lieutenant, Commander and below drawing substantive pay of less than one thousand rupees and appointed afloat may be allowed to draw advances for the purchase of motor cycle or scooter with the sanction of the administrative authority concerned subject to the terms and conditions laid down in regulations 247 to 249.

Advance for the Purchase of Bicycles-Sailors

251.

[Eligibility.

[Substituted by S.R.O. 19(E), dated 23rd October, 1986]

- Advance for the purchase of bicycles may be granted to all continuous service sailors.]

252.

Amount of advance.

(1)

The amount of such advance shall not exceed two hundred rupees or the anticipated price of the bicycles inclusive of sales tax, whichever is less.

(2)

The sanctioning authority may at his discretion grant advances on the basis of the acting temporary rate instead of the pay of substantive rate provided that-

(a)

the sailor to whom the advance is sanctioned has held the acting temporary rate for 6 months continuously and he is not likely to revert to a rate so low that it becomes difficult for him to repay the amount in regular instalments as originally fixed, and

(b)

it is made clear in every such case that no plea of hardship consequent on reversion to a lower rate would be accepted as a justification for reduction in the amount recoverable every month.

253.

Sanctioning authorities.

- If the sanctioned allotment permits, bicycle advances may be given at the discretion of the following authorities, namely:

(a)

Naval Officer in Charge

In

the case of personnel serving under them.

(b)

Commanding Officer of Shore Establishment

In

the case of personnel serving under them.

(c)The

Flag Officer Commanding-in-Chief, Western Naval Command, Bombay

In

all other cases as the case may be.

(d)

The Flag Officer Commanding-in-Chief, Eastern Naval Command,
Visakhapatnam

In

all other cases as the case may be.

(e)The

Flag Officer Commanding Western Fleet.

(f)

The Flag Officer Commanding Eastern Fleet

(g)

The Flag Officer Commanding, in Chief Southern Naval Command,
Cochin.

254.

Conditions to be full filled before grant of advance.

(1)

Before sanction is given for an advance, the sanctioning authority shall satisfy himself that

(a)

funds are available for the purpose.

(b)

the sailor is likely to remain borne in the shore establishment for 6 months as ascertained by reference to the Drafting Office;

(c)

the sailor has a service of at least two years and a half or more left to his credit at the time of the grant of the advance;

(d)

the advance is granted only in genuine cases and that the amounts sanctioned are not in excess of actual cost.

(2)

The advance shall not ordinarily be granted within three years of the grant of a previous advance for the same purpose unless satisfactory evidence is produced by the individual concerned to the effect that the cycle purchased with the help of the earlier advance has been lost or has become unserviceable in which case the sanctioning, authority shall, while communicating the sanction to audit, include a certificate that he has satisfied himself that the cycle already in the possession of the individual has been lost, or has become unserviceable as the case may be.

(3)

The other conditions to which the grant of advance is subject are laid down in the form of agreement prescribed in Appendix XI-F which shall be signed and completed by every recipient of an advance.

(4)

The laid form, when completed shall be transmitted to the Controller of Defence Accounts (Navy), Bombay, for safe custody; accompanied by the dealer's receipt for the payment made.

(5)

Receipts from the private sellers if otherwise in order, may also be accepted as evidence of payment having been made, but these receipts shall contain or be supported by a statement containing the name and full address of the seller, the serial number and make of the cycle and the registration number of the cycle given by the local authorities, municipalities or the like, and the receipts shall be scrutinised by the disbursing authority with reference to such particulars in order to ensure that the transactions are genuine and a certificate endorsed accordingly.

(5A)

[The cash receipt along with details of the conveyance purchased may be submitted to the authorities concerned within one month of the drawal of the advance. If the cash receipt is not produced within the stipulated period of one month, the full amount of the advance together with interest thereon for one month shall be refunded forthwith.]

[Substituted by S.R.O. 9-E, dated 19th march, 1974]

(6)

On the advance being finally liquidated, the agreement form shall be returned to the individual concerned.

(7)

Advances may be granted at any time after the commencement of a financial year as soon as provisional allotments for that year have been notified. Advances so granted shall form a charge against the allotment for the year concerned.

255.

Drawal of advances and purchase of bicycles.

(1)

The advance shall be drawn from the Controller of Defence Account (Navy), Bombay, on a contingent bill Form prescribed in Appendix XI-G supported by a copy of the order of the sanctioning authority.

(2)

If the advance is not drawn within one month of the date of the sanction the sanction shall lapse.

(3)

Purchase shall be made within one month of the date on which the advance is drawn and if the amount taken is in excess of the actual price paid, the balance shall be refunded at once to the Government.

256.

Interest on advance.

- On the amount of advance granted, simple interest shall be charged at the rate fixed from time to time by the Government and such interest shall be calculated on the balance outstanding on the last day of each month and shall be recovered in one or more instalments in the month following that in which the repayment of the principal has been completed. Each instalment shall not be appreciably greater than the instalment by which the principal was recovered.

257.

Recovery.

(1)

The amount of advance shall be recovered in monthly instalments of one-twentieth of such amount or at one-tenth of the monthly emoluments of the sailor whichever is less, commencing from the first month's pay after the receipt of the advance; but the sanctioning authority may permit the recovery to be made in lesser number of instalments if the sailor so desires.

(2)

The amount of monthly instalments shall be fixed in whole rupees except in the case of the last instalment which shall consist of the balance including any fraction of a rupee.

ADVANCE OF PAY TO SAILOR AFFECTED BY FLOOD, CYCLONES AND OTHER NATURAL CALAMITIES OF EXCEPTIONAL SEVERITY

257.

-A. Advance of pay.

- All sailors on regular, engagement may be granted interest free advance upto three months' pay (without allowance but including rank/appointment pay and good conduct pay, where applicable) or Rs. 500 whichever is less, in the case of each event when they are affected by floods, cyclones and other natural calamities of exceptional severity which are declared as qualifying for the grant of these concessions by the Central Government subject to the conditions specified below:

(i)

The advance shall be sanctioned by the Commanding officers or administrative heads only to those individuals affected by the natural calamity.

(ii)

The amount of advance shall be recoverable in not more than 12 monthly instalments commencing from the second issue of pay after the drawal of the advance. In cases where an individual is not likely to remain in service for 12 months, the sanctioning authority shall direct that the advance be repaid during the anticipated period of effective service.

Where the recovery has to be made in shorter time than 12 months, the sanctioning authority may, at its discretion, allow only an amount smaller than is otherwise admissible so that recoveries may not cause undue inconvenience to the recipient of the advance.

(iii)

A second advance on this account shall not normally be sanctioned if an earlier advance for the same purpose remains unadjusted. If, however, the grant of a second advance becomes necessary, the quantum of the second advance plus

the outstanding balance of the first advance shall not exceed the limit prescribed above.

(iv)

The advance shall be granted only to those individuals who apply for the relief within 3 months of the issue of the Government orders declaring a natural calamity as qualifying for the grant of the said advance.

ADVANCE OF PAY TO SAILORS, BOYS AND APPRENTICES ON THE EVE OF IMPORTANT FESTIVALS

[257-B

[Substituted by S.R.O. 19(E), dated 23rd October, 1986]

- Advance of pay on even of important festivals:]

(1)

Eligibility sailors serving on regular engagement, Boys and Apprentices, whose pay does not exceed Rs. 600 per month may be granted advance of pay on the eve of important festivals subject to the following terms and conditions:

(a)

The amount of advance will be Rs. 200 or one month' pay (including appointment pay, Good Conduct pay and acting allowance) whichever is less.

(b)

The advance must be drawn before the festival concerned. It is admissible only to those on duty and whose individual Running Ledger Accounts do not show debtor balances at the time the advance is drawn.

(c)

The advance will be recovered in not more than ten equal monthly instalments, the first recovery commencing with the next month's regular payment. The amount of each instalment will be rounded off to the nearest rupee, the balance being recovered in the last instalment.

(d)

The advance will be admissible only on one occasion in a calendar year. The Commanding Officers of ships and establishments with the festival occasions on which advance will be allowed, after taking into consideration the importance attached locally to such festival.

(e)

A second festival advance should not be sanctioned till the earlier festival advance sanctioned on a previous occasion has been recovered in full.

(f)

In case of festival falls twice in a calendar year, the advance will be admissible only on one occasion.

(2)

Sanctioning Authority.- The Commanding officer of the ship/establishment is authorised to grant advance of pay on such occasion. He may at his discretion sanction such advance to sailors not serving on a regular engagement who have completed three years of continuous service and are likely to continue in service till the adjustment of the advance.

Explanation - The Republic day and Independence Day may be treated as festival occasions for the purpose of advance of pay.

SECTION 11-MISCELLANEOUS RECOVERIES

Hospital Stoppages

258.

Recovery of Hospital Stoppages.

- Hospital stoppages shall be recovered in respect of officers and sailors of the Indian Navy and their families and private servants admitted into Service hospitals at the rates and under the conditions laid down in the orders issued by the Central Government from time to time.

259.

[* * *]

[Inserted & Omitted by S.R.O. 9(E), dated 19th March, 1974]

260.

[***]

[Inserted & Omitted by S.R.O. 9(E), dated 19th March, 1974]

Provision of Accommodation and Recovery of [licence fee]

[Inserted & Omitted by S.R.O. 9(E), dated 19th March, 1974]

and Allied Charges

261.

Condition for recovery.

- When accommodation or allied services or both are provided by the Government the recovery of charge, on account of [licence fee]

[Inserted & Omitted by S.R.O. 9(E), dated 19th March, 1974]

and allied services shall be effected under the relevant rules for the time being in force.

262.

When married Government accommodation not provided.

(1)

When a married officer cannot be provided with married accommodation due to service reasons or paucity of accommodation in the station to which he is posted, he shall be provided by the Government, free of charge and for himself only, accommodation and the following allied services provided the station commander certifies that family accommodation is not available at such station, namely:

(a)

Light and fans.

(b)

Furniture.

(c)

Water.

(d)

Conservancy.

Explanation 1. - Climate considerations shall not constitute service reasons for the purpose of sub-regulation (1).

Explanation 2. - In the case of officers serving in Delhi or New Delhi, the Quartering Officer on behalf of the Station Commander shall certify that family accommodation is not available.

(2)

When expatriation allowance is admissible to an officer, he shall not be entitled to the concession of free accommodation and allied services except when-

(a)

his wife has accompanied (preceded or followed) him ex-India, with the permission of the Central Government or he has married during his current tour ex-India and his family is living ex-India and thereafter;

(b)

he is posted to a station at which for service reasons. Families are not permitted to reside under the orders of the local military Commander.

(3)

Roth married and single officers afloat shall be provided by the Government, free of charge and for themselves only, accommodation and the following allied services, namely:

(a)

Light and fans.

(b)

Furniture.

(c)

Water.

(d)

Conservancy.

Explanation - The provisions of sub-regulation (2) shall not be applicable to naval officers serving afloat who by virtue of their appointment afloat shall be entitled to the aforesaid facilities free of charge irrespective of the question whether expatriation allowance is in issue to them or not.

Refund of Cost Training

263.

Conditions governing the refund.

- If an officer granted short service commission in the Indian Navy from civil life voluntarily with draws from initial training, or resigns during the probationary period he shall be required to refund the cost of training in whole or in part as may be determined by the Government and all the moneys received by him as pay and allowances from the Government together with interest on the said moneys, calculated at the rate in force for Government loans.

Chapter XII

Miscellaneous

264.

Power to relax.

- The Central Government may, by general or special order, and for reasons to be recorded in writing relax all or any of the provisions of these regulations in the case of any person or class of persons.

Provided that no relaxation shall be made under this regulation so as, on the whole, to be less favourable to any person or class of persons that is provided in these regulations.

265.

Saving.

- Orders of a temporary nature which were issued before the commencement of these regulations in respect of any person or persons to whom these regulations are applicable and which are in force at such commencement shall notwithstanding anything to the contrary contained in these regulations continued to be in force until the Central Government otherwise directs, and all such orders shall be deemed to have been issued in pursuance of the power of relaxation conferred by regulation 264.

[Chapter X111 pay and Allowances of Master Chief Petty Officers granted Honorary Commission in the Special Duties List.]

[Inserted & substituted by S.R.O. 9(E), dated 19th March, 1974]

Subject

Regulations

No.

Rate

of pay

266

Compensatory

Allowance

267

Dearness

Allowance

268

Outfit

Allowance

269

Leave

Allowance

270

Other

Allowance

271

Advance

of Pay

272

266.

Rates of Pay.

- Honorary Commissioned Officers shall receive the following rates of pay:-

[Honorary Sub Lieutenant Rs. 1000/per month

Honorary Lieutenant Rs. 1100/per month]

[Substituted 7 Inserted by S.R.O. 19(E), dated 23rd October, 1986]

267.

Compensatory (City) Allowance.

- The Honorary Commissioned Officer shall be entitled to compensative (city) allowance at stations where it is admissible to sailors, at the full rates admissible to civilians, from time to time.

268.

Dearness Allowance.

- The Honorary Commissioned Officers shall be entitled to dearness allowance at the rates and under the conditions applicable from time to time to civilian Government servants paid from Defence service Estimates.

269.

Outfit Allowance.

- An Honorary Commissioned Officers on the active list shall be granted and outfit allowance equal to the actual cost of the kit, with which he is required to provide himself, subject to a maximum of Rs. 1440 provided that vouchers are produced in support of the purchase and his commanding officer certifies that the kit is suitable and was purchased under his instructions.

270.

Leave Allowances.

- The Honorary Commissioned Officers shall in respect of leave allowance be governed by the regulations applicable to sailors.

271.

Other Allowances.

- The Honorary Commissioned Officers shall not be entitled to any other concessions or allowances in lieu thereof admissible to sailors e.g., tree rations (except where admissible under similar circumstances to commissioned officers while serving afloat free clothing, kit unkeep allowance, conservancy allowance, the cutting/hair cleaning and washing allowance.

272.

Advance of pay.

- For purpose of advance of pay, the Honorary Commissioned Officers shall be governed by the rules applicable commissioned officers of the Navy.

Sea Duty Allowance

273.

Admissibility and Rates

- Sea Duty allowance at the rate of Rs. 53 per month will be admissible to all Honorary Commissioned Officers serving afloat, including periods their ships are actually away from the base ports".

[HIGH ALTITUDE/UNCONGENIAL CLIMATE ALLOWANCE

[Substituted & Inserted by S.R.O. 19(E), dated 23rd October, 1986]

274.

Admissibility and Rates.

- Honorary Commissioned Officers shall be entitled to High Altitude/Uncongenial Climate Allowance at the rate of Rs. 90 per month under the conditions applicable to sailors as laid down in regulation 156 A."]

275.

[Encashment of leave entitlement of honorary Commissioned Officers who die while in service.

[Substituted & Inserted by S.R.O. 19(E), dated 23rd October, 1986]

- In the event of death of an Honorary Commissioned Officer while in service, case equivalent to pay and dearness allowance that the deceased officer would have got, had he gone on annual/accumulated annual leave, but for his death, due and admissible, on the date immediately following the date of death, shall be paid to the heirs.]

Explanation. - The term 'pay' for the above purpose shall be as defined in regulation 35 and shall also include submarine pay.

Appendix I

(See Regulation 2)

Rules regulating pay and allowances of Officers of the Army Medical Corps/Army Dental Corps seconded to the Indian

Navy

(1)

Pay the allowances of officers of the Army Medical Corps and Army Dental Corps seconded to the Indian Navy shall be regulated as under:-

(a)

The Pay (including pay for acting rank while in the Navy), specialist pay non-practising allowance and such other allowance shall be governed by the rules laid down for officers of the Army Medical Corps or Army Dental Corps.

[In the case of Lady Medical Officers of the Army Medical Corps an initial outfit allowance of Rs. 1000/- (Rupees one thousand) shall be granted on secondment to the Navy. After an effective service of seven years from the date of secondment, they shall be eligible for the grant of renewal outfit allowance of Rs. 800/- (Rupees eight hundred) under the same terms and conditions as applicable to other Medical Officers of the Navy.]

[Inserted & Omitted by S.R.O. 132, dated 9th May, 1989]

(b)

Service in the Navy shall count towards increments of pay under the same conditions as if the officers had remained in the Army Medical Corps or Army Dental Corps as the case may be.

(c)

During the period of secondment to the Navy, in addition to any allowances admissible to them as officers of Army Medical Corps or Army Dental Corps, as the case may be, they shall also be eligible for the following concessions which are peculiar to naval service under the same conditions under which they are admissible to naval officers, namely:

(i)

Hard-lying money.

(ii)

Compensatory (city) allowance while serving afloat.

(iii)

Expatriation allowance while serving afloat beyond prescribed geographical limits. Expatriation allowance under Army rules shall not be admissible in addition.

(iv)

Grant of free accommodation and allied services to Army Medical Corps or Army Dental Corps officers serving afloat whose pay and allowances are governed by pay and Allowances Regulations (Officers) Army (1954 Edition).

(v)

Grant of advances on acquittance rolls to officers serving ashore in India.

(vi)

Advance of pay on transfer and on leave. Advance of pay admissible under Army rules shall not be payable in addition.

(vii)

[Submarine Allowance.]

[Inserted & Omitted by S.R.O. 132, dated 9th May, 1989]

(2)

These officers shall be entitled to Uniform Allowance as under:

(a)

On secondment to the Navy, they shall be granted an initial Uniform Allowance at the scale admissible to regular officers of the Navy on first appointment. They shall be eligible for the grant of a renewal outfit allowance under the same terms as for other regular officers of the Navy.

(b)

The period of effective service for purpose of the grant of renewal allowance shall, however, reckon from the date of secondment to the Navy.

(c)

The grant of refund of initial or renewal outfit allowance to these officers seconded or reverted from one service (that is to say, Army, Navy or Air Force) to another shall be regulated in accordance with the orders issued by the Government from time to time.

Appendix-II

(excluding Naval Aviation and submarine branches)

Rates of pay for General List Officers of all branches

(See regulation 4)

Year

of service

Acting

Sub-Lieutenant

Sub-Lieutenant

Rs.

p.m.

Lieutenant

Rs.

p.m.

Lieutenant

Commander Rs. p.m.

Acting

Commander

Rs.

p.m.

Commander

Rs. p.m.

1

750

-

-

-

-

2

830

-

-

-

-

3

870

-

-

-

-

4

1100

-

-

-

5

1150

-

-

-

6

1200

-

-
-
7
1250
-
-
-
8
1300
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1350
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 1950
 Time
 sale Commander
 Rs.
 1900/- p.m.
 Capital
 Rs.
 1950-75-2100-100-2400 Acting or substantive
 Rear
 Admiral
 Rs.
 2500-125-2750
 Vice
 Admiral
 Rs.
 3000/- p.m.
 Chief
 of Naval Staff
 Rs.
 4000/- p.m.

Note 1. - Commodores will receive rates of pay to which entitled according to their seniority as Captains.

Note 2. - Officers substantively promoted to the rank of Commander by time scale who are not held against authorised appointments will draw a fixed pay of Rs. 1900/-per month. However, such officers when appointed to officiate in the vacancies tenable by Commanders (Selective) for a period not exceeding six months at a time shall draw the pay

admissible to the latter.

Note 3. - Officers of other than aviation and submarine Branches granted higher paid acting rank of Lieutenant Commander will receive pay as under:

Till the completion of

8th.

year of service - Rs. 1350/-

9th.

year of service - Rs. 1400/-

[Appendix III]

[Substituted by S.R.O 19(E), dated 23rd October, 1986]

Rates of pay for General list Officers of Naval Aviation and Submarine Branches

(See Regulation 4)

Year

of Service

Acting

Sub-Lieutenant

Sub-Lieutenant

Rs. p.m.

Lieutenant

Rs. p.m.

Lieutenant

Commander Rs. p.m.

Acting

Commander

Rs.

p.m.

Commander

Rs. p.m.

1

2

3

4

5

6

7

1

825

2

910

3

950

4

1200

5

1250

6

1300

7

1350

8

1400

1450
9
1450
1500
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23
1800
24
1800

Time

Scale Commander

Rs.

1900/-p.m.

Captain

Rs.

1950-75-2100-100-2400 Acting or Substantive

Rear

Admiral

Rs.

2500-125/2-2750

Vice

Admiral

Rs.

3000/-p.m.

Chief

of Naval Staff

Rs.

4000/p.m.

Note 1. - Commanders will receive rates of pay to which entitled according to their seniority as Captains.

Note 2. - Officers substantively promoted to the rank of Commander by Time Scale who are not held against authorised appointments will draw a fixed pay of Rs. 1800 per month. However, such officers when appointed to officiate in the vacancies tenable by Commanders (Selective) for a period not exceeding six months at a time shall draw the pay admissible to the latter.

Note 3. - officers of Aviation and Submarine Branches granted higher paid acting rank of Lt./Commanders will receive pay as under:

"Till the completion of 7th year of service Rs. 1400 per month."

Appendix IV

[***]

[Inserted & Substituted by S.R.O. 9-E, dated 19th March, 1974]

["Appendix V]

[Inserted & Substituted by S.R.O. 9-E, dated 19th March, 1974]

Rates of pay for General List Officers (Ex-Branch List) Substantive Rank

(See Regulation 4)

Lieutenant

Commander

Rs.

per month

On

promotion

1550

After

1 year's service

1600

After

2 year's service

1650

After

3 year's service

1700

After

4 year's service

1700

After

5 year's service

1750

After

6 year's service

1800

After

7 year's service

1800

After

8 year's service

1800

After

9 year's service

1800

After

10 year's service

1800

After

11 year's service

1800

After

12 year's service

1800

Commander

On

Promotion

1850

(**)

After

1 year's service as such

1900

After

2 year's service as such

1950

After

3 year's service as such

1950

After

4 year's service as such

1950

Note : An Ag Cdr will be entitled to fixed pay of Rs. 1800

Captain, Same as for Captain General List

Appendix VI

Rates of pay for Special duty List Officers (Including Special Duties List Officers of Submarine Cadre).

(See Regulation 4)

Special

Duties List

Rs.

per month

Action

Sub-Lieutenant (SD) (On probation)

750

Action

Sub-Lieutenant (Temporary/Sub-Lieutenant (SD)

830-40-950

Lieutenant

(SD)

1100-50-1500

Lieutenant

Commander (SD)

1550-50-1700-1700-50-1800

Commander

(SD)

1800-50-1950

Special

Duties List - Submarine Cadre Acting Sub-Lieutenant (SD) (On probation)

825

Acting

Sub-Lieutenant (SD) (Temporary).

Sub-Lieutenant

(SD)

910-40-1030

Lieutenant

(SD)

1200-50-1550

Lieutenant

Commander (SD)

1650-50-1700-1700-50-1800

Commander

(SD)

1800-50-1950

Appendix VII

Midshipment Basic Pay

(See regulation-4)

Midshipment Basic PayRs. 56 per mensem.

[Appendix-VIII]

[Substituted by S.R.O. 132, dated 9th May, 1989]

(See regulations 86 and 87)

Section 1 - Qualifications which entitle an officer to higher qualification pay at Rs. 100/- p.m.:

1. Qualified Flying Instructor A-2
2. Qualified Navigation Instructor Category A-2.
3. Pilot holding Master Green Card.

Section II. - Qualifications which entitled an officer to higher qualification pay at Rs. 125/- p.m.:

1. Qualified Flying Instructor Category A-I:
2. Qualified Navigation Instructor Category A-1.

Section III - Qualifications which entitle an officer to lower qualification pay at Rs. 70/-p.m.:

1. Qualified Flying Instructor Category 'B'.
2. Qualified Navigation Instructor Category 'B'.

3. Pilots holding green card.

NOTE : Qualification Pay for qualifications shown in Sections I, II and III above will be admissible subject to the condition that they maintain themselves in the required state of qualification continuously in the interest of the service and are periodically tested to ensure that they have retained the qualification.

Section IV - Qualification which entitle an officer to higher qualification grant of Rs. 6000/- Lump-sum:

1. P.S.C.
2. P.T.S.C.
3. Fellow or Member of Institute of Marine Engineers (London), if obtained after passing the examination.
4. Member of Associate Member of Institute of Engineers (India) after passing the examination.
5. Member of Associate Membership of Royal Aeronautical Society U.K./Aeronautical Society (India), if obtained after passing the examination.
6. Long Gunnery Course(G).
7. Long Navigation and Direction Course (ND).
8. Long Torpedo Anti Submarine Course (TAS).
9. Long Communication Course (C).
10. Membership or Assosiate membership of Institution of Telecommunication Engineers (INDIA) now known as Institution of Electronics and Telecommunication Engineer, if, after passing the Graduateship examination held by that institution DSC/PHD in physics/Applied physics, Telecommunication (Wireless), Mathematics, Engineering and Metallurgy.
11. DSc/Ph.D. in Physics/Applied Physics, Telecommunication (Wireless), Mathematics, Engineering and Metallurgy.
12. Advanced Meteorological Course.
13. Fighter Combat Course.
14. Test Pilot Course.
15. Long Hydrographic Specialist Course.
16. Long Course in Logistics and Management (LMC).

Section V - Qualifications which entitle an officer to lower qualification grant of Rs. 4,500/-lump-sum.

1. A pass in Sections 'A' and 'B' of the Associate Members examination of the institution of Engineers (INDIA) or any Engineering degree or qualification which the Institute recognises for exemption from Sections 'A' and 'B' its Associate Membership examination (for officers who are not Graduates in Engineering at the time of commissioning).
2. Air Engineering (A/B) Conversion Course.
3. Master Degree in Education.
4. Specialist Photo Officers Course in No. 2 G.T.S. Tembaram.
5. Air Warfare Instructor's Course.
6. Pilot Attack Instructor's Course (for officers doing the course in I.A.F. Training Institutions in India).
7. Advanced/Intermediate Staff Navigates Course.

NOTE : The officers who have qualified SSAC and have not claimed qualification grant before the 1st December, 1980, shall be entitled to claim qualification grant of Rs. 4500.

Section VI - Qualifications which entitle an officer to the qualification grant of Rs. 2400/- lump-sum. Bar-at-law, LLB., B.L. or any equivalent or higher degree in law.

Section VII - Qualifications which entitle an officer to the qualification grant of Rs. 1600/- lump-sum. Aeronautical Inspection Service Course".

FOOT NOTE : The principal regulations were published in the Garotte of India, Part II, Section 4 dated the 5th January, 1966 vide notification of the Government of India in the Ministry of Defence No. CSR 1-E, dated the 5-1-1966 and were subsequently amended by:

(i)

Notification of the Government of India No. CSR 9-E, dated 19-3-1974 published in Gazette of India, Part II, Section 4 at pages I to 124.

(ii)

Notification of the Government of India G.S.R. 19E, dated 23-10-1986 published in Gazette of India, Part II, Section IV (Extraordinary)

Engineer Officers

6. M.O.T. Certificate of Competency Extra First Class Engineer (Foreign-going).

7. Naval Constructor's Course.

8. Advanced Marine Engineers(E),U.K.

Electrical Officers

9. Advanced Electrical Engineering Course.

[9-A. Advanced Ordinance Engineering Course U.K.]

[Inserted & Substitute by S.R.O. 9(E), dated 19th March, 1974]

Instructor officers

10. Advanced Meteorological Course.

11. D.Sc. or Ph.d. in Physics, Applied Physics and Telecommunication (Wireless). Doctorate Degree in Mathematics, Engineering and Metallurgy.

12. Tong Gunnery Course (G).

13. Long Torpedo Anti-Submarine Course (TAS).

[13-A. Navigation and Direction Course (ND).]

[Inserted & Substitute by S.R.O. 9(E), dated 19th March, 1974]

13. B. Tong Communication Course (C).

Naval Aviation Officers

14. Qualified Flying Instructors Categories A-1 and A-2.

15. Test Pilot Course.

16. Full or Associate Fellowship or Associate Membership of Royal Aeronautical Society, U.K. or Aeronautical Society (India), if obtained after passing the examination.

[16-A. Qualified Navigation Instructors Category A-1 and A.2.]

[Inserted & Substitute by S.R.O. 9(E), dated 19th March, 1974]

17. Ground Engineering licences 'A', 'B', 'C', 'D' Officers For Engineers and Electrical and 'X' all held together.

18. Advances Air Engineering Course (Degree Course).

19. Pilots holding Master Green Card.

20. Fighter Combat Course.

All Branches

21. P.S.C.

22. PT.S.C.

23. J.S.S.C.

Engineer and Electrical Branches, Officers of the Civil Engineering Directorate, Officers of other Branches attached to the Defence Research & Development Organisation and the Defence Production Organisation and Officers of other Branches carrying out Signal Duties.

24. M.I.E. (1) A.M.I.E. (1) or Membership or Associate Membership of the following Institutions:

(a)

Institution of Civil Engineers, London (for Officers employed on Civil Engineering Duties).

(b)

Institution of Mechanical Engineers, London.

(c)

Institution of Electrical Engineers, London.

(d)

[Institution of Telecommunication Engineers (India), if obtained after passing the graduateship Examination held by that Institution. (For officers other than those of the engineering branch and of the Civil Engineering Directorate):

[Inserted & Substitute by S.R.O. 9(E), dated 19th March, 1974]

(e)

Institution of Electronics and Radio Engineers, London (for officers of the Electrical Branch only).]

Officers of the Engineer and Electrical Branches and officers of other branches employed in the Defence Research and Development Organisation and the Defence Production Organisation.

25. Membership or Associate Membership of the institution of Marine Engineers, London.

Section II - Qualifications which entitle an officer to lower qualification pay [Rs. 70 p.m.]

[Inserted & Substitute by S.R.O. 9(E), dated 19th March, 1974]

Electrical Officers

1. Long Air Radio Course (U.K.).

Naval Aviation Officers

2. [Qualified Flying Instructors, Category 'B'.]

[Inserted & Substitute by S.R.O. 9(E), dated 19th March, 1974]

2A.

Navigation Instructors Category 'B'.

3. Ground Engineers Licences Categories 'A' and 'B' or 'C' and 'D' held together (For Engineers and Electrical Officers).

4. (a) Photographic Officers, U.K.

4. (b) Specialist Photo Officers Course in No. 2 Ground Training School, Tambaram.

5. Pilots holding 'Green' Cards.

6. Air Engineering (A/E) Conversion Course.

7. Pilot Attack Instructors Course (for officers doing this Course in I.A.F. training institutions in India).

8. Air Warfare Instructor's Course.

Officers of all Branches except Supply, Executive and medical branches for officers who are not graduates in Engineering at the time of commissioning.

9A.

Pass of Sections 'A' and 'B' of the Associate Membership Examination of the Institution of Engineers (India) or any Engineering Degree or qualification which the Institution of Engineers (India) recognises for exemption from Sections 'A' and 13 of its Associate Membership Examination.

9A. A Pass in Graduate Membership Examination of the Institution of Telecommunication Engineers (India) (for officers other than those of the Engineering Branch and of Civil Engineering Directorate).]

NOTE - Exemption granted from a Civil Engineering qualification will be recognized for qualification pay only for officers employed on Civil Engineering Duties.

Supply Officers

10. Supply and Secretariat Advanced Course (SSAC).

11. Associate of the Institute of Chartered Accountants.

12. ACWA (London)/AICWA.

[Education Officer]

13. Master's Degree in Education.

Executive Officers

14. M.O.T. Certificate of Competency Master (Foreign-going).

Engineer Officers

15. M.O.T. Certificate of Competency First Class Engineer (Foreign-going).

Section III. - Qualifications which entitle an officer to higher qualification grant of [Rs. 24,00]

[Inserted & Substitute by S.R.O. 9(E), dated 19th March, 1974]

Supply Officers

1. Bar-at-law, LL.B., B.L. or any equivalent or higher degree in law.

Section IV.-Qualifications which entitle an officer to lower qualification grant of [Rs. 1600]

[Inserted & Substitute by S.R.O. 9(E), dated 19th March, 1974]

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Naval Aviation Officers

1. Aeronautical Inspection Service Course. (for Engineer and Electrical Officers).

[Appendix IX]

[Substituted by S.R.O. 19(E), dated 23rd October, 1986]

Rate of Pay for Sailors

(See Regulation 125)

GROUP 'A'

Branches : All Artificers and Mechanics

Apprentices/Artificers

Mechanicians

Rs.

per month

Apprentice

1st year

-

195

Apprentice

2nd year

-

200

Apprentice

3rd year

-

205

Apprentice

4th year

-

210

Artificer

V Class

-

240-6-246

Acting

Artificer IV Class

-

300-6-308

Artificer

IV Class

Mechanician

IV Class

340-8-356

Artificer

III Class

Mechanician

III Class

391-10-441

Artificer

II Class

Mechanician

II Class

435-10-485

Artificer

I Class

Mechanician

I Class

500-10-550

Chief

Artificer

Chief

Mechanician

565-15-640

Master

Chief Petty Officer II

-

620-20-740

Master

Chief Petty Officer I

-

725-25-825

GROUP 'B' (Non Artificer)

Rank

Rs.

per month

Seaman

Under Training

215

Seaman

II

230-6-242

Seaman

I

240-6-312

Leading

Seaman

250-6-310-8-326

Petty

Officer

300-8-380

Chief

Petty Officer

385-15-475

Master

Chief Petty Officer II

480-20-600

Master

Chief Petty Officer I

600-25-700

Note : On acquiring any of Specialist qualifications given below, Medical Assistants, will for the purpose of pay be upgraded from Group 'if to rates of pay admissible to corresponding categories of Naval Aviation Sailors.

Name

of the specialist qualification courses

Class

(1)

Advance Nursing

I

& II

(2)

Medical Store

I

& II

(3)

Laboratory Assistant & Laboratory Technician

I

& II

(4)

Operating Room Technician

I

& II

(5)

Radiography (X-Ray Assistants and/or Technicians)

I

& II

(6)

Special Diseases

I

& II

(7)

Physiotherapy

I

& II

(8)

Hygien

I

& II

(9)

Psychiatric Nursing

I

& II

(10)

Dental Operating Room Assistant

I

& II

(11)

Blood Transfusion Assistant Class

I

& II

(12)

Dispenser

I

& II

(13)

Dental Technician/and/or Dental Hygienist

I

& II

GROUP 'C' (Non-artificer)

Rank

Rs.

per month

Seaman

Under Training

200

Seaman

II

210-5-225

Seaman

I

220-5-280

Leading

Seaman

235-6-295-8-311

Petty

Officer

300-8-380

Chief

Petty Officer

385-15-475

Master

Chief Petty Officer II

480-20-600

Master

Chief Petty Officer I

600-25-700

Naval Aviation Sailors

Rank

Rs.

per month

Seaman

Under Training

245

Seaman

II

255-6-267

Seaman

I

285-7-369

Leading

Seaman

310-7-380-8-396

Petty

Officer

360-8-440

Chief

Petty Officer

455-15-545

Master

Chief Petty Officer II

550-20-670

Master

Chief Petty Officer I

650-25-750

Note : Petty Officer Air Fitters/Petty Officer Air Ordnance Fitters selected to undergo Aircraft Mechanician Course, on being advanced to Aircraft Mechanician 4th Class, shall continue to receive pay in their existing scale until such time as they reach the same level of pay as Aircraft Mechanicians.

Non Artificer Sailors of Submarine Arm

Rank

Rs.

per month

Seaman

Under Training

245

Seaman

II

255-6-267

Seaman

I

285-7-369

Leading

Seaman

310-7-380-8-396

Petty

Officer

360-8-440

Chief

Petty Officer

455-15-545

Master

Chief Petty Officer II

550-20-670

Master

Chief Petty Officer I

650-25-750

Note : Artificer/Mechanician sailors of submarine Arm will get the Group 'A' rates of pay

BOYS

Rs.

per month

On enrolment

55

On completion of

initial training

58

By Seagoing

80

General Note: In addition to the scales of pay indicated above 'Good Conduct Badge Pay' will be admissible at the existing rates and under the existing conditions":

GROUP 'B' (Matriculate Entry)

Branches

Rs.

PM.

Signalmen

OD

under training 72

Telegraphists

OD

rate 89

Electrical

AB

rate 92-5-97

Radio

Electrical

LS

rate

102-50112

Medical

Attendants

P.O.

rate 130-5-145

Stores

Assistants

C.P.O.

rate

160-5-175

Writers

.

Master

Chief Petty Officer

II-190-10-210.

Master

Chief Petty Officer

I-220-10-250.

NOTE :- On acquiring any of the specialist qualifications given below Medical Assistants shall, for the purpose of pay, be upgraded from group 'B' to rates of pay admissible to corresponding categories of Naval Aviation Sailors:

Name

and Specialist Qualification Courses

Class

1

2

1.

Advanced Nursing

I

& II

2.

Medical Stores

I

& II

3.

Laboratory Assistant and Laboratory Technician

I

& II

4.

Operating Room Technician

I

& II

5.

Radiography (X-Ray) Assistants and/or Technician)

I

& II
6.
Special Diseases
I
& II
7.
Physiotherapy
I
& II
8.
Hygiene
I
& II
9.
Psychiatrist Nursing
I
& II
10.
Dental Operating Room Assistant
I
& II
11.
Blood Transfusion Assistant
I
& II
12.
Dispenser
I
& II
13.
Dental Technician/or Dental Hygienist.
I
& II
GROUP 'C'
Seamen
Direct
Entry OD (under training)
63
Engine Room
OD
rate
66-1-67
Regulating
AB
rate
74-1-80
stewards
LS
rate
99-2-109
Cooks

P.O.
rate
130-5-175
[Master Chief Petty
Officer II]
[Substituted & Inserted by S.R.o. 9(E), dated 19th March, 1974]

190-10-210
Master Chief Petty
Officer I

220-10-250
(a) Branches
Aircraft
Artificers
Aircraft
Artificers (Weapons)

same
rates of pay as for corresponding sailors in 'A' above.

Electrical
Artificers (Air)
Electrical
Artificers (Air Radio)
Aircraft
Mechanicians

Note. - Petty Officer Air Fitters/Petty Officer Air Ordnance Fitters selected to undergo Aircraft Mechanician Course, on being advanced to Aircraft Mechanician 4th class, shall continue to receive pay in their existing scale until such time as they reach the same level of pay as Aircraft mechanicians.

(b)
Other Naval Aviation Sailors (Matriculate entry except in the case of Boy entry and sailors transferred from the General Service who are not required to be Matriculate):

Branches
Rs.
p.
Naval
Airmen (Aircraft Handler)
OD
rate
97
Naval
Airmen (Safety Equipment)
AB
rate
107
Naval
Airmen (Photographer)
LS
rate
127-5-137
Naval
Airmen (Meteorological Observer)

P.O.rate
165-5-180

Naval
Air Mechanics
C.P.O.
rate
203-5-218
Naval
Air Ordnance Mechanics
Electricians
mates (Air)
Master
Chief Petty Officer II
Electricians
mates (Air Radio)
Master
Chief Petty Officer I
BOYS
Rs.
p.m.
On
enrolment
23
After
6/8 months
25
Seagoing
38
21-25-Law/64
Appendix X
Acknowledgement of Outstanding Advances Repayable
(See regulation 223)
I acknowledge receipt of balance of Rs.....as outstanding against me on 31st March, 20.....out of the advance of Rs
.....on account of..... paid to me by Government.
The above balance is exclusive of interest.
.....
Signature
Station
Date.....
Appendix XI-A
(See regulation 239)
Application for advance for purchase of Motor Car/Cycle
(a)
Rank, name
(b)
Appointment held
(c)
Basic Pay
(d)
Date of retirement/Superannuation.
(e)
Anticipated price of motor car/cycle.
(f)

Amount of advance required.

(g)

Do you possess a motor car/cycle?

If so indicates :

(i)

Make and year of manufacture.

(ii)

Date of purchase.

(iii)

Was this purchase made with the help of loan from Government? If so, how much?

(h)

If you do not possess a motor car/cycle at present: -

(i)

What was the make and year of manufacture?

(ii)

What was the date of its purchase and price?

(iii)

Was that motor car/cycle purchased with the help of a loan from government?

(iv)

What was the date of its sale and the price?

(i)

Have you drawn any advance for the purchase of a motor car/cycle during the last four year: If so indicate:

(i)

the date and the amount drawn.

(ii)

the balance including interest, still outstanding.

(i)

Will you be in a position to take delivery of motor car/cycle within one month from the date of drawal of the advance?

Note :- An advance will not normally be granted if-

(a)

a similar advance had been drawn the last 2 years.

(b)

the previous loan, if any, has not been fully liquidated.

I have read and understood the conditions under which advances are granted.

I fully realise that any failure on my part to comply with these conditions makes me liable to be called upon to refund the full amount of advance in one lump sum. I also certify that the particulars furnished above are correct.

Date

No.

Signature of the applicant.

Countersigned.

Director.

Appendix XI-B

(See Regulation 239)

Form of agreement to be executed at the time of drawing an advance for the Purchase of Motor Vehicle An agreement made onday ofone thousand nine hundred and..... between(hereinafter called the Borrower which expression shall include his heirs, administrators, executors and legal representatives) of the one part and the President of India (hereinafter called the President, which expression shall include his successors and assignees) of the other part. Whereas the Borrower has under the provisions of the Navy (Pay and Allowances) Regulations, 1966 (hereinafter referred to as the said Regulations which expression shall) include any amendments thereof for the time being in force) applied to the President for a loan of Rs(rupees..... only), for the purchase of a motor car and whereas the President has agreed to lend the said amount to the Borrower on the terms

and conditions hereinafter contained NOW IT IS HEREBY AGREED between the parties hereto that in consideration of the sum of Rs(Rupees..... only) paid by the President to the Borrower (the receipt of which the Borrower hereby acknowledges) the Borrower hereby agrees with the President (1) to pay the President the said amount with interest calculated according to the said regulations by monthly deductions from his salary as provided for by the said Regulations and authorities the President to make such deductions and (2) within one month from the date of these presents to expend the full amount of the said loan in the purchase of motor car or if the actual price paid is less than the loan to repay the difference to the President forthwith and (3) to execute a document hypothecating the said motor car to the President as security for the amount lent to the Borrower as aforesaid and interest in the form provided by the said Regulations and IT IS HEREBY LASTLY AGREED AND DECLARED THAT IF THE MOTOR CAR HAS NOT BEEN PURCHASED and hypothecated as aforesaid within one month from the date of these presents or if the Borrower within that period becomes insolvent or quits the service of the Government or dies the whole amount of the loan and interest accrued thereon shall immediately become due and payable.

2. [In witness whereof the Borrower has hereunto set his hand and shri (Designation)in the Ministry/Office offor and on behalf of the President has hereunto set his hand.]

[Substituted by S.R.O. 9(E), dated 19th march, 1974]

Signed by the saidin the presence of:

(Name and designation of the Borrower)

1.

.....

2.

.....

(Signature of witnesses)

(Signature and designation of the Borrower)

Signed by

(Name and designation of the officer signing for and on behalf of the President of India)

In the presence of :

1.

.....

2.

.....

(Signature of witnesses)

(Signature and designation of the officer signing for and on behalf of the president of India)

[Appendix XI-C]

[Substituted by S.R.o. 19(E), dated 23rd October, 1986]

(See regulations 239(4), 243 and 246)

Form of mortgage bond for an Advance (1) for the purchase of a motor car (ii) for the payment of customs duty or (iii) for both the purchase of motor car and payment of customs duty

THIS INDENTURE made thisday of.....one thousand nine hundred andBETWEEN.....(hereinafter called)

"The Borrower which expression shall include his heirs, administrators, executors, and legal representatives of the one part and the PRESIDENT of India (hereinafter called "The President", which expression shall include his successors and assignees) of the other part.

WHEREAS the Borrower has applied for and has been granted an advance of Rupeesto purchase a motor vehicle and or to pay customs duty in respect of a (the) motor vehicle on the terms of Navy (Pay and Allowances) regulations, 1966 (hereinafter referred to as "the said regulation" which expression shall include any amendment thereof or addition thereto for the time being in force) AND WHEREAS one of the conditions upon which the said advance has been, was granted to the Borrower is/was that the Borrower will/would hypothecate the said motor vehicle to the President as security for the amount lent to the Borrower AND WHEREAS the Borrower has purchased and or paid customs duty with or partly with the amount so advanced as aforesaid the motor vehicle particulars whereof set out in the Schedule hereunder written.

NOW THIS INDENTURE WITNESSETH that in pursuance of the said agreement and for the consideration aforesaid

the Borrower cloth hereby covenant to pay to the President the sum of Rsaforesaid or the balance thereof remaining unpaid at the date of these presents by equal payments or Rseach on the first day of every month and will pay interest on the sum for the time being remaining due and owing calculated according to regulation 243 (3) of the said regulations and the Borrower doth agree that such payments may be recovered by monthly deductions from his salary in the manner provided by the said regulations and in further pursuance of the said agreement the Borrower cloth hereby assign and transfer unto the resident the motor vehicle, the particulars whereof are set out in the Schedule hereunto written, by way of security for the said advance and the interest thereon as required by the said regulations.

And the Borrower doth hereby agree and declare that he has paid in full the purchase price of the said motor vehicle and or the entire customs duty payable and that the same is his absolute property and that he has not pledged and so long as any money remains payable to the President in respect of the said advance will not sell, pledge or part with the property in possession of the said motor vehicle. PROVIDED ALWAYS and it is hereby agreed and declared that if any of the said instalments of principal or interest shall not be paid or recovered in manner aforesaid within ten days after the same are due or if the Borrower shall die or at any time ceases to be in Government service or if the Borrower shall sell or pledge or part with the property or possession of the said motor vehicle or become insolvent or make any compositions or arrangement with his creditors or if any person shall take proceedings in execution of any decree or judgment against the Borrower the whole of the said principal sum which shall then be remaining due and unpaid together with interest thereon calculated as aforesaid shall forthwith become payable AND IT IS HEREBY AGREED and declared that the President may on the happening of any of the events hereinbefore mentioned seize and take possession of the said motor vehicle and either remain in possession thereof without removing the same or else may remove and sell the said motor vehicle either by public auction or private contract and may out of the sale moneys retain the balance of the said advance then remaining unpaid and any interest due thereon calculated as aforesaid and all costs, charges, expenses and payments properly incurred or made in maintaining, defending or realising his rights hereunder and shall pay over the surplus, if any, to the Borrower, his executors, Administrators or personal representatives, PROVIDED FURTHER that the aforesaid power of taking possession or selling of the said motor vehicle shall not prejudice the right of the President, to sue the Borrower or his personal representatives for the said balance remaining due and interest or in the case of the motor vehicle being sold the amount by which the net sale proceeds fallshort of the amount owing AND the Borrower hereby further agrees that so long as any moneys are remaining due and owing to the President, the Borrower will ensure and keep insured the said motor vehicle against loss or damage by fire, theft, or accident with an Insurance Company to be approved by the Controller of Defence Accounts (Navy) and will produce evidence to the satisfaction of the C.D.A. (Navy) that the Motor Insurance Company with whom the said motor vehicle is insured have received notice that the resident is interested in the Policy AND the Borrower hereby further agree that he will not permit or suffer the said motor vehicle to be destroyed or injured or to deteriorate in a greater degree than it would deteriorate by reasonable wear and tear thereof AND FURTHER that in the event of any damage or accident happening to the said motor vehicle, the Borrower will forthwith have the same repaired and made good.

The Schedule

Description of Motor Vehicle.

Maker's Name

Description

No. of Cylinders

Engine Number

Chassis No

Cost price

IN WITNESS whereof the said(Borrower's name) and.....for and on behalf of the President have hereunto set their respective hands the day and year first above written.

Signed by the saidin the presence of:

(Name and designation of the Borrower)

1.

2.

(Signature of witnesses)

(Signature and designation of the Borrower)

Signed by

(Name and designation of the officer signing for and on behalf of the President of India)

In the presence of

1.

2.

(Signature of witnesses) (Signature and designation of the officer signing for and on behalf of the President of India)

[Note :- Since no interest is chargeable on the advance sanctioned for the payment of custom duty the term interest used in the agreement form, shall not be applicable to this advance.]

[Appendix XI-D]

[Substituted & Added by S.R.O. 19(E), dated 23rd October, 1986]

Form of Mortgage Bond for an Advance for the payment of Customs Duty on a Motor Vehicle Purchased with a separate earlier Advance.

(See Regulation 146)

THIS DEED OF FURTHER CHARGE is made thisday of..... BETWEENson ofhereinafter called the Borrower", which expression shall, unless excluded by or repugnant to the subject or context, include his successors and assignee) of the one part and the President of India, (hereinafter called the Government", which expression shall, unless excluded by or repugnant to the subject or context, include his successors and assignees) of the other part.

Whereas by Deed of Mortgage dated theday of.....the Borrower hypothecated to the Government the motor vehicle described in the Schedule thereto to secure the motor vehicle purchase advance of Its..... at the rate and on conditions mentioned in the said Deed of Mortgage (hereinafter referred to as the principal Deed).

And whereas out of the said sum of Rs advanced to the Borrower by Government a sum of Rstowards principal as per the term of Principal Deed still remain due and payable to the Government.

And whereas the Borrower being in need of a further advance of Rs..... on the terms of regulation 246 of the Navy (Pay and Allowances) Regulations, 1966

(hereinafter referred to as the said regulations") towards payment of customs duties payable on the said vehicle at the time of bringing the same into India.

And whereas the Borrower has approached the Government for an advance of further sum of Rs.....and the Government has agreed to lend the same on the same security and on terms hereinafter expressed.

And whereas the Borrower has paid the customs duty in respect of the said motor vehicle with or partly with the amount so advanced.

Now this deed witnesseth:-

1. In pursuance of the said agreement and in consideration of the further sum of Its(in words as well as in figures) advanced to the Borrower (receipt of which the Borrower hereby acknowledges) the Borrower hereby covenants with the Government to repay to the Government the sum of Rsor the balance thereof remaining unpaid at the date of these presents by instalments in the manner herein.

2. The Borrower shall repay the said sum due to the Government by equal payments of Rseach on the first day of every month so long as the principal moneys hereby secured or any part thereof due on this security remain unpaid and the Borrower doth agree that such payments may be recovered by monthly deductions from his salary to the manner provided by the said regulations "or where, in the event of his proceeding on deputation out of India for a period exceeding 12 months or of his being transferred to a post outside India, the competent authority has allowed repayment of the amount of advance remaining unpaid and or interest as aforesaid on the happening of such an event in rupees in India, the Borrower doth hereby agree to pay to Government such dues by remittance through Bank Draft drawn by the 15th of every month in favour of the Controller of Defence Accounts (Navy)".

3. It is hereby agreed and declared that if any of the said instalments of the principal shall not be paid or recovered in the manner aforesaid within ten days after the same are due or if the Borrower dies or at any time ceases to be in Government service or if the Borrower shall sell or pledge or part with the property in or of the said motor vehicle or become insolvent or make any composition or arrangement with his creditors or if any person shall take proceedings with his creditors or if any person shall take proceedings in execution of any decree or judgment against the Borrower, the whole of the principal sums and which shall then be remaining due and unpaid under these presents and the principal Deed shall forthwith become payable.

4. In pursuance of the said agreement and the consideration aforesaid the Borrower Moth hereby declare that the motor vehicle described in the Schedule (to the Principal Deed and which is also described in the Schedule) hereunder shall be security for and charged with payment to the Government as well of the said sum of Rsor the balance thereof remaining unpaid at the date of these presents secured under the said Principal Deed and the sum of Rsaccording to the covenant in that behalf herein before contained and that the same shall not be redeemed to redeemable until payment of the moneys secured under this deed and the Principal deed.

5. And it is hereby agreed that all powers, provisions and covenants contained and implied in the aforesaid Principal Deed in relation to the money secured thereby shall operate and take effect in like manner or securing payment of the principal and to the security as fully as if the same had been herein set out and specifically made applicable thereto and as if the said sum had formed part of advance secured by the Principal Deed.

The Schedule

Description of Motor Vehicle

Maker's Name.....

No. of Cylinders.....

Engine No.....

Cost Price.....

IN WITNESS WHEREOF the said.....and.....for and on behalf of the President have hereunto set their respective hands the day and the year above written.

Signed by the saidin the presence of:

(name and designation of the borrower)

.....

(Signature of witness)

Signed by

(Signature and designation of the Borrower)

(Name and designation of the President of India)in the presence of :

1.

2.

(Signature of witness)

(Signature and designation of the Officer signing for and on behalf of the President of India).

AND WHEREAS out of the said sum of Rsadvanced to the Borrower by Government a sum of Rstowards Principal and interest as per the term of Principal Deed still remain due and payable to the Government.

AND WHEREAS the Borrower being in need of a further advance of Rson the terms of Regulation 246 of the Navy (Pay and Allowances)

Regulations, 1966 (herein after referred to as the said regulations") towards payment of customs duties payable on the said vehicle at the time of bringing the same into India.

AND WHEREAS the Borrower has approached the Government for an advance of further sum of Rsand the Government has agreed to lend the same on the same security and on terms hereinafter expressed.

AND WHEREAS the Borrower has paid the customs duty in respect of the said motor vehicle with or partly with the amount so advanced.

NOW THIS DEED WITNESSETH :

1. In pursuance of the said agreement and in consideration of the further sum of Rs(in words as well as in figures) advanced to the Borrower (receipt of which the Borrower hereby acknowledges) the Borrower hereby covenants with the Government to repay to the Government the sum of Rsor the balance thereof remaining unpaid at the date of these presents with interest thereon by instalments in the manner herein.

2. The Borrower shall repay the said sum due to the Governmnet by equal payments of Rseach on the first day of every month and will pay interest on the sum for the time being remaining due and owing calculated according to regulation 243 (3) of the said regulations so long as the principal moneys hereby secured or any part thereof due on this security remain unpaid and the Borrower cloth agree that such payments may he recovered by monthly deductions from his salary in the manner provided by the said regulations.

3. It is hereby agreed and declared that if any of the said instalments of the principal or interest shall not be paid or recovered in the manner aforesaid within ten days after the same are due or if the Borrower dies or at any time ceases

to be in Government's service or if the Borrower shall sell or pledge or part with the property in or of the said motor vehicle or become insolvent or make any composition or arrangement with his creditors or if any person shall take proceedings in execution of any decree or judgment against the Borrower, the whole of the principal sums and interest thereon calculated under the said regulations which shall then be remaining due and unpaid under these presents and the Principal Deed shall forthwith become payable.

4. In pursuance of the said agreement and the consideration aforesaid the Borrower doth hereby declare that the motor vehicle described in the Schedule (to the Principal Deed and which is also described in the Schedule) hereunder shall be security for and charged with payment to the Government as will of the said sum of Rsor the balance thereof remaining unpaid at the date of these presents with interest thereon secured under the said Principal Deed and the said sum of Rsand interest thereon according to the covenant in that behalf hereinbefore contained and that the same shall not be redeemed or redeemable until payment of the moneys secured under this deed and the Principal Deed.

5. AND IT IS HEREBY AGREED that all powers, provisions and covenants contained and implied in the aforesaid Principal Deed in relation to the money secured thereby shall operate and take effect in like manner for securing payment of the principal and interest and to the security as fully as if the same had been herein set out and specifically made applicable thereto and as if the said sum had formed part of advance secured by the Principal Deed.

The Schedule

Description of Motor Vehicle

Maker's Name

No. of Cylinders

Engine No

Cost Price

IN WITNESS WHEREOF the saidand.....for and on behalf of the President have hereunto set their respective hands the day and the year above written.

Signed by the saidin the presence of :

1.

2.

(Signature of witnesses)

(Signature and designation of the Borrower) in the presence of

Signed by

(Name and designation of the officer signing for and on behalf of the President of India) in the presence of:

1.

2.

(Signature of witnesses)

(Signature and designation of the officer signing for and on behalf of the President of India)

Appendix XI-E

(See Regulation 241)

Letter intimating to Company Government's interest in Insurance Policies of Motor Cars and the Like

From

To

[Through the Controller of Defence Accounts (Navy) Bombay]

Dear Sir,

I am to inform you that the President of India is interested in the Motor Car/Motor Cycle/Scooter Insurance Policy Nosecured in your Company and to request that you will kindly insert a clause to the following effect in the Policy :-

"Form of clause to be inserted in the Insurance Policy

1. It is hereby declared and agreed that(the owner of the Motor Car/Motor Cycle/Scooter, hereinafter referred to as the insured in the Schedule to this Policy) has hypothecated the Car/Motor Cycle/Scooter to the President of India (hereafter called the President) as security for an advance for the purchase of the Motor Car/Motor Cycle/Scooter and it is further declared and agreed that the President is interested in any moneys which but for this endorsement would be payable to the said(the insured under this Policy) in respect of the loss or damage to

the said motor car motor cycle/Scooter (which is or damage is not made good by repair, reinstatement or replacement) and such moneys shall be paid to the President as long as he is the mortgagee of the Motor Car/Motor Cycle/Scooter and his receipt shall be full and final discharge to the Company in respect of such loss or damage.

2. Save as by this endorsement expressly agreed, nothing herein shall modify or affect the rights or liabilities of the insured or the Company, respectively, under or in connection with this Policy or any term, provision or condition thereof.

Place

Date

Yours faithfully,

(Name and designation of the insured Ship/Establishment.....)

Forwarded. The receipt of the letter may kindly be acknowledged. It is also requested that the undersigned may kindly be informed whenever any claim is paid under the policy and also if the premium is not paid periodically for renewal.

(Signature)

Controller of Defence Accounts (Navy)

Bombay.

Place

Date

Appendix XI-F

[See regulation 254 (3)]

From of Agreement to be executed at the time of drawing an advance for the purchase of a Bicycle

Agreement made on the.....19.....between and the President of India (hereinafter called the President, which expression shall include his successors and assignees)

In consideration of an advance of Rsreceived by me for the purchase of bicycle, I agree

(a)

to pay the amount in monthly instalments of one-twenty-fifth of the amount of the advance or at one-tenth of my monthly emoluments (calculated to the whole rupee except in the case of last instalment when the remaining balance may include fraction of a rupee, if any) which ever is less, commencing from the first month's pay after the receipt of the advance;

(b)

to retain the bicycle in my personal custody and not to dispose it of without the previous sanction of the sanctioning authority when sold under proper authority the proceeds will be credited to the President towards the balance of the advance. In the event of a loss or that or accident to the bicycle to pay the remaining instalments as they fall due;

(c)

to continue to pay any instalments due in the event of my transfer to release or discharge;

(d)

to the whole or a portion of my pay or pension being taken in adjustment of the advance should any casualty arise before the full amount is refunded;

(e)

to the bicycle being returned to the President by my heirs in the event of any portion of the advance remaining unadjusted at the time of my death after making the deduction specified in clause (d), so that it may be sold to meet the outstanding debt, the balance, if any, the sale proceeds being paid over to my heirs.

(f)

to pay simple interest on the amount of the advance as laid down by the President from time to time.

Station

Date

Signature.....

Witnesses.....

Appendix XI-G

I.A.F.A.-115 (Small)

Voucher Nofor

Contingent Bill

(See Regulation 255)

Amount
of allotment.

Rs

.....

Amount
expended and for which bills have already been submitted for
payment.

Rs

.....

Balance
of allotment excluding the amount of this bill:

Rs

.....

Expenditure on account ofincurred by.....during19.....

(i)

Authority.

(ii)

Months Account in which last charge on this account was preferred.

Serial

No.

Date

Details

of expenditure

Number

or quantity

Rate

Rs.

nP

Per

Amount

Rs.

nP

Total Deduct

Advance received on.....date.....From

Net amount due in

words Rupees.....Naya

Paisa.....

(i)

Certified that the above charge have been necessarily incurred in the interests of the State that the rates charged are the lowest obtainable and that all receipts for sums of Rs.25 and under, except as regards payment made in the M.E.S. to Contractors on running accounts, have been so defaced or mutilated that they cannot be used again, and that I have personally checked the progressive total in the bill with that in the contingent registers and found it to agree.

(ii)

Certified that the telegram was sent on State service and that cash payment was unavoidable.

(iii)

Certified that payment of subsistence allowance was in the interests of service and that the rejected recruits for whom the allowance has been claimed were rejected either medically or by enrolling officers.

NOTE. - "Under Rs should be written across the bill in red ink in a prominent place near to and above the total amount of the bill. The amount should be the next multiple of ten rupees exceeding the amount of the bill.

Countersigned Received payment Station

Station.....

Date 19.....
(For use in the D.A. Dept.)
Last charge D.V. No. for
Next charge D.V. No. for
(When
payment is made Bill
by
inclusion in pay.....IRLA(s)
Passed for
payment for Rs.....()by inclusion in the pay Bill
?.....of
IRLS(s).....In
favour of ?.....for the month of
?.....
Registrar
Noted
in the.....of.....Page.....
IRLAS
Asst.
(When
a cheque is to be issued.)
Passed
for (Rs.....n.P.....)
Rupees.....
(in
words)
?.....for
payment as under :
Vouchar
No.....
A.G.'s
Code No
Treasury
Name
of Payee
Amount
of cheque
Date
of cheque
Initials
Officer
Supdt.
'D'
section
Initials
of
i/c,
'D'
section
Rs.
nP

Auditor

Supdt.

A.A.O

A.C.D.A.

D.C.D.A

Classification Of Receipts And Charges

Receipts

Charges

Classification

Code

R.

(1)

Rs.

nP.

M.R.

(2)

Rs.

nP

Classification

Code

C

(3)

Rs.

nP

M.C.

(4)

Rs.

nP.

Instructions

1. All alterations must be attested. Original receipts should be invariably quoted and all prescribed certificates or documents submitted in support of the claim.
2. The No. and date of the order authorising the expenditure should be invariably quoted, and prescribed certificates of documents submitted in support of the claim. Original receipts (translated when necessary) for all payments should be attached, but if the amount is for Rs. 25 or less and is not a receipt for payments made in the M.E.S. to Contractors on running accounts the certificate on the previous page will suffice.
3. In contingent bills for the purchase or repair of articles of ordnance supply, and for purchase of petty supplies locally, the authority for the local purchase or repair, and the station price current of the article or of the labour and material, or if this be not procurable the certificate on the previous page that the rates charged are the lowest obtainable must be signed or quoted if a standing order. Local purchase bills must also certify that any articles requiring account in equipment ledgers have been brought on charge.
4. In claims for rail fares of recruits, their names and dates of enrolment should be stated.
5. Railway fare claims for men proceeding on furlough should be duly supported by I.A.F.T. 1729 complete in all respects.

[Appendix XI-H]

[Inserted by S.R.O. 9-E, dated 19th March, 1974]

(See regulation 239)

Form of Agreement to be executed at the time of drawing an advance for the purchase of a motor vehicle (to be used only when purchase is made before receiving the advance by raising a private loan in accordance with Regulation 239 in other cases Appendix XI 'B' will be used).

AN AGREEMENT made onday of.....one..... thousand nine hundred and.....between.....(hereinafter) called the Borrower, which expression shall include his heirs,

executors administrators and legal representatives) of the one part and the President of India (hereinafter called the President which expression shall include his successors and assignees) of the other part.

WHEREAS the Borrower has purchased/agreed to purchase the motor vehicle described in the Schedule hereunder written (hereinafter referred to as the "said motor vehicle").

AND WHEREAS the Borrower has under the provisions of the Navy (Pay and Allowances) Regulations, 1966 (hereinafter referred to as the said regulations, which expression shall include any amendments thereof for the time being in force) applied to the President for a loan of Rs.....for the purchase of a motor vehicle.

AND WHEREAS the President has agreed to lend the said amount to the Borrower and on the conditions hereafter contained.

NOW IT IS HEREBY AGREED between the parties hereto that in consideration of the sum of Rspaid by the President to the Borrower (the receipt of which the Borrower hereby admits and acknowledges), the Borrower hereby agrees with the President (1) to repay to the president the said amount with interest calculated according to the said regulations by monthly deductions from his salary as provided for by the said regulations and hereby authorises the President to make such deductions and (2) within one month from the date of these presents to expend the full amount of the said loan in the repayment of loan obtained by him from a private party the (Bank) for the purchase of the said motor vehicle or if the actual price paid or private loan taken is less than the loan, to repay the difference to the President forthwith and (3) to execute a document hypothecating the said motor vehicle to the President as security for the amount lent to the Borrower as aforesaid and interest in the form provided by the said regulations and IT IS HEREBY LASTLY AGREED AND DECLARED THAT IF THE MOTOR VEHICLE has not been purchased and hypothecated as aforesaid within one month from the date of these presents or if the Borrower fails to repay the amount of the loan obtained by him from a private party/.....Bank for the express purpose of purchasing the said motor vehicle within one month from the date of these presents or if the Borrower within that period becomes insolvent or quits the service of the Government or dies the whole amount of the loan and interest accrued thereon shall immediately become due and repayable.

The Schedule

Description of motor vehicle.....

Maker's name.....

Description

No. of Cylinders.....

Engine no.....

Chasis No.....

Cost Price

IN WITNESS WHEREOF the Borrower has hereunto set his hand and Shriin the Ministry/Office of.....for and on behalf of the President has hereunto set his hands.

*Signed by the said in the presence of

(Signature of Witness)

(Signature and designation of the Borrower)

Signed by (name and designation)

.....

(For and on behalf of the President of India) in the presence of

(Signature of Witness)

(Signature and designation of the officer)

Appendix XI-I

(See Regulation 239)

I hereby certify that the vehicle is available and I shall be able to purchase the vehicle within one month of the date of issue of the cheque. In case the purchase of vehicle is not made within one month of the date of issue of the cheque I shall refund the full amount of the advance together with interest in one lump sum.

Place

Date

(Signature and designation of the Borrower).

*Name and designation of the Borrower.

Appendix XI-J

(See Regulation 242)

Form of Mortgage Bond for Motor Vehicle purchased with sale proceeds of an old one before the repayment of the entire advance of money with interest thereon sanctioned by Government earlier for the purchase of the latter vehicle

THIS INDENTURE made thisday ofBetween Shrison of(hereinafter called 'the Borrower' which expression shall, unless excluded by or repugnant to the subject or context include his heirs, administrators, executors and legal representatives) of the ONE PART and the President of India (hereinafter called the President' which expression shall, unless excluded by or repugnant to the subject or context, include his successors in office and assignee) of the OTHER PART.

WHEREAS by a Deed of Mortgagee, dated theday ofthe Borrower mortgaged to the President the Motor Vehicle described in the Schedule thereto (hereinafter referred to as the old motor vehicle) to secure the advance of Rs.(in words as well as in figures) taken for purchase of the old motor vehicle with interest thereon at the rate and on condition mentioned in the said Deed of Mortgage (hereinafter referred to as the Principal Deed').

AND WHEREAS out of said sum of Rs.....advanced to the Borrower by the President, the Borrower has made part repayments and a sum of Rs(in words as well as in figures) towards Principal plus interest thereon as per the terms of the Principal Deed still remain due and payable by the Borrower to the President.

AND WHEREAS the Borrower being in need of a new Motor Vehicle (hereinafter referred to as the new Motor Vehicle) applied to the President for permission to sell his old Motor Vehicle and purchase a new one AND WHEREAS the Borrower has been permitted to sell the old Motor Vehicle and utilise the sale proceeds of the old motor vehicle in terms of Regulation 242 of the Navy (Pay and Allowances)

Regulations, 1966 (hereinafter referred to as "the said regulations" which expression shall include any amendment thereof or addition thereto for the time being in force) towards the purchase of the new Motor Vehicle on condition that the new motor vehicle shall be mortgaged to the President by way of security for the repayment of the sum thus due and owing from the Borrower to the President AND WHEREAS the sum of Rsis now due and owing from the Borrower for principal AND WHEREAS the Borrower is liable in addition to pay interest as per the terms of the Principal Deed.

NOW THIS INDENTURE WITNESSETH that in pursuance of the said agreement and for the consideration aforesaid the borrower doth hereby covenant to repay to the President the sum of Rsaforesaid by equal monthly instalments of Rs.each on the first day of every month and will pay interest on the sum of Rs.originally advanced to him (hereinafter Borrower doth agree that such payments may be recovered by monthly deductions from his salary in the manner provided by the said regulations, and the Borrower doth hereby authorise the President to make such deductions and in further pursuance of the said agreements, the borrower doth hereby assign and transfer upto the President the Motor Vehicle the particulars whereof are set out in the Schedule hereunder written by way of security for the said advance and the interest thereon as required by the said regulations.

AND the Borrower doth hereby agree and declare that he has paid in full the purchase price of the said Motor Vehicle and or the entire amounts duly payable and that the same is his absolute property and that he has not pledged, hypothecated or mortgaged and so long as any money remain payable to the President in respect of the principal will not sell or pledge or hypothecated or mortgage or part with the property in or possession of the said Motor Vehicle. PROVIDED ALWAYS and it is hereby agreed and declared that if any of the said instalments of the principal or interest shall not be paid or recovered in manner aforesaid within 10 days after the same are due or if the Borrower shall die or at any time cease to being government service or if the Borrower shall sell or pledge or part with the property in or possession of the said Motor Vehicle are become insolvent or make any composition or arrangement with his creditors or if any person shall take proceedings in execution of any decree or judgment against the Borrower the balance of the principal which shall then be remaining due and unpaid together with interest on Principal calculated as aforesaid shall forthwith become payable AND IT IS HEREBY AGREED and declared that the President may on the happening of any of the events herein before mentioned seize and take possession of the said Motor Vehicle and either remain in possession thereof without removing the same or else may remove and sell the said Motor Vehicle either by public auction or private contract and may out of the net sale proceeds retain the balance of the principal amount then remaining unpaid and any interest still due, the Principal calculated as aforesaid and all costs, charges, expenses and payments properly incurred or made in maintaining, defending or realising his rights hereunder and shall pay over the surplus, if any, to the Borrower his executors, administrators or personal representatives PROVIDED FURTHER that the

aforesaid power of taking possession or selling of the said Motor Vehicle shall not prejudice the right of the President to sue the Borrower or his personal representatives for the said balance remaining due and interest or in the case of Motor Vehicle being sold the amount by which the net sale proceeds fall short of the amount owing AND the Borrower hereby further agrees that so long as any moneys are remaining due and owing to the President he, the Borrower will insure and keeps insured the said Motor Vehicle for the full value of the Motor Vehicle against any loss or damaged by fire, theft or accident with one of the insurance Companies to be approved by the Controller of Defence Accounts (Navy) and will produce evidence to the satisfaction of the Controller of Defence Accounts (Navy) that the Company with whom the said Motor Vehicle is insured have received notice that the President is interested in the Policy AND the Borrower hereby further agrees that he will not permit or suffer the said Motor Vehicle to be destroyed or injured or to deteriorate in a greater degree than it would deteriorate by reasonable wear and tear thereof AND further that in the event of any damage or accident happening to the said Motor Vehicle, the Borrower will forthwith keep the President informed and have the same repaired and made good and as to restore the same in its previous condition.

The Schedule

Description of Motor Vehicle.....

Maker's Name

Description

No. of Cylinders

Engine Number

Chassis No

Cost Price

IN WITNESS WHEREOF THE Borrower has hereunto set his hand and Shri..... in the Ministry/Office offor and on behalf of the said President has hereunto set his hand.

Signed by the said in the presence of

1.

2.

(Signature of Witnesses)

Signed by (Name and designation)

Signature and designation of the Borrower)

(For and on behalf of the President of India) in presence of

1.

2.

.....

(Signature of Witnesses)

*Name and designation of the Borrower.

(Signature and designation of the Officer)

Appendix XI-K

(See Regulation 243)

Form of supplementary mortgage bond for motor Vehicle Advance

THIS AGREEMENT made thisday of 19..... between.....(hereinafter called 'The Borrower' which expression shall include his heirs, administrators, executors and legal representatives) of the ONE PART and the President of India (hereinafter called the President' which expression shall include his successors and assignees) of the OTHER PART is supplemental to the deed of hypothecation dated thebetween the said parties (hereinafter referred to as the said 'original deed').

WHEREAS the Borrower applied for and was granted an advance of Rs.to purchase a motor vehicle on the terms of Navy (Pay and Allowances) Regulations 1060 (hereinafter referred to as the said regulations).

AND WHEREAS pursuant to the terms of the said advance the Borrower by the said original deed covenanted to repay to the President the said sum of Rsor the balance thereof remaining unpaid by instalments as mentioned below, namely the firstinstalment at Rs.....each, the nextinstalments and Rseach and the next instalments at the said original deed assigned and transferred upto the Presidents the motor vehicle the particulars whereof are set out in the Schedule to the said original deed and also in the Schedule hereunder by way of security as therein and provided.

AND WHEREAS the Borrower has applied to the Government for variation in the instalments agreed to and accepting recovery byinstalments of Rs.....each instead ofinstalments as originally fixed.

AND WHEREAS a sum of Rsis now due and owing from the said Borrower to the Government.

AND WEHREAS the Government has agreed to the said proposal on terms and conditions hereinafter stated.

NOW THIS AGREEMENT WITNESSETH that in pursuance of the said agreement and in consideration of the promises the Borrower doth hereby covenant to pay to the President the outstanding sum of Rsout of the total loan of RS.by instalments of Rs.....each payable on the first day of every month commencing fromand will pay interest on the sum for the time being remaining due and owing calculated according to the said regulations.

AND IT IS HEREBY AGREED AND DECLARED that the covenant, powers and provisions contained in the said original deed in regard to the instalments payable under the said original deed shall apply to the instalments payable under these presents and except as varied hereby all the terms and conditions of the said original deed shall remain full force and effect.

Above Referred To

IN WITNESS WHEREOFthe Borrower has signed these presents and the President has causedto sign these presents for and on his behalf the day/month and year first above written.

Signed and delivered byfor and on behalf of the President of India in the presence of the Borrower in the presence of

1.

2.

Related AI tags, queries and research notes

Translation